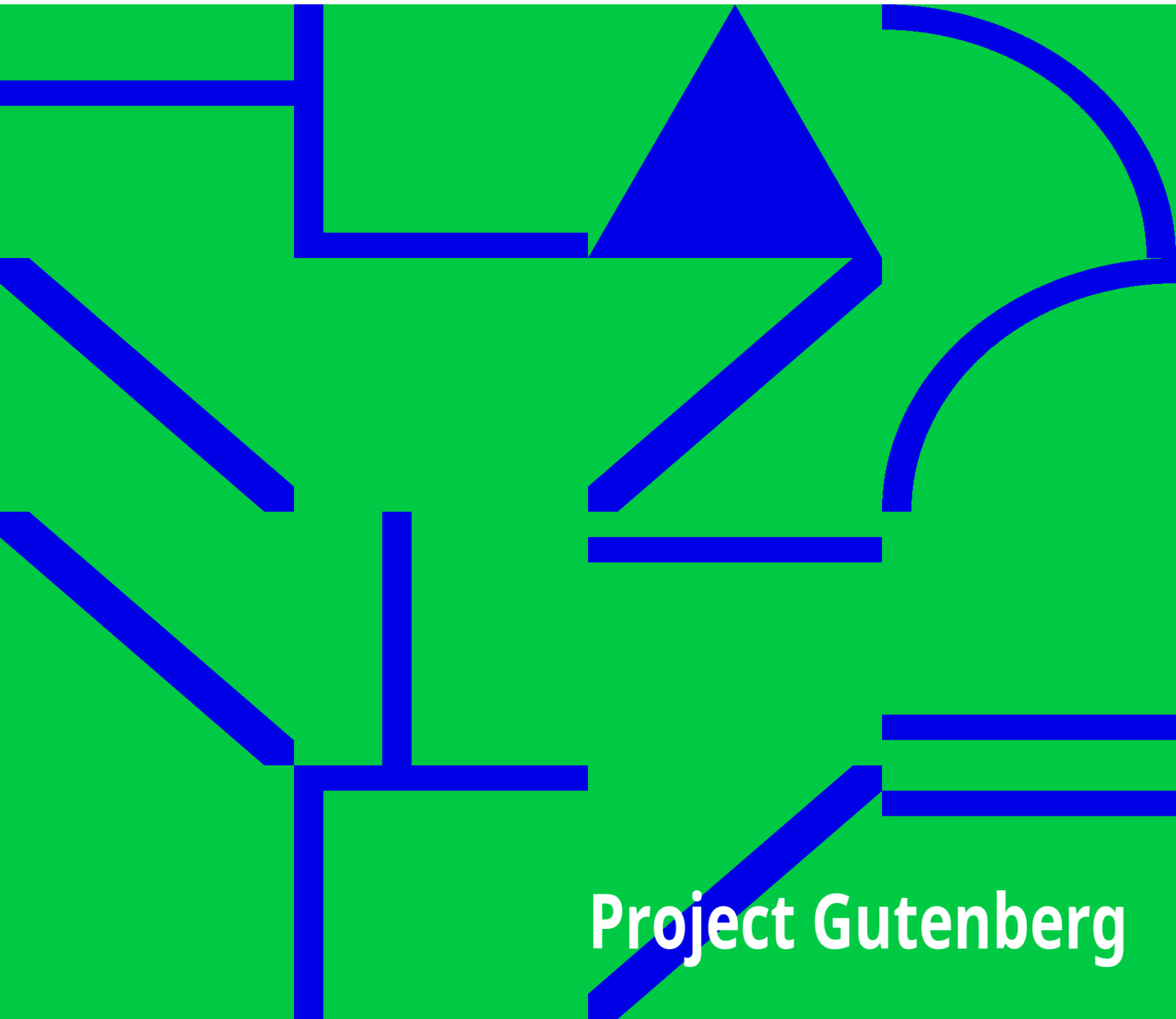


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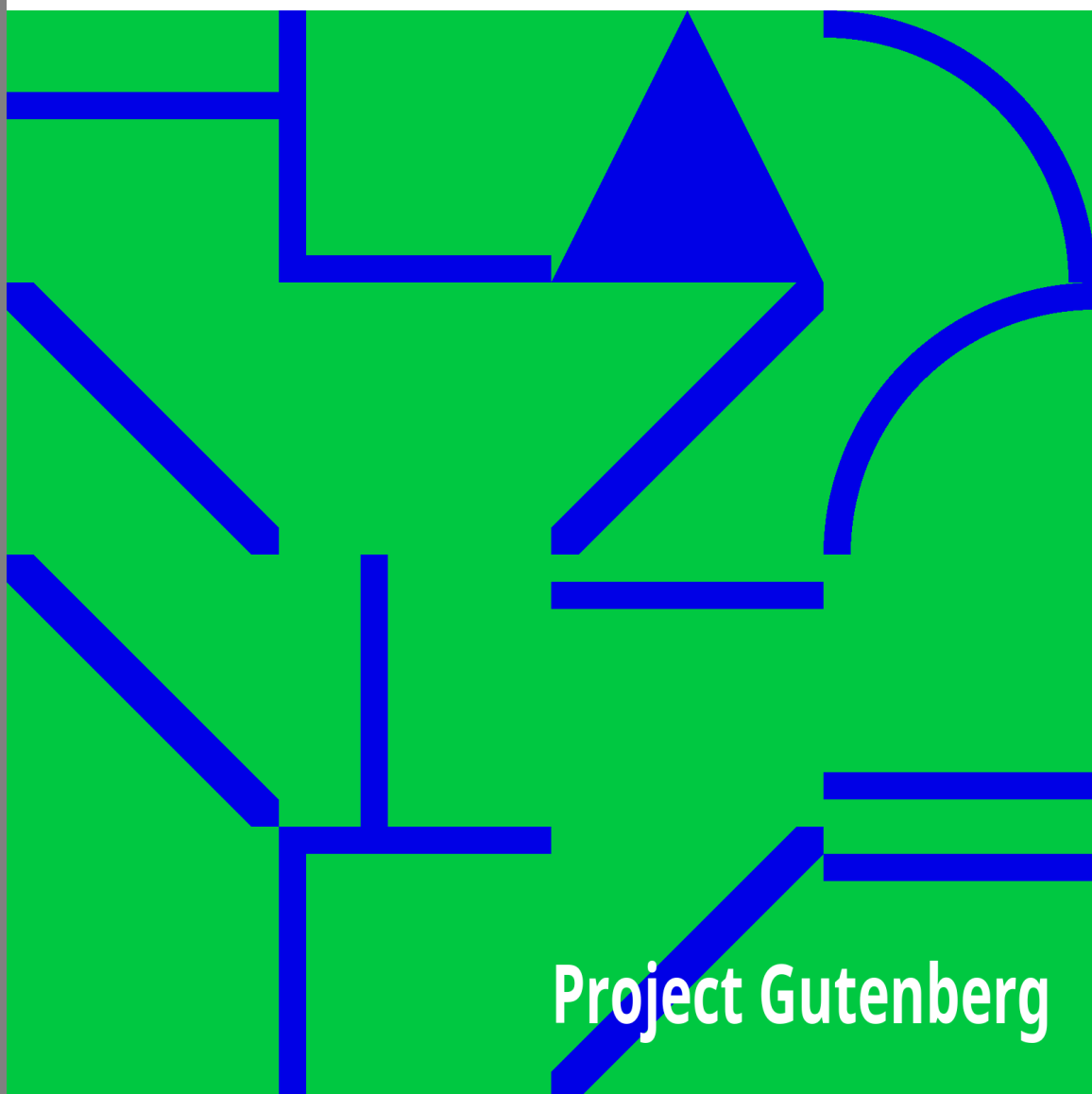
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Claim Number One

George W. Ogden



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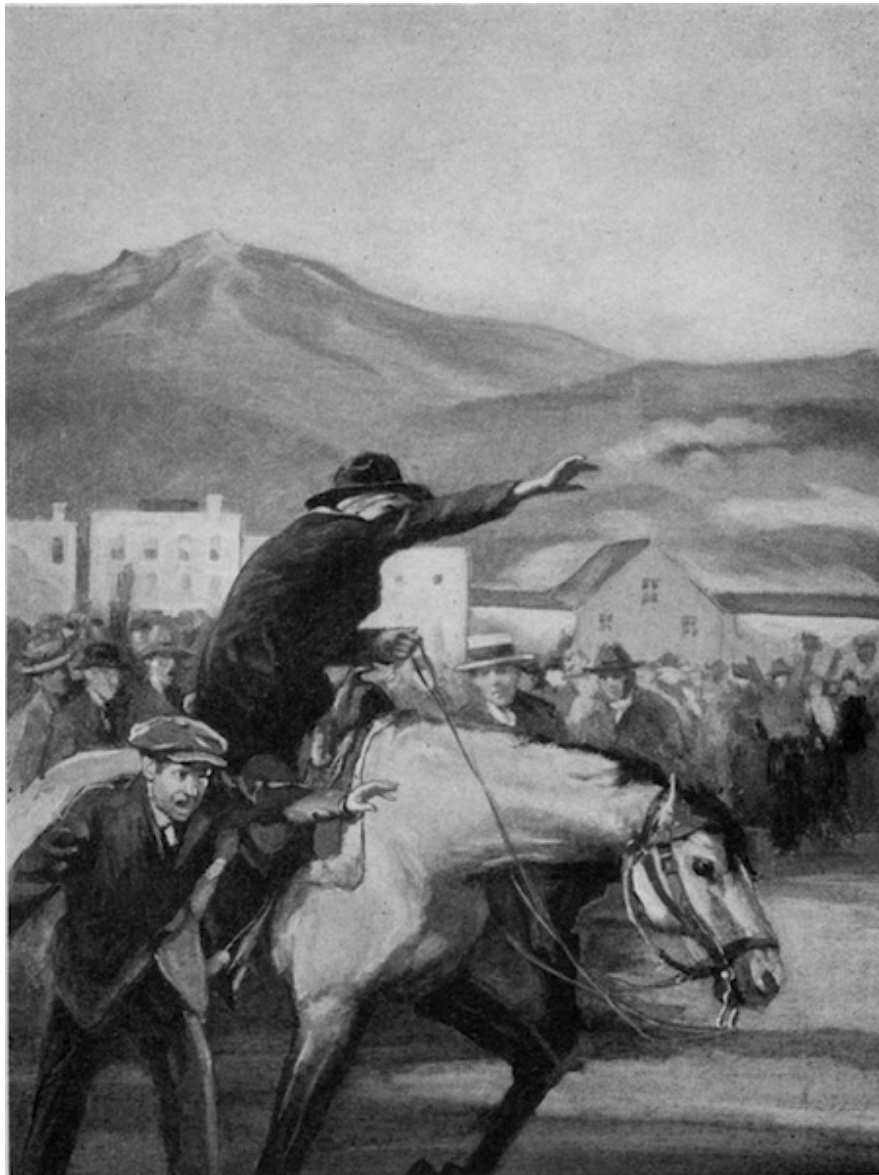
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CLAIM NUMBER ONE



The crowd parted and opened a lane for a dusty man on a sweat-drenched horse to pass.

Claim Number One

BY
GEORGE W. OGDEN

AUTHOR OF
THE DUKE OF CHIMNEY BUTTE
TRAILS END, Etc.

FRONTISPIECE BY
J. ALLEN ST. JOHN



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Claim Number One

1

CHAPTER I

COMANCHE

Coming to Comanche, you stopped, for Comanche was the end of the world. Unless, of course, you were one of those who wished to push the boundary-line of the world farther, to make homes in the wilderness where there had been no homes, to plant green fields in the desert where none had been before.

In that case you merely paused at Comanche, like the railroad, to wait the turn of events.

Beyond Comanche was the river, and beyond the river, dim-lined in the west, the mountains. Between the river and the mountains lay the reservation from which the government had pushed the Indians, and which it had cut into parcels to be drawn by lot.

And so Comanche was there on the white plain to serve the present, and temporary, purpose of housing and feeding the thousands who had collected there at the lure of chance with practical, impractical, speculative, romantic, honest, and dishonest ideas and intentions. Whether it should survive to become a colorless post-office and shipping-station for wool, hides, and sheep remained for the future to decide. As the town appeared under the burning sun of that August afternoon one might have believed, within bounds, that its importance was established for good and all.

It was laid out with the regular severity of the surveyor's art. Behind the fresh, new railroad depot the tented streets swept away pretentiously. In the old settlements—as much as two months before that day some of them had been built—several business houses of wood and corrugated sheet-iron reared above the canvas roofs of their neighbors, displaying in their windows all the wares which might be classified among the needs of those who had come to break the desert, from anvils to zitherns; from beads, beds, and bridles to winches, wagons, water bottles, and collapsible cups.

At the head of the main street stood a hydrant, which the railroad company supplied with water, offering its refreshment to all comers—to man, beast, and Indian, as well as to dusty tourists with red handkerchiefs about their necks. Around it, where teams had been fed and the overflow of

water had run, little green forests of oats were springing, testifying to the fecundity of the soil, lighting unbelieving eyes with hope.

“Just look what a little water will do!” said the locaters and town-site men, pointing with eloquent gesture. “All this land needs, gentlemen, is a little water to make it a paradise!”

On the right hand of the hydrant there was a bank, presenting a front of bricked stability, its boarded sides painted in imitation of that same resisting material, for the comfort of its depositors perhaps, and the benefit of its credit before the eyes of the passing world. Well out in the desert, among the hummocks of earth heaped around anchoring sage clumps, stood the Elkhorn Hotel. It was built of logs, with a design toward the picturesque and an eye to the tourist class of adventurers who were expected to throng to the opening. The logs had been cut along the river—they were that gnarled cottonwood which grows, leaning always toward the northeast, in that land of bitter extremes—the bark stripped from them until they gleamed yellowly, and fitted together with studied crudity. Upon the projecting end of the ridge-pole rode a spreading elk-prong, weathered, white, old.

And there was the Hotel Metropole. There always is a Hotel Metropole and a newspaper, no matter where you go. When you travel beyond them you have penetrated the *Ultima Thule* of modern times. The Hotel Metropole was near the station. It was picturesque without straining for it. Mainly it was a large, sandy lot with a rope around it; but part of it was tents of various colors, sizes, and shapes, arranged around the parent shelter of them all—a circus “top,” weathered and stained from the storms of many years. Their huddling attitude seemed to express a lack of confidence in their own stability. They seemed a brood of dusty chicks, pressing in for shelter of the mothering wing. 4

All was under the direction of a small man with a cream-colored waistcoat and a most incendiary-looking nose. It seemed tempting the laws of physics governing dry materials and live coals to bring that nose into the shelter of a desert-bleached tent. But it was there, and it flared its welcome with impartial ardor upon all arrivals.

The scheme of the Hotel Metropole was this: If you wanted a cot in a tent where each bed was partitioned from the other by a drop-curtain of calico print, you could enjoy that luxury at the rate of two dollars a night in advance, no baggage accepted as security, no matter what its heft or outward appearance of value. If you didn’t want to go that high, or maybe

were not so particular about the privacy of your sleeping arrangements, you might have a cot anywhere in the circus-tentful of cots, spread out like pews. There the charge was one dollar. That rate chancing to be too steep for you, you might go into the open and rest in one of the outdoor canvas pockets, which bellied down under your weight like a hammock. There the schedule was fifty cents.

No matter what part of the house you might occupy on retiring, you were warned by the wall-eyed young man who piloted you to the cot with your number pinned on it that the hotel was not responsible for the personal belongings of the guests. You were also cautioned to watch out for thieves. The display of firearms while disrobing seemed to be encouraged by the management for its moral effect, and to be a part of the ceremony of retiring. It seemed to be the belief in the Hotel Metropole that when a man stored a pistol beneath his pillow, or wedged it in between his ribs and the side of the bunk, he had secured the safety of the night.

At the distant end of the main street, standing squarely across its center, stood the little house which sheltered the branch of the United States land-office, the headquarters being at Meander, a town a day's journey beyond the railroad's end. A tight little board house it was, like a toy, flying the emblem of the brave and the free as gallantly as a schoolhouse or a forest-ranger station. Around it the crowd looked black and dense from the railroad station. It gave an impression of great activity and earnest business attention, while the flag was reassuring to a man when he stepped off the train sort of dubiously and saw it waving there at the end of the world.

Indeed, Comanche might be the end of the world—didn't the maps show that it *was* the end of the world, didn't the railroad stop there, and doesn't the world always come to an abrupt end, all white and uncharted beyond, at the last station on every railroad map you ever saw? It might be the end of the world, indeed, but there was the flag! Commerce could flourish there as well as in Washington, D. C., or New York, N. Y., or Kansas City, U. S. A.; even trusts might swell and distend there under its benign protectorate as in the centers of civilization and patriotism pointed above. 6

So there was assurance and comfort to the timid in the flag at Comanche, as there has been in the flag in other places at other times. For the flag is a great institution when a man is far away from home and expecting to bump into trouble at the next step.

Opposite the bank on the main street of Comanche were the tents of the gods of chance. They were a hungry-mouthed looking lot that presided within them, taken at their best, for the picking had been growing slimmer and slimmer in Wyoming year by year. They had gathered there from the Chugwater to the Big Horn Basin in the expectation of getting their skins filled out once more.

One could find in those tents all the known games of cowboy literature, and a good many which needed explanation to the travelers from afar. There was only one way to understand them thoroughly, and that was by playing them, and there seemed to be a pretty good percentage of curious persons in the throng that sweated in Comanche that day.

That was all of Comanche—tents, hydrant, hotels, bank, business houses, and tents again—unless one considered the small tent-restaurants and lodging-places, of which there were hundreds; or the saloons, of which there were scores. But when they were counted in, that was all.

Everybody in Comanche who owned a tent was on the make, and the making was good. Many of the home-seekers and adventure-expectant young men and women had been on the ground two weeks. They had been paying out good money for dusty stage-rides over the promising lands which had been allotted to the Indians already by the government. The stage people didn't tell them anything about that, which was just as well. It looked like land where stuff might be grown with irrigation, inspiration, intensity of application, and undying hope. And the locaters and town-site boomers led their customers around to the hydrant and pointed to the sprouting oats.

"Spill a little water on this land and it's got Egypt skinned," they said.

So the mild adventurers stayed on for the drawing of claims, their ideals and notions taking on fresh color, their canned tomatoes (see the proper literature for the uses of canned tomatoes in desert countries frequented by cowboys) safely packed away in their trunks against a day of emergency.

Every one of them expected to draw Claim Number One, and every one of them was under the spell of dreams. For the long summer days of Wyoming were as white as diamonds, and the soft blue mountains stood along the distant west beyond the bright river as if to fend the land from hardships and inclemencies, and nurture in its breast the hopes of men.

Every train brought several hundred more to add to the throng already in Comanche—most of them from beyond the Mississippi, many of them schemers, most of them dreamers ready to sacrifice all the endearments of civilization for the romance of pioneering in the West, beyond the limits of the world as defined by the map of the railroad-line over which they had come.

CHAPTER II

GUESTS FOR THE METROPOLE

To Comanche there came that August afternoon, when it was wearing down to long shadows, a mixed company, drawn from the far places and the middle distances east of Wyoming. This company had assembled in the course of the day's acquaintance on the last long, dusty run into the land of expectations.

At dawn these people had left their comfortable sleeping-cars at Chadron, in the Nebraska desert, to change to the train of archaic coaches which transported the land-seekers across the last stretch of their journey. Before that morning the company had been pursuing its way as individual parts—all, that is, with the exception of the miller's wife, from near Boston; the sister of the miller's wife, who was a widow and the mother of June; and June, who was pasty and off-color, due to much fudge and polishing in a young ladies' school.

These three traveled together, as three of such close relationship naturally should travel. The widow was taking June to Wyoming to see if she could put some marketable color in her cheeks, and the miller's wife was going along for a belated realization, at least partially, of youthful yearnings. 10

Since seventeen the miller's wife had longed to see the sun set behind a mountain with snow upon it, and to see a cowboy with dust on his shoulders, like the cowboys of the western drama, come riding out of the glow, a speck at first, and on, and on, until he arrived where she waited and flung himself from his panting horse, neckerchief awry, spurs tinkling, and swept off his broad hat in salute. Beyond that point she had not dared to go since marrying the miller, who had dust enough on *his* shoulders—unromantic dust, unromantic shoulders, goodness knows! But that was her picture, all framed in the gold of her heart. She wanted to see the mountain with the sun behind it, and the cowboy, and all, and then she could sigh, and go back to the miller and near Boston to await the prosaic end.

For all of her thirty-eight years Mrs. Dorothy Mann was shy in proportion as her miller husband, the widely known J. Milton Mann was bold. That he was a hard-mailed knight in the lists of business, and that he

was universally known, Mrs. Mann was ready to contend and uphold in any company. She carried with her in the black bag which always hung upon her arm certain poems bearing her husband's confession of authorship, which had been printed in the *Millers' Journal*, all of them calling public attention to the noble office of his ancient trade. Of course the miller was not of the party, so we really have nothing more to do with him than we have with the rest of the throng that arrived on the train with these singled-out adventurers. But his influence traveled far, like a shadow reaching out after the heart of his spare, pert, large-eyed wife. She was not yet so far away from him that she dared move even her eyes as her heart longed.

In the manner of the miller's wife, there was a restraint upon the most commonplace and necessary intercourse with strangers which seemed almost childish. She even turned in questioning indecision toward June's mother before taking a seat offered her by a strange man, feeling at the same time of the black bag upon her arm, where the poems reposed, as if to beg indulgence from their author for any liberties which she might assume.

June's mother, Mrs. Malvina Reed, widow of that great statesman, the Hon. Alonzo Confucius Reed, who will be remembered as the author of the notable bill to prohibit barbers breathing on the backs of their customers' necks, was duenna of the party. She was a dumpy, small woman, gray, with lines in her steamed face, in which all attempts at rejuvenation had failed.

Mrs. Reed was a severe lady when it came to respecting the conventions of polite life, and June was her heart's deep worry. She believed that young woman to be in the first stage of a dangerous and mysterious malady, which belief and which malady were alike nothing in the world but fudge. When she turned her eyes upon June's overfed face a moisture came into them; a sigh disturbed her breast.

By one of those strange chances, such as seem to us when we meet them nothing short of preconceived arrangement, enough seats had been left unoccupied in the rear coach, all in one place, to accommodate a second party, which came straggling through with hand-baggage hooked upon all its dependent accessories. It proved very pleasant for all involved. There the June party scraped acquaintance with the others, after the first restraint had been dissolved in a discussion of the virtues of canned tomatoes applied to the tongue of one famishing in the desert.

First among the others was the bright-haired young woman from Canton, Ohio, whose gray eyes seemed older than herself, lighting as if with new

hope every time they turned to acknowledge a good wish for her luck in the new land. It seemed at such moments as if she quickened with the belief that she was coming upon the track of something which she had lost, and was in a way of getting trace of it again.

She sat up straight-backed as a saint in a cathedral window, but she unbent toward June. June was not long in finding out that she, also, was a product of grand old Molly Bawn, that mighty institution of learning so justly famed throughout the world for its fudge; that her name was Agnes Horton, and that she was going to register for a piece of land.

Some five years before June had matriculated, Agnes Horton had stepped out, finished, from the halls of Molly Bawn. 13

“She’s old,” confided June to her mother’s ear. “She must be at least twenty-five!”

Old or young, she was handsomer than any other woman on the train, and seemingly unaware of it as she leaned her elbow upon the dusty window-sill and gazed out in pensive introspection upon the bleak land where glaciers had trampled and volcanoes raged, each of them leaving its waste of worn stone and blackened ledge.

And there was the school-teacher from Iowa; a long, thin string of a man, who combed his hair straight back from his narrow, dished forehead and said “idear.” He was thinking seriously of sheep.

And there was the commissary sergeant from Fort Sheridan, which is within the shadow of Chicago, German-faced, towering, broad. He blushed as if scandalized every time a woman spoke to him, and he took Limburger cheese and onions from his cloth telescope grip for his noonday lunch.

And there was the well-mannered manufacturer of tools, who came from Buffalo, and his bald brother with him, who followed the law. There was the insurance man from Kansas, who grinned when he wasn’t talking and talked when he didn’t grin; and the doctor from Missouri, a large-framed man with a worn face and anxious look, traveling westward in hope; and the lumberman from Minnesota, who wore a round hat and looked meek, like a secretary of a Y. M. C. A., and spat tobacco-juice out of the window.¹⁴

All of these men, save the school-teacher and manufacturer, were more or less failures, one way or another. Take the sergeant—Sergeant Schaefer, and Jake was the name in front of that—for example. He had failed in his examination for advancement to a commission, and blamed the aristocracy

of the army for it. He was disgusted with military life; and to him a claim, especially Claim Number One, in the Indian Reservation of Wyoming, looked like a haven of independence and peace.

There was the bald lawyer, too; a young man old from his honest cares, a failure in the law because he could not square his conscience with its practices. He was ready to quit it for an alfalfa-plot and a little bunch of fat cattle—especially if he drew Number One.

Horace Bentley sighed when he looked back upon his struggles with the world and the law. The law had been a saddle that galled his back through many a heavy year. And his brother William, in need of a holiday from his busy factory, had taken a month to himself to see “the boy,” as he called Horace, established in a new calling in the high-minded, open-faced West.

As for the insurance solicitor and lumberman, it must be owned that they were gamblers on the drawing. They meant to register and hang around for the lottery. Then if they should draw Number One, or even anything up to a hundred, they would sell out for what there was to be gained. 15

With Dr. Warren Slavens it was quite different from the case of these purely adventurous speculators. Dr. Slavens had been late in getting a start. It was not a difficulty peculiar to him alone that the start always seemed a considerable distance ahead of him. Up to that time he had been engaged with merely the preliminaries, and they had hobbled him and cumbered him, and heaped up continually such a mass of matter to be smoothed out of the way of his going, that he never had struck a canter on the highway of life.

Of all the disheartened, blue, and beaten men on that dusty train that dusty day, Dr. Warren Slavens, late of Missouri, was without question the deepest down in the quagmire of failure. He hated himself for the fizzle that he had made of it, and he hated the world that would not open the gates and give him one straight dash for the goal among men of his size.

He went frequently to the platform of the car and took a long pull at a big, black pipe which he carried in a formidable leather case, like a surgical instrument, in his inner pocket. After each pull at it he returned with a redder face and a cloudier brow, ready to snap and snarl like an under dog that believes every foot in the world is raised to come down on his own ribs.

But there was nobody on that train who cared an empty sardine-can for the doctor's failures or feelings. Nobody wanted to jab him in the ribs; nobody wanted to hear his complaint. He was wise enough to know it, in a way. So he kept to himself, pulling his shoulders up in soldierly fashion when he passed Agnes Horton's place, or when he felt that she was looking at him from her station directly behind his seat.

At any rate, up to the neck as he was in the bog of failure, the doctor was going to Wyoming with a good many practical advantages ahead of thousands of his fellows. Before turning doctor he had been a farmer's boy; and he told himself that, failing in his solid determination to get up to the starting-line in his profession, he believed he could do pretty well at his older trade. But if he drew Claim Number One he meant to sell it for ten thousand dollars—that being the current valuation placed on first choice—and go back home to establish himself in dignity and build up a practice.

The school-teacher hadn't much to say, but his cast was serious. He expected to draw Number One, not to sell, but to improve, to put sheep on, and alfalfa, and build a long barn with his name on the roof so that it could be read from the railroad as the trains went by.

June's mother, being a widow, was eligible for the drawing. She also meant to register. If she drew Number One—and she hadn't yet made up her mind about the certainty of that—she intended to sell her relinquishment and take June to Vienna for examination by an eminent physician.

When anybody asked Agnes Horton what she intended to do with her winnings out of the land lottery, she only smiled with that little jumping of hope in her eyes. It was a marvel to the whole party what a well set-up girl like her, with her refinement and looks and clothes, wanted to fool her time away in Wyoming for, when the world was full of men who would wear their hands raw to smooth a way for her feet to pass in pleasanter places. But all of them could see that in her heart the hope of Number One was as big as a can of tomatoes—in cowboy literature—to the eyes of a man dying of thirst in Death Valley.

Only the toolmaker, William Bentley—and he was gray at the curling hair which turned up at his broad temples—smiled as if he held it to be a pleasant fantasy, too nebulous and far-away to be realized upon, when any asked him of his intentions concerning Number One. He put off his questioners with a pleasantry when they pressed him, but there was such a tenderness in his

eyes as he looked at his pale, bald brother, old in honest ways before his time, that it was the same as spoken words.

So it will be seen that a great deal depended on Claim Number One, not alone among the pleasant little company of ours, but in the calculations of every man and woman out of the forty-seven thousand who would register, ultimately, for the chance and the hope of drawing it.

At Casper a runner for the Hotel Metropole had boarded the train. He was a voluble young man with a thousand reasons why travelers to the end of the world and the railroad should patronize the Hotel Metropole and no other. He sat on the arms of passengers' seats and made his argument, having along with him a great quantity of yellow cards, each card bearing a number, each good for an apartment or a cot in the open. By payment of the rate, a person could secure his bed ahead of any need for it which, said the young man, was the precaution of a wise ginny who was on to his job. The train conductor vouched for the genuineness of the young man's credentials, and conditions of things at Comanche as he pictured them.

It was due to Sergeant Jake Schaefer that the company organized to mess together. The hotel representative fell in with the idea with great warmth. There was a large tent on the corner, just off Main Street, which the company could rent, said he. A partition would be put in it for the privacy of the ladies, and the hotel would supply the guests with a stove and utensils. June's mother liked the notion. It relieved her of a great worry, for with a stove of her own she could still contrive those dainties so necessary to the continued existence of the delicate child.

So the bargain was struck, the sergeant was placed in charge of the conduct and supply of the camp, and everybody breathed easier. They had anticipated difficulty over the matter of lodging and food in Comanche, for wild tales of extortion and crowding, and undesirable conditions generally, had been traveling through the train all day.

Comanche was quiet when the train arrived, for that was the part of the day when the lull between the afternoon's activities and the night's frantic reaping fell. Everyone who had arrived the day previous accounted himself an old-timer, and all such, together with all the arrivals of all the days since the registration began, came down to see the tenderfeet swallow their first impressions of the coming Eden.

The Hotel Metropole was the only public house in Comanche that maintained a conveyance to meet travelers at the station, and that was for

the transportation of their baggage only. For a man will follow his belongings and stick to them in one place as well as another, and the proprietor of the Metropole was philosopher enough to know that. So his men with the wagon grabbed all the baggage they could wrench from, lift from under, or pry out of the grasp of travelers when they stepped off the train.

The June party saw their possessions loaded into the wagon, under the loud supervision of Sergeant Schaefer, who had been in that country before and could be neither intimidated, out-sounded, nor bluffed. Then, following their traveling agent-guide, they pushed through the crowds to their quarters.

Fortunate, indeed, they considered themselves when they saw how matters stood in Comanche. There seemed to be two men for every cot in the place. Of women there were few, and June's mother shuddered when she thought of what they would have been obliged to face if they hadn't been so lucky as to get a tent to themselves.

"I never would have got off that train!" she declared. "No, I never would have brought my daughter into any such unprotected place as this!"

Mrs. Reed looked around her severely, for life was starting to lift its head again in Comanche after the oppression of the afternoon's heat.

Mrs. Mann smiled. She was beginning to take a comprehensive account of the distance between Wyoming and the town near Boston where the miller toiled in the gloom of his mill.

"I think it's perfectly lovely and romantic!" said she.

Mrs. Reed received the outburst with disfavor.

"Remember your husband, Dorothy Ann!" warned she.

Dorothy Ann sighed, gently caressing the black bag which dangled upon her slender arm.

"I do, Malvina," said she.

CHAPTER III

UNCONVENTIONAL BEHAVIOR

Their situation was somewhat beyond the seat of noisy business and raucous-throated pleasure. Mrs. Reed, while living in an unending state of shivers on account of the imagined perils which stalked the footsteps of June, was a bit assured by their surroundings.

In front of them was a vacant plot, in which inoffensive horses took their siesta in the sun, awaiting someone to come along and hire them for rides of inspection over the lands which were soon to be apportioned by lot. A trifle farther along stood a little church, its unglazed windows black and hollow, like gouged-out eyes. Mrs. Reed drew a vast amount of comfort from the church, and their proximity to it, knowing nothing of its history nor its present uses. Its presence there was proof to her that all Comanche was not a waste of iniquity.

Almost directly in front of their tent the road branched—one prong running to Meander, the county Seat, sixty miles away; the other to the Big Horn Valley. The scarred stagecoaches which had come down from the seventies were still in use on both routes, the two on the Meander line being reenforced by democrat wagons when there was an overflow of business, as frequently happened in those prosperous times.

Every morning the company assembled before the tent under the canvas spread to protect the cookstove, to watch Mrs. Reed and Sergeant Schaefer get breakfast, and to offer suggestions about the fire, and admire June at her toast-making—the one branch of domestic art, aside from fudge, which she had mastered. About that time the stage would pass, setting out on its dusty run to Meander, and everybody on it and in it would wave, everybody in the genial company before the tent would wave back, and all of the adventurers on both sides would feel quite primitive, in spite of the snuffling of the locomotive at the railway station, pushing around freight-cars.

The locomotive seemed to tell them that they should not be deceived, that all of this crude setting was a sham and a pretense, and that they had not yet outrun the conveniences of modern life.

Dr. Slavens appeared to be getting the upper hand of his melancholy, and to be drawing the comfort from his black pipe that it was designed to give. Next to the sergeant he was the handiest man in the camp, showing by his readiness to turn a full hand at anything, from paring potatoes to making a fire, that he had shifted for himself before that day. The ladies all admired him, as they always admire a man who has a little cloud of the mysterious about him. Mrs. Reed wondered, audibly, in the presence of June and Miss Horton, if he had deserted his wife. 23

The others were full of the excitement of their novel situation, and drunk on the blue skies which strained the sunlight of its mists and motes, pouring it down like a baptismal blessing. Even William Bentley, the toolmaker, romped and raced in the ankle-deep dust like a boy.

Sunrise always found the floating population of Comanche setting breakfastward in a clamoring tide. After that, when the land-office opened at nine o'clock, the stream turned toward it, the crowd grew around it, fringing off into the great, empty flat in which it stood—a stretch of naked land so white and gleaming under the sun that it made the eyes ache. There the land-seekers and thrill-hunters kicked up the dust, and got their thousands of clerkly necks burned red, and their thousands of indoor noses peeled, while they discussed the chances of disposing of the high numbers for enough to pay them for the expense of the trip.

After noonday the throngs sought the hydrant and the shade of the saloons, and, where finances would permit, the solace of bottled beer. And all day over Comanche the heel-ground dust rose as from the trampling of ten thousand hoofs, and through its tent-set streets the numbers of a strong army passed and repassed, gazing upon its gaudy lures. They had come there to gamble in a big, free lottery, where the only stake was the time spent and the money expended in coming, in which the grand prize was Claim Number One. 24

“It looks to me,” said Horace Bentley, the bald lawyer, “like a great many people are going to be bitterly disappointed in this game. More than forty thousand have registered already, and there are three days more before the books close. The government circulars describing the land say there are eight thousand homesteads, all told—six hundred of them suitable for agriculture once they are brought under irrigation, the rest grazing and mineral land. It seems to me that, as far as our expectations go in that direction, we might as well pack up and go home.”

Four days in camp had made old-timers out of the company gathered under the awning before their tent, waiting for the meal which Mrs. Reed and her assistants were even then spreading on the trestle-built table. There had been a shower that afternoon, one of those gusty, blustery, desert demonstrations which had wrenched the tents and torn hundreds of them from their slack anchoring in the loose soil.

After the storm, with its splash of big drops and charge of blinding dust, a cool serenity had fallen over the land. The milk had been washed out of the distances, and in the far southwest snowy peaks gleamed solemnly in the setting sun, the barrier on the uttermost edge of the desert leagues which so many thousand men and women were hungry to share.

“Yes, it’s a desperate gamble for all of us,” Dr. Slavens admitted. “I don’t see any more show of anybody in this party drawing a low number than I see hope for a man who stands up to one of the swindles in the gambling-tents over there.”

“Still,” argued Milo Strong, the Iowa teacher, “we’ve got just the same chance as anybody out of the forty thousand. I don’t suppose there’s any question that the drawing will be fair?”

“It will be under the personal management of the United States Land Commissioner at Meander,” said Horace Bentley.

“How do they work it?” asked June, perking up her head in quick interest from her task of hammering together the seams of a leaky new tin cup. She had it over a projecting end of one of the trestles, and was going about it like a mechanic.

“Where did you learn that trick?” inquired the toolmaker, a look in his eyes which was pretty close kin to amazement.

“Huh!” said June, hammering away. “What do you suppose a college education’s good for, anyway? But how do they manage the drawing?” she pressed.

“Did they teach you the game of policy at Molly Bawn?” the lawyer asked.

“The idea!” sniffed Mrs. Reed.

Miss Horton smiled into her handkerchief, and June shook her head in vigorous denial.

“I don’t even know what it is,” said she. “Is it some kind of insurance?”

"It beats insurance for the man that runs the game," said Strong, reminiscently. 26

"All of the names of those who register will be taken to Meander when the registration closes," explained Horace. "There are half a dozen clerks in the little office here transcribing the names on to small cards, with the addresses and all necessary information for notifying a winner. On the day of the drawing the forty thousand-odd names will be put into a big hollow drum, fitted with a crank. They'll whirl it, and then a blindfolded child will put his hand into the drum and draw out Number One. Another child will then draw Number Two, and so on until eight thousand names have come out of the wheel. As there are only eight thousand parcels of land, that will end the lottery. What do you think of your chance by now, Miss Horton?"

"Why, it looks fair enough, the way they do it," she answered, questioning Dr. Slavens with her eyes.

He shook his head.

"You can't tell," he responded. "I've seen enough crookedness in this tent-town in the past four days to set my suspicions against everything and every official in it."

"Well, the drawing's to be held at Meander, you know," reminded William Bentley, the toolmaker, "and Meander advertises itself as a moral center. It seems that it was against this town from the very start—it wanted the whole show to itself. Here's a circular that I got at Meander headquarters today. It's got a great knock against Comanche in it." 27

"Yes, I saw it," said the doctor. "It sounds like one crook knocking another. But it can't be any worse than this place, anyhow. I think I'll take a ride over there in a day or so and size it up."

"Well, I surrender all pretensions to Claim Number One," laughed Mrs. Reed, a straining of color in her cheeks.

June had not demanded fudge once in four days. That alone was enough to raise the colors of courage in her mother's face, even if there hadn't been a change in the young lady for the better in other directions. Four days of Wyoming summer sun and wind had made as much difference in June as four days of September blaze make in a peach on the tip of an exposed bough. She was browning and reddening beautifully, and her hair was taking on a trick of wildness, blowing friskily about her eyes.

It was plain that June had in her all the making of a hummer. That's what Horace Bentley, the lawyer, owned to himself as he told her mother in confidence that a month of that high country, with its fresh-from-creation air, would be better for the girl's natural endowments than all the beauty-parlors of Boston or the specialists of Vienna. Horace felt of his early bald spot, half believing that some stubby hairs were starting there already.

There was still a glow of twilight in the sky when lights appeared in the windowless windows of the church, and the whine of tuning fiddles came out of its open door. Mrs. Reed stiffened as she located the sound, and an expression of outraged sanctity appeared in her face. She turned to Dr. Slavens.

"Are they going to—to—*dance* in that building?" she demanded.

"I'm afraid they are," said he. "It's used for dancing, they tell me."

"But it's a church—it's consecrated!" she gasped.

"I reckon it's worn off by this time," he comforted. "It was a church a long, long time ago—for Comanche. The saloon man across from it told me its history. He considered locating in it, he said, but they wanted too much rent.

"When Comanche was only a railroad camp—a good while before the rails were laid this far—a traveling preacher struck the town and warmed them up with an old-style revival. They chipped in the money to build the church in the fervor of the passing glow, and the preacher had it put up—just as you see it, belfry and all.

"They even bought a bell for it, and it used to ding for the sheepmen and railroaders, as long as their religion lasted. When it ran out, the preacher moved on to fresh fields, and a rancher bought the bell to call his hands to dinner. The respectable element of Comanche—that is, the storekeepers, their wives, daughters and sons, and the clerks, and others—hold a dance there now twice a week. That is their only relaxation."

"It's a shame!" declared Mrs. Reed.

29

"Oh, I don't know," said the doctor easily.

"I'm so disappointed in it!" said she.

"Because it represents itself as a church when it's something else?" inquired the doctor softly. "Well, I shouldn't be, if I were you. It has really nothing to be ashamed of, for the respectable are mightily in the minority in Comanche, I can tell you, madam—that is, among the regular inhabitants."

“Let’s go over and look on,” suggested William Bentley. “It may make some of you gloomy people forget your future troubles for a while.”

The party soon found that looking on exposed them to the contagion of sociability. They were such wholesome-looking people at the gathering, and their efforts to make the visitors who stood outside the door feel at home and comfortable were so genuine, that reserve dissolved most unaccountably.

It was not long before June’s mother, her prejudices against such frivolous and worldly use of a church blown away, was pigeoning around with William Bentley. Likewise Mrs. Mann, the miller out of sight and out of mind, stepped lightly with Horace, the lawyer, the sober black bag doubled up and stored in the pocket of his coat, its handles dangling like bridle-reins.

June alone was left unpaired, in company with the doctor and Miss Horton, who asserted that they did not dance. Her heels were itching to be clicking off that jolly two-step which the Italian fiddlers and harpist played with such enticing swing. The school-teacher and the sergeant were ³⁰not with them, having gone out on some expedition of their own among the allurements of Comanche.

But June hadn’t long to bear the itch of impatience, for ladies were not plentiful at the dance. Before anybody had time to be astonished by his boldness, a young man was bowing before June, presenting his crooked elbow, inviting her to the dance with all the polish that could possibly lie on any one man. On account of an unusually enthusiastic clatter of heels at that moment, Dr. Slavens and Miss Horton, a few paces distant, could not hear what he said, but they caught their breaths a little sharply when June took the proffered arm.

“Surest thing you know,” they heard her eager little voice say as she passed them with a happy, triumphant look behind.

Dr. Slavens looked at Miss Horton; Miss Horton looked at the doctor. Both laughed.

“Well, I like that!” she exclaimed.

“Yes,” he agreed, but apparently from quite a different angle, “so do I. It’s natural and unaffected; it’s coming down to first principles. Well, I don’t see that there’s anything left for you and me to do but use up some of this moonlight in a walk. I’d like to see the river in this light. Come?”

“Oh, that would be unconventional!” she protested.

But it was not a strong protest; more of a question perhaps, which left it all to him. 31

“This is an unconventional country,” he said. “Look at it, as white as snow under this summer moon.”

“It’s lovely by night,” she agreed; “but this Comanche is like a sore spot on a clean skin. It’s a blight and a disfigurement, and these noises they make after dark sound like some savage revel.”

“We’ll put them behind us for two hours or so,” he decided with finality which allowed no further argument.

As they set off toward the river he did not offer her the support of his arm, for she strode beside him with her hands swinging free, long step to his long step, not a creature of whims and shams, he knew, quite able to bear her own weight on a rougher road than that.

“Still it *is* unconventional,” she reflected, looking away over the flat land.

“That’s the beauty of it,” said he. “Let’s be just natural.”

They passed beyond the straggling limits of Comanche, where the town blended out into the plain in the tattered tents and road-battered wagons of the most earnest of all the home-seekers, those who had staked everything on the hope of drawing a piece of land which would serve at last as a refuge against the world’s buffeting.

Under their feet was the low-clinging sheep-sage and the running herbs of yellow and gray which seemed so juiceless and dry to the eye, but which were the provender of thousands of sheep and cattle that never knew the shelter of fold or stable, nor the taste of man-grown grain or fodder, from the day of their birth to the day of their marketing. Winter and summer alike, under the parching sun, under the strangling drifts, that clinging, gray vegetation was the animals’ sole nutriment.

Behind the couple the noises of Comanche died to murmurs. Ahead of them rose the dark line of cottonwoods which stood upon the river-shore.

“I want to take another look at the Buckhorn Cañon,” said the doctor, stalking on in his sturdy, farm-bred gait.

“It makes a fearful roar,” she remarked as they approached the place where the swift river, compressed into the flumelike passage which it had whetted out of the granite, tossed its white mane in the moonlight before plunging into the dark door of the cañon.

"I've been hearing yarns and traditions about that cañon ever since I came here," he told her. "They say it's a thousand feet deep in places."

"June and I came over here this morning," said Agnes, "along with Sergeant Schaefer. He said he didn't believe that June could hike that far. I sat here on the rocks a long time watching it. I never saw so much mystery and terror in water before."

She drew a little nearer to him as she spoke, and he put his hand on her shoulder in an unconscious movement of restraint as she leaned over among the black boulders and peered into the hissing current. 33

"Do you suppose anybody ever went in there?" she asked.

"They say the Indians know some way of getting through," he replied, "but no white man ever went into the cañon and came out alive. The last one to try it was a representative of a Denver paper who came out here at the beginning of the registration. He went in there with his camera on his back after a story."

"Poor fellow! Did he get through—at all?"

"They haven't reported him on the other side yet. His paper offers a reward for the solution of the mystery of his disappearance, which is no mystery at all. He didn't have the right kind of footgear, and he slipped. That's all there is to it."

He felt her shudder under his hand, which remained unaccountably on her warm shoulder after the need of restraint had passed.

"It's a forbidding place by day," said she, "and worse at night. Just think of the despair of that poor man when he felt himself falling down there in the dark!"

"Moccasins are the things for a job like that," he declared. "I've studied it all out; I believe I could go through there without a scratch."

"What in the world would anybody want to do it for? What is there to be gained by it, to the good of anybody?" she wondered.

"Well, there's the reward of five hundred dollars offered by the newspaper in Denver," he answered. 34

"It's a pitiful stake against such odds!" she scorned.

"And all the old settlers say there's gold in there—rich pockets of it, washed out of the ledges in the sides of the walls and held by the rocks in the river-bed and along the margins. A nugget is picked up now and then on

the other side, so there seems to be ground for the belief that fortune waits for the man who makes a careful exploration.”

“He couldn’t carry enough of it out to make it worth while,” she objected.

“But he could go back,” Dr. Slavens reminded her. “It would be easy the second time. Or he might put in effect the scheme a sheep-herder had once.”

“What was that?” she asked, turning her face up to him from her place on the low stone where she sat, the moonlight glinting in her eyes.

He laughed a little.

“Not that it was much of a joke the way it turned out,” he explained. “He went in there to hunt for the gold, leaving two of his companions to labor along the brink of the cañon above and listen for his signal shout in case he came across any gold worth while. Then they were to let a rope down to him and he’d send up the treasure. It was a great scheme, but they never got a chance to try it. If he ever gave any signal they never heard it, for down there a man’s voice strained to its shrillest would be no more than a whisper against a tornado. You can believe that, can’t you, from the way it roars and tears around out here?”

35

“All the gold that remains unmined wouldn’t tempt me a hundred feet down that black throat,” she shuddered. “But what became of the adventurer with the scheme?”

“He came through in time—they caught him at the outlet over there in the mountains. The one pocket that remained in his shredded clothing was full of gold nuggets, they say. So he must have found it, even if he couldn’t make them hear.”

“What a dismal end for any man!”

“A man could beat it, though,” said he, leaning forward in thoughtful attitude. “He’d need a strong light, and moccasins, so he could cling to the rocks. I believe it could be done, and I’ve thought a good deal about exploring it myself for a day or two past. If I don’t draw a low number I think I’ll tackle it.”

“Don’t you attempt it!” she cried, clutching his arm and turning her white face to him affrightedly. “Don’t you ever dare try it!”

He laughed uneasily, his eyes on the black gash into which the foaming river darted.

“Oh, I don’t know; I’ve heard of men doing riskier things than that for money,” he returned.

Agnes Horton’s excitement and concern seemed to pass with his words. She propped her chin in her palms and sat pensively, looking at the broken waters which reared around the barrier of scattered stones in its channel.

“Yes, men sometimes take big risks for money—even the risk of honor and the everlasting happiness of others,” said she.

It was like the wind blowing aside a tent-flap as he passed, giving him a glimpse of its intimate interior. That little lifting of her reserve was a glance into the sanctuary of her heart. The melancholy of her eyes was born out of somebody’s escapade with money; he was ready to risk his last guess on that.

“Besides, there may be nothing to that story of nuggets. That may be just one of these western yarns,” she added.

“Well, in any case, there’s the five hundred the Denver paper offers, besides what I could make by syndicating the account of my adventure among the Sunday papers. I used to do quite a lot of that when I was in college.”

“But you don’t need money badly enough to go into that place after it. Nobody ever needed it that badly,” she declared.

“Don’t I?” he answered, a little biting of bitter sarcasm in his tone. “Well, you don’t know, my lady, how easy that money looks to me compared to my ordinary channels of getting it.”

“It can’t be so very hard in your profession,” she doubted, as if a bit offended by his attitude of martyrdom before an unappreciative world. “I don’t believe you have half as hard a time of it as some who have too much money.”

“The hardship of having too much money is one which I never experienced, so I can’t say as to that,” he said, moved to smiles by the humor of it. “But to understand what I mean by hardship you must know how I’ve struggled in the ruts and narrow traditions of my profession, and fought, hoped, and starved. Why, I tell you that black hole over there looks like an open door with a light inside of it compared to some of the things I’ve gone through in the seven years that I’ve been trying to get a start. Money? I’ll tell you how that is, Miss Horton; I’ve thought along that one theme so confounded long that it’s worn a groove in my brain.

“Here you see me tonight, a piece of driftwood at thirty-five, and all for the want of money enough to buy an automobile and take the darned-fool world by storm on its vain side! You can’t scratch it with a diamond on its reasoning side—I’ve scratched away on it until my nails are gone.

“I’ve failed, I tell you, I’ve botched it all up! And just for want of money enough to buy an automobile! Brains never took a doctor anywhere—nothing but money and bluff!”

“I wonder,” she speculated, “what will become of you out here in this raw place, where the need of a doctor seems to be the farthest thing in the world, and you with your nerve all gone?”

It would have reassured her if she could have seen the fine flush which this charge raised in his face. But she didn’t even look toward him, and couldn’t have noted the change if she had, for the moonlight was not that bright, even in Wyoming.

“But I haven’t lost my nerve!” he denied warmly.

“Oh, yes, you have,” she contradicted, “or you wouldn’t admit that you’re a failure, and you wouldn’t talk about money that way. Money doesn’t cut much ice as long as you’ve got nerve.”

“That’s all right from your view,” said he pettishly. “But you’ve had easy going of it, out of college into a nice home, with a lot of those pink-faced chaps to ride you around in their automobiles, and opera and plays and horse-shows and all that stuff.”

“Perhaps,” she admitted, a soft sadness in her voice. “But wait until you’ve seen somebody drunk with the passion of too much money and crazy with the hunger for more; wait until you’ve seen a man’s soul grow black from hugging it to his heart, and his conscience atrophy and his manhood wither. And then when it rises up and crushes him, and all that are his with it—”

He looked at her curiously, waiting for her to round it out with a personal citation. But she said no more.

“That’s why you’re here, hoping like the rest of us to draw Number One?”

“Any number up to six hundred will do for me,” she laughed, sitting erect once more and seeming to shake her bitter mood off as she spoke.

“And what will you do with it? Sell out as soon as the law allows?”

"I'll live on it," dreamily, as if giving words to an old vision which she had warmed in her heart. "I'll stay there and work through the hope of summer and the bleakness of winter, and make a home. I'll smooth the wild land and plant trees and green meadows, and roses by the door, and we'll stay there and it will be—*home!*"

"Yes," he nodded, understanding the feeling better than she knew. "You and mother; you want it just that way."

"How did you know it was mother?" she asked, turning to him with a quick, appreciative little start.

"You're the kind of a woman who has a mother," he answered. "Mothers leave their stamp on women like you."

"Thank you," said she.

"I've often wanted to run away from it that way, too," he owned, "for failure made a coward of me more than once in those hard years. There's a prospect of independence and peace in the picture you make with those few swift strokes. But I don't see any—you haven't put any—any—*man* in it. Isn't there one somewhere?"

"No," simply and frankly; "there isn't any man anywhere. He doesn't belong in the picture, so why should I draw him in?"

Dr. Slavens sighed.

"Yes; I've wanted to run away from it more than once."

40

"That's because you've lost your nerve," she charged. "You shouldn't want to run away from it—a big, broad man like you—and you must not run away. You must stay and fight—and fight—and *fight!* Why, you talk as if you were seventy instead of a youth of thirty-five!"

"Don't rub it in so hard on that failure and nerve business," he begged, ashamed of his hasty confession.

"Well, *you* mustn't talk of running away then. There are no ghosts after you, are there?"

The moonlight was sifting through the loose strands of her gleaming hair as she sat there bareheaded at his side, and the strength of his life reached out to her, and the deep yearning of his lonely soul. He knew that he wanted that woman out of all the world full of women whom he had seen and known—and passed. He knew that he wanted her with such strong need that from that day none other could come across the mirror of his heart and dim her image out of it.

Simply money would not win a woman like her; no slope-headed son of a ham factory could come along and carry her off without any recommendation but his cash. She had lived through that kind of lure, and she was there on his own level because she wanted to work out her clean life in her own clean way. The thought warmed him. Here was a girl, he reflected, with a piece of steel in her backbone; a girl that would take the world's lashings like a white elm in a storm, to spring resiliently back⁴⁴ to stately poise after the turmoil had passed. Trouble would not break her; sorrow would only make her fineness finer. There was a girl to stand up beside a man!

He had not thought of it before—perhaps he had been too melancholy and bitter over his failure to take by storm the community where he had tried to make his start—but he believed that he realized that moment what he had needed all along. If, amid the contempt and indifference of the successful, he'd had some incentive besides his own ambition to struggle for all this time, some splendid, strong-handed woman to stand up in his gloom like the Goddess of Liberty offering an ultimate reward to the poor devils who have won their way to her feet across the bitter seas from hopeless lands, he might have stuck to it back there and won in the end.

"That's what I've needed," said he aloud, rising abruptly.

She looked up at him quickly.

"I've needed somebody's sympathy, somebody's sarcasm, somebody's soft hand—which could be correctional on occasion—and somebody's heart-interest all along," he declared, standing before her dramatically and flinging out his hands in the strong feeling of his declaration. "I've been lonely; I've been morose. I've needed a woman like you!"

Without sign of perturbation or offense, Agnes rose and laid her hand gently upon his arm.⁴²

"I think, Dr. Slavens," she suggested, "we'd better be going back to camp."

They walked the mile back to camp with few words between them. The blatant noises of Comanche grew as they drew nearer.

The dance was still in progress; the others had not returned to camp.

"Do you care to sit out here and wait for them?" he asked as they stopped before the tent.

"I think I'll go to bed," she answered. "I'm tired."

"I'll stand sentry," he offered.

She thanked him, and started to go in. At the door she paused, went back to him, and placed her hand in her soothing, placid way upon his arm again.

"You'll fight out the good fight here," said she, "for this is a country that's got breathing-room in it."

She looked up into his face a bit wistfully, he thought, as if there were more in her heart than she had spoken. "You'll win here—I know you'll win."

He reached out to put his arm about her, drawn by the same warm attraction that had pulled the words from him at the riverside. The action was that of a man reaching out to lean his weary weight upon some familiar object, and there was something of old habit in it, as if he had been doing it always.

But she did not stay. He folded only moonlight, in which there is little substance for a strong man, even in Wyoming. Dr. Slavens sighed as the tent-flap dropped behind her.

43

"Yes; that's what I've needed all the time," said he.

He sat outside with his pipe, which never had seemed so sweet. But, for all of its solace, he was disturbed by the thought that perhaps he had made a blunder which had placed him in a false light with Miss Horton—only he thought of her as Agnes, just as if he had the right. For there were only occasions on which Dr. Slavens admitted himself to be a fizzle in the big fireworks of the world. That was a charge which he sometimes laid to himself in mortification of spirit, or as a flagellant to spur him along the hard road. He had not meant to let it slip him aloud over there by the river, because he didn't believe it at all—at least not in that high-hoping hour.

So he sat there in the moonlight before the tent, the noises of the town swelling louder and louder as the night grew older, his big frame doubled into the stingy lap of a canvas chair, his knees almost as high as his chin. But it was comfortable, and his tobacco was as pleasant to his senses as the distillation of youthful dreams.

He had not attained the automobile stage of prosperity and arrogance, certainly. But that was somewhere ahead; he should come to it in time. Out of the smoke of his pipe that dreamy night he could see it. Perhaps he might be a little gray at the temples when he came to it, and a little lined at the

mouth, but there would be more need of it then than now, because his legs would tire more easily. 44

But Agnes had taken that foolishly blurted statement for truth. So it was his job henceforward to prove to Agnes that he was not bankrupt in courage. And he meant to do it he vowed, even if he had to get a tent and hang out his shingle in Comanche. That would take nerve unquestionably, for there were five doctors in the place already, none of them making enough to buy stamps to write back home for money.

Already, he said, he was out of the rut of his despondency; already the rust was knocked off his back, and the eagerness to crowd up to the starting-line was on him as fresh again as on the day when he had walked away from all competitors in the examination for a license before the state board.

At midnight the others came back from the dance and broke the trend of his smoke-born dreams. Midnight was the hour when respectable Comanche put out its lights and went to bed. Not to sleep in every case, perhaps, for the din was at crescendo pitch by then; but, at any event, to deprive the iniquitous of the moral support of looking on their debaucheries and sins.

Dr. Slavens was in no mood for his sagging canvas cot, for his new enthusiasm was bounding through him as if he had been given an intravenous injection of nitroglycerin. There was Wyoming before him, all white and virginal and fresh, a big place for a big deed. Certainly, said Dr. Slavens. Just as if made to order for his needs. 45

So he would look around a bit before turning in, with his high-stepping humor over him, and that spot on his arm, where her hand had lain, still aglow with her mysterious fire.

CHAPTER IV

THE FLAT-GAME MAN

The noises of the tented town swelled in picturesque chorus as Dr. Slavens walked toward them, rising and trailing off into the night until they wore themselves out in the echoless plain.

He heard the far-away roll and rumble of voices coming from the gambling-tents; the high-tenor invitation of the barkers outside questionable shows; the bawl of street-gamblers, who had all manner of devices, from ring-pitching to shell-games on folding tables, which they could pick up in a twinkling and run away with when their dupes began to threaten and rough them up; the clear soprano of the singer, who wore long skirts and sang chaste songs, in the vaudeville tent down by the station.

And above all, mingled with all—always, everywhere—the brattle of cornet and trombone, the whang of piano, the wail of violin, the tinkle of the noble harp, an aristocrat in base company, weeping its own downfall.

All of the flaring scene appeared to the doctor to be extremely artificial. It was a stage set for the allurements of the unsophisticated, who saw in this strained and overdone imitation of the old West the romance of their expectations. If they hadn't found it there thousands of them would have been disappointed, perhaps disillusioned with a healthful jolt. All the reality about it was its viciousness, and that was unquestionable.

It looked as if gambling crooks from everywhere had collected at Comanche, and as if the most openly and notoriously crooked of them all was the bony, dry-faced man with a white spot over the sight of his left eye, who conducted a dice-game in the front part of the chief amusement-place of the town. This was a combination variety theater and saloon, where free "living pictures" were posed for the entertainment of those who drank beer at the tables at twenty-five cents a glass.

Of the living pictures there were three, all of them in green garments, which hung loosely upon flaccid thighs. Sometimes they posed alone, as representations of more or less clothed statuary; sometimes they grouped, with feet thrust out, heads thrown back, arms lifted in stiff postures, as gladiators, martyrs, and spring songs. Always, whether living or dead, they

were most sad and tattered, famished and lean pictures, and their efforts were received with small applause. They were too thin to be very wicked; so it appeared, at least.

Dr. Slavens stopped in the wide-spreading door of this place to watch the shifting life within. Near him sat a young Comanche Indian, his hair done up in two braids, which he wore over his shoulders in front. He had an eagle feather in his hat and a new red handkerchief around his neck, and he looked as wistful as a young Indian ever did outside a poem or a picture-film. He was the unwelcome guest, whom no one might treat, to whom no one might sell.

That was one of the first things strangers in Comanche learned: one must not give an Indian a drink of liquor, no matter how thirsty he looked. And, although there was not a saloon-keeper in the place who would have considered a moment before stooping to rob a dead man, there was not one who would have sold an Indian a bottle of beer. Such is the fear, if not respect, that brave old Uncle Sam is able to inspire.

But brave old Sam had left the bars down between his wards and the gamblers' tables. It is so everywhere. The Indian may not drink, but he may play "army game" and all the others where crooked dice, crooked cards, and crooked men are to be found. Perhaps, thought the doctor, the young man with the eagle feather—which did not make him at all invisible, whatever his own faith in its virtues might have been—had played his money on the one-eyed man's game, and was hanging around to see whether retributive justice, in the form of some more fortunate player, would, in the end, clean the old rascal out.

The one-eyed man was assisted by a large gang of cappers, a gang which appeared to be in the employ of the gamblers' trust of Comanche. The doctor had seen them night after night first at one game, then at another, betting with freedom and carelessness which were the envy of the suckers packed forty deep around them. At the one-eyed man's game just then they were coming and going in a variety which gave a color of genuine patronage. That was an admirable arrangement, doubtless due to the one-eyed man's sagacity, which the doctor had noted the night before. For the game had its fascination for him, not because the fire of it was in his veins, but because it was such an out-and-out skin game that it was marvelous how fools enough could be found, even in a gathering like that, to keep it going.

The living pictures had just passed off the stage, and it was the one-eyed man's inning. He rattled his dice in the box, throwing his quick glance over the crowd, which seemed reluctant to quit the beer-tables for his board. Art was the subject which the gambler took up as he poured out his dice and left them lying on the board. He seemed so absorbed in art for the moment that he did not see a few small bets which were laid down. He leaned over confidentially and talked into the eyes of the crowd.

"Art, gentlemen, is a fine thing for the human race," said he. "You have just saw an elegant exhibition of art, and who is there in this crowd that don't feel a better man for what he saw?"

He looked around, as if inviting a challenge. None came. He resumed:

"Art in all its branches is a elegant fine thing, gentlemen. It raises a man up, and it elevates him, and it makes him feel like a millionaire. If I only had a dime, as the man said, I'd spend it for a box of cigareets just to git the chromo-card. That's what I think of art, gentlemen, and that's how crazy I am over it.

"Now, if anybody here wants to bet me I ain't got two eyes, I ain't a goin' to take him up, for I know I ain't, gentlemen, and I've knowed it for thirty years. But if anybody wants to bet me I can't throw twenty-seven—"

This was the one-eyed man's game. He stood inside the curve of a crescent-shaped table, which struck him almost under the arms, his back to the wall of the tent. Players could surround him, almost; still, nobody could get behind him. In that direction there always was a way out. He stood there offering odds of five to one to anybody who wanted to bet him that he couldn't himself, with his own hand and his own dice, throw twenty-seven. Any other number coming out of the box, the one-eyed man lost.

Examine the dice, gents; examine the box. If any gent had any doubts at all about the dice being straight, all he had to do was to examine them. There they lay, gents, honestly and openly on the table before the one-eyed man, his bony hand hovering over them caressingly.

Gents examined them freely. Nearly every player who put money down—secure in that egotistical valuation of one's own shrewdness which is the sure-thing-man's bank and goldmine and mint—rolled the dice, weighed them, eyed them sharply. Then they bet against the one-eyed man—and lost.

That is, they lost if he wanted them to lose. There were victims who looked promising for a fat sacrifice who had to be tolled and primed and led

on gently up to the block. At the right time the one-eyed man trimmed them, and he trimmed them down to the short bones.

His little boost for art finished—for the living pictures were art in which he had a proprietary interest, and he could afford to talk for it once in a while—the one-eyed man cast his glance over his table and saw the small bets. By some singular fortune all of the bettors won. They pocketed their winnings with grins as they pushed out among the gathering crowd.

Men began to pack thickly around the gambler's crescent table, craning over shoulders to see what was going on. He was making a great Wild-West show of money, with a large revolver lying beside it at his elbow. Seeing that the young man who had carried June Reed off to the dance so intrepidly had made his way forward and was betting on the game, Dr. Slavens pushed up to the table and stood near.

The young fellow did not bear himself with the air of a capper, but rather with that of one who had licked a little poison and was drunk on the taste. He had won two small bets, and he was out for more.

There were no chips, no counters except cash. Of that the young man appeared to have plenty. He held a cheerful little wad of it in his hand, so that no time might be lost in taking advantage of the great opportunity to beat a man at his own game.

The display of so much money on both sides held the crowd in silent charm. The young man was the only player, although the one-eyed man urged others to come on and share the fortunes of his sweating patron, whose face was afire with the excitement of easy money, and whose reason had evaporated under the heat.

"At every roll of the dice my young friend adds to his pile," said the gambler. "He's got a head, gents, and he knows how to use it. Look at 'im, gents, gittin' richer at every roll of the dice! You might as well have a share in all this here money and wealth, and you would be sharin' it if you had the nerve of my young friend."

The one-eyed man turned the dice out and lost again. There was a little movement of the crowd, a little audible intaking of breath, a little crowding forward, like that of cattle massed in a pen.

The suckers never did seem to get it through their heads, thought the doctor as he beheld their dumb excitement with growing contempt, that the one-eyed man switched the dice on them just as often as he pleased between

the table and the box, by a trick which was his one accomplishment and sole capital. Without that deftness of hand the one-eyed man might have remained a bartender, and a very sloppy and indifferent one at that; but with it he was the king-pin of the gamblers' trust in Comanche, and his graft was the best in the town.

"There it goes, gents!" he said, shaking his long, hound-shaped head with doleful expression of face. "The tide of luck's turned ag'in' me. You can see that as plain as water in a pan, but they ain't one of you got the nerve to step up and help my young friend trim me.

"You fellers know what you make me think of? Well, you make me think of a lot of little boys with ten cents to spend on Fourth of July. You stand around with your fingers in your mouth, afraid you'll see somethin' you like better if you let loose of your little old dime, and you hang on to it till the fun's all over and the ice-cream's all gone.

"But my young friend here—Now, now!" he remonstrated as the highly excited young man took up his winnings, added them to the money which he held in reserve in his left hand, and placed the whole amount upon the table. "Now you're a comin' it purty strong! Go easy, young feller, and give a old man with only one eye and a game leg a chance. But you won't do it; I can see that in the cast of your eye; you're bound to clean me out at one smack; that's what you're bound to do."

The one-eyed man shook the dicebox very carefully, as if mixing some rare prescription. Then he stopped shaking and held his hand over the mouth of the box, as if he expected the cubes might jump up and join in his ruination while his head was turned.

"Now, look-a here!" said he, addressing them generally. "I've traveled this wide world over ever since I was a tender child, as the man said, and I never seen a chance like this to skin a feller slide by without more'n one lone man havin' sense enough and nerve enough to git in on it.

"Do I see any more of your money, gents, before I roll the dice? Do I see any more of your money of the ream and dominion of Uncle Sam, with the eagle a spreadin' his legs, with his toes full of arrers, and his mouth wide open a hollerin' de-fiance and destruction ag'in' his innimies on land and sea, wheresomever they may be, as the feller said?

"Do I see any more of your money, gents? Do I git sight of any more? Lowest bet's one dollar, gents, and you might as well git in on the finish

and let the old man go up with a whoop. I'm game, gents; I go the limit. Do I see any more of your money? Do I see any more?"

He did. He saw considerably more than he had seen at one time since he opened the game in Comanche. He seemed greatly affected by the sight, shaking his head with solemnity and casting his eye around with reproach.

"That's right! That's right!" said he. "Sock it to a old feller when you've got him down! That's the way of this cold world. Well, all I ask of you, gents"—he paused in his request to shake the box again, holding it poised for the throw—"is this: When you clean me I ask you to stake me, between you, to twenty-seven dollars. Twenty-seven's my lucky number; I was borned on the 27th day of Jannewarry, and I always bet on twenty-seven."

He poured the dice upon the table, reaching for his pile of bills and gold as if to cash in on the winnings as he set the box down, even while the dice were rolling and settling. But at that point the one-eyed man stayed his hand, bending over the dice as if he could not believe his eye.

"Well, bust me!" said he, sighing as if honestly disappointed in the throw. "M' luck's turned! Dang me, fellers, if I didn't win!"

Without enthusiasm, still shaking his head sadly, he drew the winnings over the table, sorting the bills, shuffling them into neat heaps, adding them to his enticing pile, which lay heaped upon a green cloth at his hand.

"I don't know why I stick to this game, gents," said he, "for it's all ag'in' me. I don't win once in nine hundred times. This here's more money than I've took in at any one time since I come to Comanche, and it's more'n I ever expect to take in ag'in if I stay here forty-nine years.

"But it's in m' blood to bet on twenty-seven. I can't help it, boys. It'll be the ruination of me ag'in, like it's ruined me many a time before; but I got to roll 'em! I got to roll 'em! And if anybody wants to git in, let him put his money down!"

The young man seemed a little dazed by the quick change of the gambler's luck, but his reason had no voice to speak against the clamor of his desires. He produced more money, bills of large denomination, and counted out a thousand dollars, defiantly flourishing every bill. He whacked the pile down on the table with a foolishly arrogant thump of his fist.

"I'm with you to the finish," he said, his boyish face bright with the destructive fire of chance. "Roll 'em out!"

Other players crowded forward, believing perhaps that the queer freak of fortune which had turned the gambler's luck would not hold. In a few minutes there was more money on the table than the one-eyed man had stood before in many a day.

Sorry for the foolish young man, and moved by the sacrifice which he saw in preparation, Dr. Slavens pressed against the table, trying to flash the youth a warning with his eyes. But the physician could not get a look into the young man's flushed face; his eyes were on the stake.

The one-eyed man was gabbing again, running out a continual stream of cheap and pointless talk, and offering the dice as usual for inspection. Some looked at the cubes, among the number the young man, who weighed them in his palm and rolled them on the table several times. Doubtless they were as straight as dice ever were made. This test satisfied the rest. The one-eyed man swept the cubes into his hand and, still talking, held that long, bony member hovering over the mouth of the box.

At that moment Dr. Slavens, lurching as if shoved violently from behind, set his shoulder against the table and pushed it, hard and suddenly, against the one-eyed man's chest, all but throwing him backward against the wall of the tent. The gambler's elbows flew up in his struggle to keep to his feet, and the hand that hovered over the dicebox dropped the dice upon the board.

Instantly a shout went up; instantly half a hundred hands clawed at the table to retrieve their stakes. For the one-eyed man had dropped not five dice, but ten.

He waited for no further developments. The tent-wall parted behind him as he dived through into the outer darkness, taking with him his former winnings and his "bank," which had been cunningly arranged on the green cloth for no other purpose; his revolver and his dice, leaving nothing but the box behind.

The young man gathered up his stake with nervous hands and turned his flushed face to the doctor, smiling foolishly.

"Thank you, old man," he said. "Oh, yes! I know you now," he added, offering his hand with great warmth. "You were with her people at the dance."

"Of course," smiled the doctor. "How much did you lose?"

“Say, I ought to have a nurse!” said the young man abjectly. “If you hadn’t heaved that table into the old devil’s ribs just then he’d ’a’ skinned me right! Oh, about six hundred, I guess; but in ten minutes more he’d ’a’ cleaned me out. Walker’s my name,” he confided; “Joe Walker. I’m from Cheyenne.”

Dr. Slavens introduced himself.

“And I’m from Missouri,” said he.

Joe Walker chuckled a little.

“Yes; the old man’s from there, too,” said he, with the warmth of one relative claiming kinship with another from far-away parts; “from a place called Saint Joe. Did you ever hear of it?”

“I’ve heard of it,” the doctor admitted, smiling to himself over the ingenuous unfolding of the victim whom he had snatched from the sacrifice.

“They don’t only have to show you fellers from Missouri,” pursued Walker; “but you show *them*! That’s the old man’s way, from the boot-heels up.”

They were walking away from the gambling-tent, taking the middle of the road, as was the custom in Comanche after dark, sinking instep deep in dust at every step.

“What are you doing with all that money in a place like this?” the doctor questioned.

“Well, it’s this way,” explained Walker with boyish confidence. “The old man’s going to set me up in a sheep-ranch between here and Casper. We’ve got a ranch bargained for with six miles of river-front, he sent me over here with five thousand dollars to cinch the business before the feller changed his mind.”

“Why didn’t you bring a draft?” the doctor wondered.

“Some of these sheepmen wouldn’t take government bonds. Nothing but plain cash goes with them.”

“Oh, I didn’t think you had any particular use for even that, the way you’re slinging it around!” said the doctor, with no attempt to hide the feeling he held for any such recklessness.

“Looked that way,” admitted Walker thoughtfully. “But I’ve got to meet that sheepman here at the bank in the morning, where he can have somebody that he’s got confidence in feel of the money and tell him it’s

genuine, and I'll have to put up some kind of a stall to cover the money I lost. Guess I can get away with it, somehow. Cripes! I sweat needles every time I think of what'd 'a' happened to me if you hadn't showed us suckers that one-eyed feller's hand!"

"Well, the important thing now, it seems to me, is to hang on to what's left till you meet that rancher."

"Don't you worry!" rejoined Walker warmly. "I'm going to sit on the edge of that little old bunk all night with my six-shooter in one hand and that money in the other! And any time in future that you see me bettin' on any man's game, you send for the fool-killer, will you?"

"Yes, if I happen to be around," promised the doctor.

"I ought to know 'em; I was raised right here in Wyoming among 'em," said Walker. "I thought that feller was square, or maybe off a little, because he talked so much. He was the first talkin' gambler I ever met."

"Talk is his trick," Slavens enlightened him. "That was old Hun Shanklin, the flat-game man. I've looked him up since I got here. He plays suckers, and nothing *but* suckers. No gambler ever bets on Hun Shanklin's game. He talks to keep their eyes on his face while he switches the dice."

Walker was gravely silent a little while, like a man who has just arrived at the proper appreciation of some grave danger which he has escaped.

"I've heard of Hun Shanklin a long time, but I never saw him before," he said. "He's killed several men in his time. Do you suppose he knows you shoved his table, or does he think somebody back of you pushed you against it?"

"I don't suppose he needs anybody to tell him how it happened," replied the doctor a little crabbedly.

"Of course I've got my own notion of it, old feller," prattled Walker; "but they were purty thick around there just then, and shovin' a good deal. I hope he thinks it happened that way. But I know nobody shoved you, and I'm much obliged."

"Oh, forget it!" snapped Slavens, thinking of the six hundred dollars which had flown out of the young fellow's hand so lightly. Once he could have bought a very good used automobile for four hundred. 61

"But don't you suppose—" Walker lowered his voice to a whisper, looking cautiously around in the dark as he spoke—"that you stand a chance to hear from Hun Shanklin again?"

“Maybe,” answered Slavens shortly. “Well, here’s where I turn off. I’m stopping at the Metropole down here.”

“Say!”

Walker caught his arm appealingly.

“Between you and me I don’t like the looks of that dump where I’ve got a bed. You’ve been here longer than I have; do you know of any place where a man with all this blamed money burnin’ his hide might pull through till morning with it if he happened to slip a cog and go to sleep?”

“There’s a spare cot in our tent,” said the doctor, “and you’re welcome to it if you feel that you can trust yourself in our company. We mess together in a sort of communistic fashion.”

Walker was profuse in his gratitude.

“I’ll feel easy among decent people!” he declared. “I’m mostly decent myself, and my family’s one of the best in this state. Don’t you size me up by what you saw me do tonight, will you?”

“The best of us slip up once in a while,” Slavens said.

Walker had some business of clearing his throat. And then:

“Are you—that is—is *she*, related to you?”

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“Oh, no,” laughed the doctor. “I’m sorry she isn’t.”

“She’s a peach; don’t you think so?”

“Undoubtedly,” admitted the doctor. “Well, here we are—at home.”

They stood outside a little while, their faces turned toward the town. It was quieting down now. Here and there a voice was raised in drunken song or drunken yelp; here and there a pistol-shot marked the location of some silly fellow who believed that he was living and experiencing all the recklessness of the untamed West. Now and then the dry, shrill laughter of a woman sounded, without lightness, without mirth, as if it came from the lips of one who long, long ago, in the fever of pain and despair, had wept her heart empty of its tears. Now and again, also, a wailing cornet lifted its lone voice, dying away dimly like a disappearing light.

“The wolves are satisfied for one night; they’ve stopped howling,” the doctor said.

CHAPTER V

SKULKERS

There remained but one day until chance should settle the aspirations of the dusty thousands who waited in Comanche; one day more would see Claim Number One allotted for selection to some more or less worthy American citizen.

The young man, Walker, had been received on a footing of fellowship into the commune of the circus-tent. He said that he had concluded happily the arrangements for the purchase of the sheep-ranch, and that he intended to go and take possession of it in a few days. Meantime, he appeared to be considerably shot up over June. In spite of Mrs. Reed's frowns, he hung around her like a hornet after a soft pear.

There was considerable excitement in the camp of the communists that morning, owing to preparations which were going forward for an excursion over the land where somebody's Number One lay shrouded in green greasewood and gray sage. For this important occasion Walker had engaged the most notable stage-driver in that part of the country, whose turn it was that day to lie over from the run between Comanche and Meander.

The party was to use his stage also, and carry lunch along, and make a grand day of it along the river, trying for trout if conditions held favorable. Smith was the name of the driver.

Smith was smiling like a baker as he drove up, for Smith could not behold ladies without blushing and smiling. Smith had the reputation of being a terror to holdup men. Also, the story was current in Comanche that he had, in a bare-handed, single encounter with a bear, choked the animal to death. There was some variance over the particulars as to the breed of bear, its color, age, size, and weight. Some—and they were the unromantic, such as habitually lived in Wyoming and kept saloons—held that it was a black cub with a broken back; others that it was a cinnamon bear with claws seven inches long; while the extremists would be satisfied with nothing short of a grizzly which stood five feet four at the shoulders and weighed eighteen hundred pounds!

But, no matter what romance had done for Smith, it could not overdo his ancient, green vehicle, with the lettering,

BIG HORN VALLEY

along its side near the roof. It was a Concord stage, its body swinging on creaking straps. It had many a wound of arrowhead in its tough oak, and many a bullet-hole, all of which had been plugged with putty and painted over long years ago for the assurance and comfort of nervous passengers, to whom the evidence of conflict might have been disturbing. 65

Now that there was no longer any reason for concealment, the owners had allowed the paint to crumble and the putty to fall away, baring the veteran's scars. These were so thick that it seemed a marvel that anybody who took passage in it in those perilous days escaped. In a sun-cracked and time-curved leather holster tacked to the seat at Smith's right hand, a large revolver with a prodigious black handle hung ready for the disciplining of bandits or bears, as they might come across Smith's way.

Smith rounded up before the tent with a curve like a skater, bringing his four horses to a stop in fine style. No matter how Smith's parts might be exaggerated by rumor or humor in other ways, as a teamster he stood without a peer between Cody and Green River. He leaped to the ground with surprising agility and set himself about arranging the interior of the coach for the accommodation of his passengers. He was chewing on something which might have been bear-meat or buckskin, from its apparent tenacious and unyielding nature.

Agnes Horton was to ride on the box with Smith, for she had a camera and wanted to catch some views. Smith grew so red over handing her up that Dr. Slavens began to fear lest he might take fire from internal heat and leave them with only the ashes of a driver on their hands. But they all got placed without any such melancholy tragedy, with a great many cries of "Oh, Mr. Smith!" here, and "Oh, Mr. Smith!" there, and many head-puttings-out on the part of the ladies inside, and gallantries from Mr. Walker and Mr. Horace Bentley, the lawyer. 66

William Bentley, the toolmaker, with the basket of lunch upon his knees, showered the blessing of his kindly smile upon them all, as if he held them to be only children. Mrs. Mann, her black bag on her arm, squeaked a little when the coach lurched on the start, knocking her head and throwing her hat awry.

Smith, proud of his load, and perhaps a little vain on account of so much unusual loveliness at his side, swung down the main street with its early morning crowds. People waved at them the friendly signals of the highroad of adventure, and June, in defiance of terrible eyebrows and admonishing pokes, waved back at them, her wild hair running over her cheeks. So they set out in the bright morning to view the promised land.

They struck off down the Meander stage-road, which ran for the greater part of its way through the lands awaiting the disposition of chance. Mainly it followed the survey of the railroad, which was to be extended to Meander, and along which men and teams were busy even then, throwing up the roadbed.

To the north there was a rise of land, running up in benched gradations to white and barren distant heights; behind them were brown hills. Far away in the blue southwest—Smith said it was more than eighty miles—there stood the mountains with their clean robes of snow, while scattered here and there about the vast plain through which they drove, were buttes of blue shale and red ledges, as symmetrical of side and smooth of top as if they had been raised by the architects of Tenochtitlán for sacrifice to their ugly gods.

“Old as Adam,” said Smith, pointing to one gray monument whose summit had been pared smooth by the slow knife of some old glacier. The sides of the butte looked almost gay in the morning light in their soft tones of blue and red.

“From appearances it might very well be,” agreed Agnes.

She looked at Smith and smiled. There was the glory of untrammelled space in her clear eyes, a yearning as of the desert-born on the far bounds of home. Smith drove on, his back very straight.

“Older,” said he with laconic finality after holding his peace for a quarter of a mile.

Smith spoke as if he had known both Adam and the butte for a long time, and so was an unquestionable authority. Agnes was not disposed to dispute him, so they lurched on in silence along the dust-cushioned road.

“That ain’t the one the Indian girl jumped off of, though,” said Smith, meditatively.

“Isn’t it?”

She turned to him quickly, ready for a story from the picturesque strangler of bears. Smith was looking between the ears of the off-leader. He

volunteered no more.

“Well, where is the one she jumped from?” she pressed.

“Nowhere,” said Smith.

“Oh!” she said, a bit disappointed.

“Everywhere I’ve went,” said he, “they’ve got some high place where the Indian girl jumped off of. In Mezoury they’ve got one, and even in Kansas. They’ve got one in Minnesota and Illinoy and Idaho, and bend my eyebrows if I know all the places they ain’t got ’em! But don’t you never let ’em!take you in on no such yarns. Them yarns is for suckers.”

Somehow Agnes felt grateful toward Smith, whose charitable purpose doubtless was to prevent her being taken in. But she was sorry for the fine tradition and hated to give it up.

“But *didn’t* one ever jump off a cliff or—anything?” she asked.

Smith struck out with a free-arm swing and cracked his whip so loudly that three female heads were at once protruded from the windows below.

“What I want to know,” said he argumentatively, “is, who seen ’em jump?”

“I don’t know,” she admitted; “but I suppose they found their bodies.”

“Don’t you believe it!” depreciated Smith. “Indian maidens ain’t the jumpin’ kind. I never seen one of ’em in my day that wouldn’t throw down the best feller she ever had for a red umbreller and a dime’s worth of stick candy.”

“I’m sorry for the nice stories your knowledge of the Indian character spoils,” she laughed.

“The thing of it in this country is, miss, not to let ’em take you in,” Smith continued. “That’s what they’re out for—to take in suckers. No matter how wise you may be in some other place, right here in this spot you may be a sucker. Do you git my words?”

“I think so,” she responded, “and thank you. I’ll try to keep my eyes open.”

“They’s places in this country,” Smith went on, for he liked to talk as well as the next one, once he got under way, “where you could put your pocketbook down at the fork of the road with your card on top of it and go back there next week and find it O. K. But they’s other places where if you had your money inside of three safes they’d git at it somehow. This is one of that kind of places.”

They had been dropping down a slope scattered with gray lava chunks and set with spiked soapweed, which let them to the river level. Ahead of them, twisted cottonwoods and red willows marked the brink of the stream.

"This is the first bench," said Smith, "and it's mainly good land. Before the books was opened for registration the gover'nment give the Indians choice of a homestead apiece, and they picked off all this land down here. Oh, well, on up the river they's a little left, and if I draw a low number⁷⁰ I know where to put my hand on a piece."

"It looks nice and green here," said she, admiring the feathery vegetation, which grew as tall as the stage along the roadway.

"Yes, but you want to watch out for greasewood," advised Smith, "when you come to pick land in this country. It's a sign of alkali. Pick that gray, dusty-lookin' stuff. That's sage, and where it grows big, anything'll grow when you git the water on it."

"But how *do* you get the water on this hilly land?" she asked.

The question had been troubling her ever since she had taken her first look at the country, and nobody had come forward with a satisfactory explanation.

"You got to go up the river till you strike your level," explained Smith, "and then you tap it and take the water to your land."

"But if you're on the 'third bench' that I hear them talking about so much—then what do you do up there, a thousand or two feet above the river?"

"You go back where you come from if you're wise," said Smith.

When they reached the section which, according to Smith, had not all been taken up by the Indians already, the party got out occasionally for closer inspection of the land. The men gravely trickled the soil through their fingers, while the women grabbed at the sweet-smelling herbs which grew in abundance everywhere, and tore their sleeves reaching for the clusters⁷¹ of bullberries, then turning red.

Dr. Slavens and William Bentley tried for fish, with a total catch between them of one small trout, which was carried in triumph to the place picked upon by Smith for the noonday camp. Smith would not trust the coffee to any hand but his own, and he blackened up the pot shamefully, Mrs. Reed declared.

But what did Smith care for the criticism of Mrs. Reed when he was making coffee for Agnes? What did he care, indeed, for the judgment of the whole world when he was laying out his best efforts to please the finest woman who ever sat beside him on the box, and one for whom he was ready to go any distance, and do any endeavors, to save her from being made a sucker of and taken in and skinned?

It was pleasant there by the river; so pleasant that there was not one of them but voted Wyoming the finest and most congenial spot in the world, with the kindest skies, the softest summer winds, and the one place of all places for a home.

“Yes,” Smith remarked, tossing pebbles into the river from the place where he sat cross-legged on the ground with his pipe, “it takes a hold of you that way. It goes to twenty below in the winter, sometimes, and the wind blows like the plug had popped out of the North Pole, and the snow covers up the sheep on the range and smothers ’em, and you lose all you got down to the last chaw of t’backer. But you stick, some way, and you forgit you ever had a home back in Indiana, where strawberries grow.”

“Why, don’t they grow here?” asked the miller’s wife, holding a bunch of red bullberries caressingly against her cheek.

“I ain’t seen a natural strawberry in fourteen years,” said Smith, more proud than regretful, as if such a long abstinence were a virtue.

“Natural?” repeated Mrs. Reed. “Surely you don’t mean that they manufacture them here?”

“They send ’em here in cans,” explained Smith, “pale, with sour water on ’em no more like real, ma’am, than a cigarette’s like a smoke.”

The men with pipes chuckled their appreciation of the comparison. Horace Bentley, with a fresh cigarette—which he had taken out of a silver case—in his fingers, turned it, quizzically smiling as he struck a match.

“It’s an imitation,” said he; “but it’s good enough for me.”

The sun was slanting near the rough hills beyond the river when they started back to Comanche.

“You’ve seen the best of the reservation,” explained Smith, “and they ain’t no earthly use in seein’ the worst of it.”

They were well along on the way, passing through a rough and outcast stretch of country, where upheaved ledges stood on edge, and great blocks of stone poised menacingly on the brows of shattered cliffs, when Smith,

who had been looking sharply ahead, pulled in suddenly and turned to Agnes with apologetic questioning in his eyes. It seemed to her that he had something on his mind which he was afraid to put into words.

“What is it, Mr. Smith?” she asked.

“I was just goin’ to say, would you mind goin’ inside and lettin’ that doctor man take your place for a while?”

Smith doubtless had his reason, she thought, although it hurt her pride that he should withhold his confidence. But she yielded her place without further questioning, with a great amount of blushing over the stocking which a protruding screwhead was responsible for her showing to Dr. Slavens as he assisted her to the ground.

The sudden stop, the excitement incident to changing places, threw the women within the coach into a cackle.

“Is it robbers?” demanded Mrs. Reed, getting hold of June’s hand and clinging to it protectingly as she put her head out and peered up at Smith, who was sitting there stolidly, his eyes on the winding trail ahead, his foot on the brake.

“No, ma’am,” answered Smith, not looking in her direction at all.

“What is it, then?” quavered Mrs. Mann from the other side of the stage.

She could not see Smith, and the desolation of their surroundings set her fancy at work stationing dusty cowboy bandits behind each riven, lowering stone.

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“Oh, I *hope* it’s robbers!” said June, bouncing up and down in her seat. “That would be just fine!”

“Hush, hush!” commanded her mother, shaking her correctively. “Such a wicked wish!”

Milo Strong, the teacher from Iowa, had grown very pale. He buttoned his coat and kept one hand in the region of his belt. One second he peered wildly out of the windows on his side, the next he strained to see if devastation and ruin were approaching from the other.

“Smith doubtless had some very commonplace reason for making the change,” said William Bentley, making room for Agnes beside him. “I expect Miss Horton talked too much.”

With that the stage started and their fears subsided somewhat. On the box Smith was looking sharply at the doctor. Then he asked:

“Can you drive better than you can shoot, or shoot better than you can drive?”

“I guess it’s about a stand-off,” replied the doctor without a ripple of excitement; “but I was brought up with four mules.”

Without another word Smith stood on the footboard, and Dr. Slavens slid along to his place. Smith handed the physician the lines and took the big revolver from its pocket by the seat.

“Two fellers on horseback,” said he, keeping his eyes sharply on the boulder-hedged road, “has been dodgin’ along the top of that ridge kind of suspicious. No reason why any honest man would want to ride along ⁷⁵up there among the rocks when he could ride down here where it’s smooth. They may be straight or they may be crooked. I don’t know. But you meet all kinds along this road.”

The doctor nodded. Smith said no more, but stood, one knee on the seat, with his pistol held in readiness for instant action. When they reached the top of the ridge nobody was in sight, but there were boulders enough, and big enough, on every hand to conceal an army. Smith nodded; the doctor pulled up.

The stage had no sooner stopped than Walker was out, his pistol in hand, ready to show June and all her female relatives so dear that he was there to stand between them and danger as long as their peril might last.

Smith looked around carefully.

“Funny about them two fellers!” he muttered.

From the inside of the stage came June’s voice, raised in admiration of Mr. Walker’s intrepidity, and her mother’s voice, commanding her to be silent, and not draw down upon them the fury of the bandits, who even then might be taking aim at them from behind a rock.

Nobody appearing, between whom and June he might precipitate himself, Walker mounted a rock for a look around. He had no more than reached the top when the two horsemen who had caused the flurry rode from behind the house-size boulder which had hidden them, turned their backs, crouching in their saddles as if to hide their identity, and galloped off. ⁷⁶

“Huh! Old Hun Shanklin’s one of ’em,” sniffed Smith, plainly disgusted that the affair had turned out so poorly.

He put his weapon back in its place and took the lines.

“And that feller, he don’t have to go around holdin’ people up with a gun in his hand,” he added. “He’s got a safer and surer game of it than that.”

“And that’s no cross-eyed view of it, either,” Dr. Slavens agreed.

Walker came over and stood beside the near wheel.

“One of them was Hun Shanklin!” said he, whispering up loudly for the doctor’s ear, a look of deep concern on his youthful face.

Slavens nodded with what show of unconcern he could assume. For, knowing what he knew, he wondered what the gambler was there for, and why he seemed so anxious to keep the matter of his identity to himself.

When they arrived at Comanche the sun was down. Mrs. Reed hurried June indoors, all exclamations and shudders over what she believed to have been a very narrow escape. Vowing that she never would go exploring around in that wild land again, she whisked off without a word for Smith.

The others shook hands with the driver, Agnes coming last. He took off his hat when it came her turn.

“Keep your eyes skinned,” he advised her, “and don’t let ’em play you for a sucker. Any time you need advice, or any help that I can give you, if I’m not here I’m on the road between here and Meander. You can git me over there by telephone.”

“Thank you, Mr. Smith,” said she warmly and genuinely, wondering why he should take such an unaccountable interest in her.

The others had gone about their business, thinking strongly of supper, leaving Smith and her alone beside the old green stage.

“But don’t ask for Smith if you call me up,” said he, “for that’s only my first name, and they’s a horse-wrangler over there with that for his last. They might think you wanted him.”

“Oh, I didn’t know!” she stammered, all confusion over the familiarity that she had been taking all day. “I didn’t know your other name—nobody ever told me.”

“No; not many of ’em down here knows it,” he responded. “But up at Meander, at the barn, they know it. It’s Phogenphole.”

“Oh!”

“But if you don’t like it,” added Smith, speaking with great fervor, and leaning toward her a little eagerly and earnestly, “I’ll have a bill put through the Legislature down at Cheyenne and change it!”

They ate supper that evening by lantern-light, with the night noise of Comanche beginning to rise around them earlier than usual. Those who were there for the reaping realized that it would be their last big night, for on the morrow the drawing would fall. After the first day's numbers had been taken from the wheel at Meander, which would run up into the thousands, the waiting crowds would melt away from Comanche as fast as trains could carry them. So those who were on the make had both hands out in Comanche that night.

They all wondered how it would turn out for them, the lumberman and the insurance agent—who had not been of the party that day in Smith's coach—offering to lay bets that nobody in the mess would draw a number below five hundred. There were no takers. Then they offered to bet that all in the mess would draw under five hundred. Mrs. Reed rebuked them for their gambling spirit, which, she said, was rampant in Comanche, like a plague.

CHAPTER VI

THE DRAWING

As has been previously said, one must go fast and far to come to a place where there is neither a Hotel Metropole nor a newspaper. Doubtless there are communities of civilized men on the North American continent where there is neither, but Comanche was not one of them.

In Comanche the paper was a daily. Its editor was a single-barreled grafter who wore a green mohair coat and dyed whiskers. His office and establishment occupied an entire twelve-by-sixteen tent; the name of the paper was *The Chieftain*.

The Chieftain had been one of the first enterprises of Comanche. It got there ahead of the first train, arriving in a wagon, fully equipped. The editor had an old zinc cut of a two-storied brick business house on a corner, which he had run with a grocery-store advertisement when he was getting out a paper in Tulsa, Oklahoma. This he now made use of with impressive effect and inspiring display of his cheerful confidence in his own future and that of the town where, like a blowing seed of cottonwood, he had found lodgment.

He ran this cut in every issue at the top of what would have been his editorial column if there had been time for him to write one, with these words:

FUTURE HOME OF THE CHIEFTAIN ON THE
CORNER THIS PAPER NOW OCCUPIES,
AS DESIGNED BY THE EDITOR AND
OWNER, J. WALTER MONG

From the start that Editor Mong was making in Comanche his dream did not appear at all unreasonable. Everybody in the place advertised, owing to some subtle influence of which Mr. Mong was master, and which is known to editors of his brand wherever they are to be found. If a business man had the shield of respectability to present to all questioners, he advertised out of pride and civic spirit; if he had a past, J. Walter Mong had a nose, sharpened

by long training in picking up such scents; and so he advertised out of expediency.

That being the way matters stood, *The Chieftain* carried very little but advertisements. They paid better than news, and news could wait its turn, said the editor, until he settled down steadily into a weekly and had room for it.

But Mr. Mong laid himself out to give the returns from the drawing for homesteads, it being one of those rare chances in which an editor could combine business and news without putting on an extra form. The headquarters of the United States land-office for that territory being at Meander, the drawing was to take place there. Meander was sixty miles farther along, connected with the railroad and Comanche by stage and telephone. So, every hour of the eventful day, Editor Mong was going to issue an extra on telephonic information from the seat of the drawing.

On the day of the drawing, which came as clear and bright as the painted dreams of those who trooped Comanche's streets, there remained in the town, after the flitting entrants had come and gone, fully thirty thousand expectant people. They were those in whom the hope of low numbers was strong. For one drawing a low number must make his selection of land and file on it at Meander within a few days.

In the case of the first number, the lucky drawer would have but three days to make his selection and file on it. If he lapsed, then Number Two became Number One, and all down the line the numbers advanced one.

So, in case that the winner of Number One had registered and gone home to the far East or the middle states, he couldn't get back in time to save his valuable chance. That gave big hope to those who expected nothing better than seven or nine or something under twenty. Three or four lapses ahead of them would move them along, each peg adding thousands to their winnings, each day running out for them in golden sands.

By dawn the streets were filled by early skirmishers for breakfast, and sunrise met thousands more who, luggage in hand, talked and gesticulated and blocked the dusty passages between the unstable walls of that city of chance, which soon would come down and disappear like smoke from a wayside fire. The thousands with their bags in hand would not sleep another night beneath its wind-restless roofs. All those who expected to draw Claim Number One were ready to take the stage or hire a special conveyance to

Meander, or, failing of their expectations in the lottery, to board the special trains which the railroad had made ready, and leave for home.

By nine o'clock it seemed to the waiting throngs that several ordinary days had passed since they left their sagging canvas cots at daybreak to stand attendant upon the whim of chance. They gathered in the blazing sun in front of the office of the paper, looking in at Editor Mong, who seemed more like a quack doctor that morning than ever before, with his wrinkled coat-sleeves pushed above his elbows and his cuffs tucked back over them, his black-dyed whiskers gleaming in shades of green when the sun hit them, like the plumage of a crow.

For all the news that came to Comanche over the telephone-wire that day must come through the office of *The Chieftain*. There was but one telephone in the town; that was in the office of the stage-line, and by arrangement with its owners, the editor had bottled up the slightest chance of a leak.

There would be no bulletins, the editor announced. Anyone desiring news of the drawing must pay twenty-five cents for a copy of the paper containing it. It was the editor's one great chance for graft, and he meant to work it until it was winded.

The lottery was to open in Meander at ten o'clock; but long before that hour the quivering excitement which shook the fabric of Comanche had reached the tent where Mrs. Reed mothered it over the company of adventurers. The lumberman and insurance agent were away early; Sergeant Schaefer and Milo Strong followed them to the newspaper office very shortly; and the others sat out in front, watching the long shadows contract toward the peg that June had driven in the ground the day before at the line of ten o'clock.

"Well, this is the day," said William Bentley. "What will you take for your chance, Doctor?"

"Well, it wouldn't take very much to get it this morning," Dr. Slavens replied, peering thoughtfully at the ground, "for it's one of those things that grow smaller and smaller the nearer you approach."

"I'd say twenty-five hundred for mine," offered Horace.

"Great lands!" exclaimed Mrs. Reed, blinking, as she looked out across the open toward the river. "If anybody will give me three dollars for my chance he can take it, and welcome."

“Then you’d feel cheap if you won,” June put in. “It’s worth more than that even up in the thousands; isn’t it, Mr. Walker?”

Walker was warm in his declaration that it would be a mighty small and poor piece of Wyoming that wouldn’t be worth more than that.

“We haven’t heard from you, Miss Horton,” said William Bentley.

“I’m afraid nothing would tempt me to part with my chance,” Agnes replied. “I hold it just the reverse of Dr. Slavens. The longer I look at it the bigger it gets.”

The doctor was the only one present who understood fully how much she had built around that chance. Their eyes met as he looked across at her; he remembered what she had said of planting trees, and having roses beside her door.

“It’s almost there!” cried June, looking at her stake.

“Twenty minutes yet,” announced Horace, who sat with his watch in his palm.

They were all bonneted and booted, ready for an expedition, although they had none in sight. It was as if they expected Number One to come flying through the town, to be caught and held by the swiftest of foot, the one alert and ready to spring up and dash after it.

“Shall we go over to the newspaper office?” asked the doctor, looking across again and catching Agnes’ eyes.

June jumped up and accepted the proposal for all.

“Oh, let’s do!” she exclaimed. “Let’s be there to get the very first word!”

On the part of the ladies there was a dash into the tent to adjust their headgear before glasses and to renew the powder on their noses. While they were gone Horace Bentley, the lawyer, stood with his watch exposed to his impatient eye.

“In five minutes,” he announced as the ladies rejoined them, “they will draw the first name from the wheel at Meander. I hope that it may be the name of someone in this party.”

“I hope it will be yours,” said Dr. Slavens’ eyes as he looked earnestly at Agnes; and: “Number Two would do very well for me in case your name came first,” her eyes seemed to answer him.

But there was none by who knew what had passed between them of their hopes, so none could read the messages, even if there had been any so curious as to try.

Mrs. Mann was humming a little song as they started away toward the newspaper office, for she was tiring of Wyoming, where she had not seen a single cowboy yet; and the prospect of returning to the miller was growing dear to her heart. There was a quiet over Comanche that morning which seemed different from the usual comparative peace of that portion of the day—a strained and fevered quiet, as of hushed winds before a gale. It took hold of even June as the party passed through the main street, joining the stream of traffic which pressed in one direction only.

They could not arrive within a square of the newspaper-tent, for the crowd around it was packed and dense; so they stopped where there was breathing-space among groups of men who stood with their gripsacks between their feet, waiting for the first word.

At five minutes past ten the editor of *The Chieftain* handed his printer a slip of paper, and the name of the winner of Claim Number One was put in type. The news was carried by one who pushed through the throng, his hat on the back of his head, sweat drenching his face. The man was in a buck-a-gue over the prospect of that name being his own, it seemed, and thought only of drawing away from the sudden glare of fortune until he could collect his wits.

Some people are that way—the timid ones of the earth. They go through life leaving a string of baited traps behind them, lacking courage to go back and see what they have caught.

More than two hundred names were in the first extra run off *The Chieftain's* press at half-past ten. The name of the winner of Number One was Axel Peterson; his home in Meander, right where he could step across the street and file without losing a minute.

Milo Strong, the schoolmaster from Iowa, drew Number Thirty-Seven. None of the others in the colony at the Hotel Metropole figured in the first returns.

They went back as silently as they had come, the doctor carrying the list in his hand. Before the tent stood the lumberman and the insurance agent, their bags in their hands.

“We’ve got just six minutes to catch the first train out,” said the insurance agent, his big smile just as wide as ever. “Good luck to you all, and hope we meet again.”

The lumberman waved his farewell as he ran. For them the gamble was off. They had staked on coming in below one hundred, and they had lost. There was nothing more to hang around Comanche for, and it is supposed that they caught the train, for they were seen there no more.

There were several hundred others in that quick-coming and quick-going population whose hopes were dispersed by the printed list. And so the town suffered a heavy drain with the departure of the first train for the East. The railroad company, foreseeing the desire to be gone, had arranged a long string of coaches, with two engines hitched up and panting to set out. The train pulled away with every inch of space occupied.

All day the enterprising editor printed and sold extras. His press, run by an impertinent little gasoline engine, could turn out eighteen hundred of those single-sheet dodgers in an hour, but it couldn't turn them out fast enough. Every time Editor Mong looked out of his tent and saw two men reading one paper he cursed his limited vision which had stood in the way of putting sixty dollars more into a press of twice that capacity. As it was, the day's work brought him nearly three thousand dollars, money on the spot; no back subscriptions to worry over, no cabbage or cordwood in exchange.

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When the drawing closed for the day and the last extra was off, more than three thousand numbers had been taken from the wheel at Meander. The only one among the Metropole colony to draw after the first published list was Agnes Horton. Claim Number Nine Hundred and Five fell to her lot.

Claims that high were useless, and everybody knew it; so interest dropped away, the little gasoline engine popped its last impertinent pop and subsided, and the crowds drifted off to get ready to depart as fast as trains could be made up to haul them. Sergeant Schaefer, having failed of his expectations, felt a revival of interest in the military life, and announced that he would leave on the first train out next morning.

That night the price of cots suffered a dispiriting drop. Fifty cents would hire the most exclusive bed in the phantom city of Comanche.

As for Dr. Slavens, the day's events had left him with a dazed feeling of insecurity. His air was cleared of hope; he could not touch a stable bit of footing as far around him as he could reach. He had counted a good deal on drawing something along in the early hundreds; and as the day wore along to his disappointment in that hope he thought that he might come tagging in

at the end, in the mean way that his cross-grained luck had of humiliating him and of forcing the fact that he was more or less a failure before his eyes.

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No matter what he drew under three thousand, he said, he'd take it and be thankful for it. If he could locate on a trickle of water somewhere and start out with a dozen ewes and a ram, he'd bury himself away in the desert and pull the edges of it up around him to keep out the disappointments of the world. A man might come out of it in a few years with enough money—that impenetrable armor which gives security even to fools—to buy a high place for himself, if he couldn't win it otherwise. Men had done well on small beginnings with sheep; that country was full of them; and it was a poor one, indeed, that wasn't able to buy up any ten doctors he could name.

So Dr. Slavens ran on, following the lead of a fresh dream, which had its foundation on the sands of despair. When the drawing had passed the high numbers which he had set as his possible lowest, he felt like sneaking away, whipped, to hide his discouragement where there was no one to see. His confounded luck wouldn't even grant him the opportunity of burying himself out there in that gray sea of blowing dust!

There was no use in trying to disguise the fact any longer; he was a fizzle. Some men were designed from the beginning for failures, and he was one of the plainest patterns that ever was made. There was a place for Axel Peterson, the alien, but there was no place for him.

In spite of his age and experience, he did not understand that the world values men according to the resistance they interpose against it; according to the stamping down of feet and the presenting of shoulders and the squaring arms to take its blows. Cowards make a front before it and get on with amazing success; droves of poltroons bluster and storm, with empty shells of hearts inside their ribs, and kick up a fine dust in the arena, under the cloud of which they snatch down many of the laurels which have been hung up for worthier men. Success lies principally in understanding that the whole game is a bluff on the world's part, and that the biggest bluffer in the ring takes down the purse.

But the timid hearts of the earth never learn this; the sentimentalists and the poets do not understand it. You can't go along sweeping a clear path for your feet with a bunch of flowers. What you need is a good, sound club. When a hairy shin impedes, whack it, or make a feint and a bluff. You'll be surprised how easily the terrifying hulks of adversity are charmed out of the

highway ahead of you by a little impertinence, a little ginger, and a little gall.

Many a man remains a coward all his life because somebody cowed him when he was a boy. Dr. Slavens had put his hands down, and had stood with his shoulders hunched, taking the world's thumps without striking back, for so many years in his melancholy life that his natural resistance had shrunk. On that day he was not as nature had intended him, but as circumstances had made him.

It had become the friendly fashion in camp for the doctor and Agnes⁹¹ to take a walk after supper. June's mother had frowned on the boldness of it, whispering to June's aunt. But the miller's wife, more liberal and romantic, wouldn't hear of whisperings. She said their conduct was as irreproachable in that country as eating peas with a spoon.

"I wish I was in her place!" she sighed.

"*Dorothy Ann!*" gasped Mrs. Reed. "Remember your husband, Dorothy Ann!"

"I do," sighed the miller's wife.

"Well, if you *were* in her place you'd ask somebody to accompany you on your moonlight strolls, I hope. I *hope* that's what you'd do, Dorothy Ann."

"No," answered the miller's wife thoughtfully. "I'd propose. She'll lose him if she doesn't."

On the evening of that day of blasted hopes the two of them walked away in the gloaming toward the river, with few words between them until they left the lights of Comanche behind.

"Mr. Strong is considerably elated over his luck," said Agnes at last, after many sidling glances at his gloomy profile.

"That's the way it goes," Dr. Slavens sighed. "I don't believe that chance is blind; I think it's just perverse. I should say, not counting myself, that Strong is the least deserving of any man in the crowd of us. Look at old Horace Bentley, the lawyer. He doesn't say anything, but you can see that his heart is aching with disappointment."⁹²

"I have noticed it," she agreed. "He hasn't said ten words since the last extra."

"When a man like that dreams, he dreams hard—and deep," the doctor continued. "But how about yourself?"

She laughed, and placed a restraining hand upon his arm.

"You're going too fast," she panted. "I'll be winded before we get to the river."

"I guess I was trying to overtake my hopes," said he. "I'm sorry; we'll go slower—in all things—the rest of the way."

She looked at him quickly, a little curiously, but there was no explanation in his eyes, fixed on the graying landscape beyond the river.

"It looks like ashes," said he softly, with a motion of the hand toward the naked hills. "There is no life in it; there is nothing of the dead. It is a cenotaph of dreams. But how about your claim?"

"It's a little farther up than I had expected," she admitted, but with a cheerful show of courage which she did not altogether feel.

"Yes; it puts you out of the chance of drawing any agricultural land, throws you into the grazing and mineral," said he.

"Unless there are a great many lapses," she suggested.

"There will be hundreds, in my opinion," he declared. "But in case there are not enough to bring you down to the claim worth having—one upon which you could plant trees and roses and such things?"

"I'll stick to it anyhow," said she determinedly.

"So this is going to be home?" he asked.

"Home," she answered with a caressing touch upon the word. "I came here to make it; I sha'n't go away without it. I don't know just how long it will take me, nor how hard it will be, but I'm going to collect interest on my hopes from this country before I turn my back."

"You seem to believe in it," said he.

"Perhaps I believe more in myself," she answered thoughtfully. "Have you determined what you are going to do?"

He laughed—a short, harsh expression of ironical bitterness.

"I've gone through the mill today of heat and cold," said he. "First, I was going to sell my relinquishment for ten thousand dollars as soon as the law would allow, but by noon I had come down to five hundred. After that I took up the notion of sheep stronger than Milo, from Iowa, ever thought of it. It took just one more extra to put that fire out, and now the ashes of it aren't even warm. Just what my next phantasy will be I can't say."

"But you're going to stay here, aren't you?"

"I've thought of that, too. I've thought of making another try at it in a professional way. But this is a big, empty country. Few people live in it and fewer die. I don't know."

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"Well, you're a doctor, not an undertaker, anyhow," she reminded him.

"Yes; I missed my calling," he laughed, with the bitterness of defeat.

"No," she corrected; "I didn't mean that. But perhaps at something else you might get on faster here—business of some kind, I mean."

"If I had the chance!" he exclaimed wearily, flinging his hat to the ground as he sat beside her on a boulder at the river's edge. "I've never had a square and open chance at anything yet."

"I don't know, of course," said she. "But the trouble with most of us, it seems to me, is that we haven't the quickness or the courage to take hold of the chance when it comes. All of us let so many good ones get away."

Dusk had deepened. The star-glow was upon the river, placid there in its serene approach to the rough passage beyond. He sat there, the wind lifting the hair upon his forehead, pondering what she had said.

Was it possible that a man could walk blindly by his chances for thirty-five years, only to be grasping, empty-palmed, after them when they had whisked away? For what else did his complainings signify? He had lacked the courage or the quickness, or some essential, as she had said, to lay hold of them before they fled away beyond his reach forever.

There was a chance beside him going to waste tonight—a golden, great chance. Not for lack of courage would he let it pass, he reflected; but let it pass he must. He wanted to tell her that he would be a different man if he could remain near her all the rest of his years; he longed to say that he desired dearly to help her smooth the rough land and plant the trees and draw the water in that place which she dreamed of and called home.

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But there was nothing in his past to justify her confidence in his future. Women worth having did not marry forlorn hopes in the expectation of making a profit out of them by and by. He had no hearth to offer her; he had no thatch; he had not a rood of land to lead a mountain stream across and set with the emerald and royal purple of alfalfa; not a foot of greensward beside the river, where a yeanning ewe might lie and ease the burden of her pains. He had nothing to offer, nothing to give. If he asked, it must be to receive all and return nothing, except whatever of constancy time might prove out of his heart.

If he had even a plan to lay down before her and ask her to share, it would be something, he thought; or a brave resolve, like her own. But there was emptiness all around him; his feet could not find a square yard of solid earth to shape his future upon. It was not that he believed that she cared for money or the material rewards of success, for she had spoken bitterly of that. The ghosts of money's victims were behind her; she had said as much the first time they had talked of their hopes in that new land. 96

There must be something in that place for him, as she had said; there must be an unimproved opportunity which Fate had fashioned for his hand. Hope lifted its resilient head again. Before the morning he must have a plan, and when he had the plan he would speak.

"We'll have to be breaking up camp in a day or two more," Agnes said, disturbing the long silence which had settled between them.

"I suppose so," he responded; "but I don't know what the plans of the others are."

"Mr. Strong is going to Meander in the morning," she told him; "and Horace Bentley is going with him, poor fellow, to look around, he says. William Bentley told me this evening that he would leave for home in a day or two, and Mrs. Reed and her charges are waiting to hear from a friend of June's who was in school with her—I think she is the Governor's daughter, or maybe he's an ex-governor—about a long-standing invitation to visit her in her summer home, which is near here, as they compute distances in Wyoming."

"And Schaefer is leaving in the morning," reflected the doctor. "That leaves but you and me unaccounted for. Are you going on to Meander soon?"

"Yes; I want to be there to file when my time comes."

"I've thought of going over there to feel things out, too," Dr. Slavens went on. "This place will shrink in a few days like a piece of wet leather in the sun. They'll have nothing left of it but the stores, and no business to sustain them until the country around here is settled. That may be a long 97 time yet. Still, there may be something around here for me. I'm going to look into the possibilities tomorrow. And we'll have at least another talk before we part?"

"Many more, I hope," she said.

Her answer presented an alluring lead for him to say more, but before he could speak, even if minded to do it, she went on:

“This has been a pleasant experience, this camping in the clean, unused country, and it would be a sort of Persian poet existence if we could go on with it always; but of course we can’t.”

“It isn’t all summer and fair skies here,” he reminded her, “any more than it is in—well, Persia. Twenty below in winter sometimes, Smith said. Do you remember?”

“Yes,” she sighed. “But it seems impossible.”

“You wouldn’t believe this little river could turn into a wild and savage torrent, either, a few hundred yards along, if you had nothing to judge it by but this quiet stretch,” he returned. “But listen to it down there, crashing against the rocks!”

“There’s no news of that rash man who went into the cañon for the newspaper?” Agnes asked.

“He must have lodged in there somewhere; they haven’t picked him up on the other side,” he said, a thoughtful abstraction over him.

“I hope you’ve given up the thought of trying to explore it?”

98

“I haven’t thought much about it lately,” he replied; “but I’m of the same opinion. I believe the difficulties of the cañon are greatly exaggerated. In fact, as I told you before, the reward posted by that newspaper looks to me like easy money.”

“It wouldn’t pay you if the reward were ten times as large,” she declared with a little argumentative heat.

“Perhaps not,” said he, as if he had but a passing and shallow interest in the subject.

Sitting there bareheaded to the wind, which was dropping down coldly from the far mountains, he seemed to be in a brooding humor.

“The moon is late tonight,” he noted. “Shall we wait till it rises?”

“Yes,” she answered, feeling the great gentleness that there was about him when he was in a serious way.

Why he had not been successful in the profession for which nature plainly had designed him she could not understand; for he was a man to inspire confidence when he was at his best, and unvexed by the memory of the bitter waters which had passed his lips. She felt that there would be

immeasurable solace in his hand for one who suffered; she knew that he would put down all that he had in life for a friend.

Leaning her chin upon her palm, she looked at him in the last light of the west, which came down to them dimly, as if falling through dun water, from some high-floating clouds. As if following in her thought something that had gone before, she said: 99

“No; perhaps you should not stay in this big, empty country when there are crowded places in the world that are full of pain, and little children in them dying for the want of such men as you.”

He started and turned toward her, putting out his hand as if to place it upon her head.

“How did you know that it’s the children that give me the strongest call back to the struggle?” he asked.

“It’s in your eyes,” said she. And beneath her breath she added: “In your heart.”

“About all the success that I ever won I sacrificed for a child,” he said, with reminiscent sadness.

“Will you tell me about it?”

“It was a charity case at that,” he explained, “a little girl who had been burned in a fire which took all the rest of the family. She needed twenty-two square inches of skin on her breast. One gave all that he could very well part with—”

“That was yourself,” she nodded, drawing a little nearer to him quite unconsciously.

“But that was not half enough,” he continued as if unaware of the interruption. “I had to get it into the papers and ask for volunteers, for you know that an average of only one in three pieces of cuticle adheres when set into a wound, especially a burn. The papers made a good deal of it, and I couldn’t keep my name out, of course. Well, enough school-children came forward to patch up three or four girls, and together we saved her. 100

“No matter. The medical association of that city jumped me very promptly. The old chaps said that I had handled the case unprofessionally and had used it merely for an advertisement. They charged unprofessional conduct against me; they tried me in their high court and found me guilty. They dug the ground from under my feet and branded me as a quack. They broke me, they tried to have my license to practice revoked. But they failed

in that. That was three years ago. I hung on, but I starved. So when I speak in what may seem a bitter way of the narrow traditions of my profession, you know my reason is fairly well grounded.”

“But you saved the little girl!”

It was too dark for him to see her eyes. The tears that lay in them could not drop their balm upon his heart.

“She’s as good as new,” said he cheerfully, fingering the inner pocket of his coat. “She writes to me right along. Here’s a picture-card that followed me here, mailed from the home that the man who gave his tough old hide to mend her found for her when she was well. She lives in Oklahoma now, and her sweet fortitude under her misfortune has been a remembrance to sustain me over many a hungry day.”

“But you saved the little girl!” Agnes repeated with unaccountable insistence, as if trying to beat down the injustice of his heavy penance with that argument.

And then he saw her bow her head upon her folded arms like a little child, and weep in great sobs which came rackingly as if torn from the core of her heart.

Dr. Slavens picked up his hat, put it on, got to his feet, and took a stride away from her as if he could not bear the sight of her poignant sympathy. Then he turned, came back, and stooped above her, laying his hand upon her hair.

“Don’t do that!” he pleaded. “All that’s gone, all that I’ve missed, is not worth a single tear. You must not make my troubles your own, for at the worst there’s not enough for two.”

She reached out her tear-wet hand and clung to his, wordless for a little while. As it lay softly within his palm he stroked it soothingly and folded it between his hands as if to yield it freedom nevermore. Soon her gust of sorrow passed. She stood beside him, breathing brokenly in the ebb of that overmastering tide. In the opening of the broad valley the moon stood redly. The wind trailed slowly from the hills to meet it, as if to warm itself at its beacon-fire.

“You saved the little girl!” said she again, laying her warm hand for a moment against his cheek.

In that moment it was well for Dr. Warren Slavens that the lesson of his hard years was deep within his heart; that the continence and abnegation of

his past had ripened his restraint until, no matter how his lips might yearn to the sweets which were not his own, they would not taste. He took hold of himself with a rough hand, for the moonlight was upon her trembling lips; it stood imprisoned in the undried tears which lay upon her cheeks.

The invitation was there, and the time, such as the lines of a man's life are plotted to lead up to from the beginning. But there was lacking too much on his part for an honest man to stoop and gather what presented. He might have folded his arms about her and drawn her to his breast, as the yearning of his soul desired; he might have kissed her lips and dispelled the moonlight from her trembling tears—and spoiled it all for both.

For that would have been a trespass without mitigation, a sacrilege beyond excuse. When a man took a woman like that in his arms and kissed her, according to his old-fashioned belief, he took from every other man the right to do so, ever. In such case he must have a refuge to offer her from the world's encroachments, and a security to requite her in all that she yielded for his sake.

Such he had not. There was no hearthstone, there was no roof-tree, there was no corner of refuge in all the vast, gray world. He had no right to take where he could not give, although it wrenched his heart to give it up.

He took the soft, warm hand which had bestowed its benediction on his cheek, and held it in childish attitude, swinging at his side. No word was said as they faced back to the unstable city, their shadows trailing them, long and grotesque, like the sins of men which come after them, and gambol and grimace for all the world to see but those who believe them hidden.

CHAPTER VII

A MIDNIGHT EXTRA

Dr. Slavens sat on the edge of his cot, counting his money. He hadn't a great deal, so the job was not long. When he finished he tucked it all away in his instrument-case except the few coins which he retained in his palm.

It would not last much longer, thought he. A turn would have to be made soon, or he must hunt a job on the railroad or a ranch. Walker had talked a lot about having Dr. Slavens come in on the new sheep venture with him, on the supposition, of course, that the physician had money. Walker had told him also a great deal about men who had started in that country as herders, "running a band of sheep" on shares, receiving so much of the increase of the flock year by year. Many of the richest sheepmen in that country had started that way only a few years before, so Walker and others said.

Perhaps, thought Dr. Slavens, there might be a chance to hook up with Walker under such an arrangement, put his whole life into it, and learn the business from the ground up. He could be doing that while Agnes was making her home on her claim, perhaps somewhere near—a few hundred miles—and if he could see a gleam at the farther end of the undertaking after a season he could ask her to wait. That was the best that he could see in the prospect just then, he reflected as he sat there with his useless instrument-case between his feet and the residue of the day's expenses in his hand.

Agnes had gone into the section of the tent sacred to the women; he supposed that she was going to bed, for it was nearly eleven o'clock. Strong and Horace were asleep in their bunks, for they were to take the early stage for Meander in the morning. Walker and William Bentley and Sergeant Schaefer were out.

The little spark of hope had begun to glow under Slavens' breath. Perhaps Walker and sheep were the solution of his life's muddle. He would find Walker before the young man took somebody else in with him, expose the true state of his finances, and see whether Walker would entertain a proposal to give him a band of sheep on shares.

Like every man who is trying to do something that he isn't fitted to, because he has failed of his hopes and expectations in the occupation

dearest to his heart, Slavens heated up like a tin stove under the trashy fuel of every vagrant scheme that blew into his brain.

Sheep was all that he could see now. Already he had projected ahead until he saw himself the complacent owner of vast herds; saw the miles of his ranches; saw the wool of his flocks being trampled into the long sacks in his own shearing-sheds. And all the time his impotent instrument-case shone darkly in the light of his candle, lying there between his feet at the edge of the canvas bed.

With a sigh he came back from his long flight into the future, and took up his instrument-case with caressing hand. Placing it on his knees, he opened it and lifted the glittering instruments fondly.

Of course, if he *could* make it go at his profession that would be the thing. It would be better than all the sheep on Wyoming's dusty hills. A little surgery somewhere, with its enameled table and white fittings, and automobiles coming and going all day, and Agnes to look in at evening—. Yes, that *would* be the thing.

Perhaps sheep for a few years would help to that end. Even five years would leave him right in the middle stretch of life, with all his vigor and all the benefit of experience. Sheep looked like the solution indeed. So *thinking*, he blew out his candle and went out to look for Walker.

At the door of the tent he stopped, thinking again of Agnes, and of the moonlight on her face as they stood by the riverside, trembling again when the weight of the temptation which had assailed him in that moment swept over him in a heart-lifting memory. Perhaps Agnes condemned him for refusing the opportunity of her lips. For when a woman expects to be kissed, and is cheated in that expectation, it leaves her in censorious mood. But scorn of an hour would be easier borne than regret of years. 107

So he reflected, and shook his head solemnly at the thought. He passed into the shadows along the deserted street, going toward the sounds which rose from beneath the lights beyond.

Comanche appeared livelier than ever as he passed along its thronged streets. Those who were to leave as soon as they could get a train were making a last reckless night of it; the gamblers were busy at their various games.

The doctor passed the tent where Hun Shanklin had been stationed with his crescent table. Shanklin was gone, and another was in his place with an

army-game board, or chuck-a-luck, doing well with the minnows in the receding sea. Wondering what had become of Shanklin, he turned to go down a dark little street which was a quick cut to the back entrance of the big gambling-tent, where he expected to find Walker and go into the matter of sheep.

Even at that moment the lights were bright in the office of *The Chieftain*. The editor was there, his green coat wide open, exposing his egg-spattered shirt-front to all who stopped to look, and making a prodigious show of excitement at the imposing-stone, where the form of the last extra of the day lay under his nervous hand.

The printer was there also, his hair standing straight where he had roached it back out of his eyes with inky fingers, setting type for all he was worth. In a little while those on the street heard the familiar bark of the little gasoline engine, and hundreds of them gathered to inquire into the cause of this late activity.

“Running off an extra,” said Editor Mong. A great, an important piece of news had just reached the office of *The Chieftain*, and in a few minutes an extra would be on the streets, with the secret at the disposal of every man who had two bits in his pants. Those were the identical words of that advance-guard of civilization and refinement, Mr. J. Walter Mong.

It was midnight when the circulator of *The Chieftain*—engaged for that important day only—burst out of the tent with an armful of papers, crying them in a voice that would have been red if voices had been colored in Comanche, it was so scorched from coming out of the tract which carried liquor to his reservoir.

“*Ho-o-o!* Git a extree! Git a extree! All about the mistake in the winner of Number One! Git a extree! *Ho-o-o-o!*”

People caught their breaths and stopped to lean and listen. Mistake in the winner of Number One? What was that? The parched voice was plain enough in that statement:

“Mistake in the winner of Number One.”

A crowd hundreds deep quickly surrounded the vender of extras, and another crowd assembled in front of the office, where Editor Mong stood with a pile of papers at his hand, changing them into money almost as fast as that miracle is performed by the presses of the United States Treasury. ¹⁰⁹

Walker and William Bentley bored through the throng and bought a paper. Standing under the light at a saloon door, they read the exciting news. Editor Mong had cleared a place for it, without regard to the beginning or the ending of anything else on the page, in the form which had carried his last extra of the day. There the announcement stood in bold type, two columns wide, under an exclamatory

EXTRA!

William Bentley read aloud:

Owing to a mistake in transmitting the news by telephone, the name of the winner of Claim Number One in today's land-drawing at Meander was omitted. The list of winners published heretofore in *The Chieftain* is correct, with the single exception that each of them moves along one number. Number One, as announced, becomes Number Two, and so on down the list.

The editor regrets this error, which was due entirely to the excitement and confusion in the office at Meander, and takes this earliest opportunity of rectifying it.

The editor also desires to announce that *The Chieftain* will appear no longer as a daily paper. Beginning with next Monday it will be issued as a four-page, five-column weekly, containing all the state, national, and foreign news. Price three dollars a year in advance. The editor thanks you for your loyal support and patronage.

The winner of Claim Number One is Dr. Warren Slavens, of Kansas City, Missouri. Axel Peterson, first announced as the winner, drew Number Two.

Editor Mong had followed the tradition of the rural school of journalism in leaving the most important feature of his news for the last line. 110

"Well!" said the toolmaker. "So our doctor is the winner! But it's a marvel that the editor didn't turn the paper over to say so. I never saw such a botch at writing news!"

He did not know, any more than any of the thousands who read that ingenuous announcement, that Editor Mong was working his graft overtime. They did not know that he had entered into a conspiracy to deceive them before the drawing began, the clerk in charge of the stage-office and the one telephone of the place being in on the swindle.

Mong knew that the Meander stage would leave for Comanche at eight in the morning, or two hours before the drawing began. It was the only means, exclusive of the telephone, by which news could travel that day between the two places, and as it could carry no news of the drawing his scheme was secure.

Mong had feared that his extras might not move with the desired celerity during the entire day—in which expectation he was agreeably deceived—so he deliberately withheld the name of the winner of Number One,

substituting for it in his first extra the name of the winner of Number Two. He believed that every person in Comanche would rush out of bed with two bits in hand for the extra making the correction, and his guess was good.

Walker and Bentley hurried back to the Hotel Metropole to find that Sergeant Schaefer had arrived ahead of them with the news. They were all up in picturesque *déshabillé*, Horace with a blanket around him like a bald-headed brave, his bare feet showing beneath it. The camp was in a state of pleasurable excitement; but Dr. Slavens was not there to share it, nor to receive the congratulations which all were ready to offer with true sincerity.

"I wonder where he is?" questioned Horace a little impatiently.

He did not like to forego the ceremony, but he wanted to get back to bed, for a man's legs soon begin to feel chilly in that mountain wind.

"He left here not very long ago," said Agnes; "perhaps not more than an hour. I was just preparing to go to bed."

"It's a fine thing for him," commented Sergeant Schaefer. "He can relinquish as soon as he gets his papers for ten or twelve thousand dollars. I understand the railroad's willing to pay that."

"It's nice and comfortable to have a millionaire in our midst," said June. "Mother, you'd better set your cap for him."

"June Reed!" rebuked her mother sharply above the laughter which the proposal provoked.

But under the hand of the night the widow blushed warmly, and with a little stirring of the treasured leaves of romance in her breast. She *had* thought of trying for the doctor, for she was only forty-seven, and hope lives in the female heart much longer than any such trifling term. 112

They sat and talked over the change this belated news would make in the doctor's fortunes, and the men smoked their pipes, and the miller's wife suggested tea. But nobody wanted to kindle a fire, so she shivered a little and went off to bed.

The night wore on, Comanche howling and fiddling as it never had howled and fiddled before. One by one the doctor's friends tired of waiting for him and went to bed. Walker, William Bentley, and Agnes were the last of the guard; the hour was two o'clock in the morning.

"I believe you'd just as well go to bed, Miss Horton," suggested Bentley, "and save the pleasure of congratulating him until tomorrow. I can't understand why he doesn't come back."

“I didn’t know it was so late,” she excused, rising to act on his plainly sensible view of it.

“Walker and I will skirmish around and see if we can find him,” said Bentley. “It’s more than likely that he’s run across some old friend and is sitting talking somewhere. You’ve no notion how time slips by in such a meeting.”

“And perhaps he doesn’t know of his good fortune yet,” she suggested.

“Oh, it’s all over town long ago,” Walker put in. “He knows all about it by this time.”

“But it isn’t like him to keep away deliberately and shun sharing such good news with his friends,” she objected. 113

“Not at all like him,” agreed Bentley; “and that’s what’s worrying me.”

She watched them away until the gloom hid them; then went to her compartment in the tent, shut off from the others like it by gaily flowered calico, such as is used to cover the bed-comforts of the snoring proletariat. It was so thin that the light of a candle within revealed all to one without, or would have done so readily, if there had been any bold person on the pry.

There she drew the blanket of her cot about her and sat in the dark awaiting the return of Bentley and Walker. There was no sleep in her eyes, for her mind was full of tumult and foreboding and dread lest something had befallen Dr. Slavens in the pitfalls of that gray city, the true terrors and viciousness of which she could only surmise.

Bentley and Walker went their way in silence until they came to the lights. There was no thinning of the crowds yet, for the news in the midnight extra had given everybody a fresh excuse for celebrating, if not on their own accounts, then on account of their friends. Had not every holder of a number been set back one faint mark behind the line of his hopes?

Very well. It was not a thing to laugh over, certainly, but it was not to be mended by groans. So, if men might neither groan nor laugh, they could drink. And liquor was becoming cheaper in Comanche. It was the last big night; it was a wake. 114

“Well, I’ll tell you,” said Walker, “I don’t think we’d better look for him too hard, for if we found him he wouldn’t be in any shape to take back there by now.”

“You mean he’s celebrating his good luck?” asked Bentley.

“Sure,” Walker replied. “Any man would. But I don’t see what he wanted to go off and souse up alone for when he might have had good company.”

“I think you’ve guessed wrong, Walker,” said Bentley. “I never knew him to take a drink; I don’t believe he’d celebrate in that way.”

Even if he had bowled up, protested Walker, there was no harm in it. Any man might do it, he might do it himself; in fact, he was pretty sure that he *would do it*, under such happy conditions, although he believed a man ought to have a friend or two along on such occasions.

From place to place they threaded their way through the throng, which ran in back-currents and cross-currents, leaving behind it upon the bars and gaming-tables an alluvium of gold. Dr. Slavens was not at any of the tables; he was not reeling against any of the bars; nor was he to be seen anywhere in the sea of faces, mottled with shadows under the smoky lights.

“Walker, I’m worried,” Bentley confessed as they stood outside the last and lowest place of diversion that remained to be visited in the town.

“I tell you, it flies up and hits a man that way,” protested Walker. “Sheep-herders go that way all of a sudden after a year or two without a taste of booze, sometimes. He’ll turn up in a day or two, kind of mussed up and ashamed; but we’ll show him that it’s expected of a gentleman in this country once in a while, and make him feel at home.”

“Yes, of course,” Bentley agreed, his mind not on the young man’s chatter nor his own reply. “Well, let’s run through this hole and have it over with.”

Inside the door four dusty troopers, on detached duty from the military post beyond Meander, sat playing cards. As they appeared to be fairly sober, Walker approached them with inquiries.

No, they hadn’t seen Dr. Slavens. Why? What had he done? Who wanted him?

Explanations followed.

“Well,” said a sergeant with service-stripes on his sleeve and a broad, blue scar across his cheek, “if I’d ’a’ drawed Number One you bet you wouldn’t have to be out lookin’ for me. I’d be up on the highest point in Comanche handin’ out drinks to all my friends. Ain’t seen him, pardner. He ain’t come in here in the last two hours, for we’ve been right here at this table longer than that.”

They passed on, to look upon the drunken, noisy dance in progress beyond the canvas partition.

“Not here,” said Walker. “But say! There’s a man over there that I know.”

Bentley looked in that direction.

116

“The one dancing with the big woman in red,” directed Walker.

Bentley had only a glance at Walker’s friend, for the young man pulled his arm and hurried him out. Outside Walker seemed to breathe easier.

“I’ll tell you,” he explained. “It’s this way: I didn’t suppose he’d want to be seen in there by anybody that knew him. You see, he’s the Governor’s son.”

“Oh, I see,” said Bentley.

“So if we happen to run across him tomorrow you’ll not mention it, will you?”

“I’ll not be advertising it that I was in there in very big letters,” Bentley assured him.

“A man does that kind of a thing once in a while,” said Walker. “It bears out what I was saying about the doctor. No matter how steady a man is, it flies up and hits him that way once in a while.”

“Maybe you’re right,” yielded Bentley. “I think we’d just as well go to bed.”

“Just as well,” Walker agreed.

The chill of morning was in the air. As they went back the crowds had thinned to dregs, and the lights in many tents were out.

“She thinks a lot of him, doesn’t she?” observed Walker reflectively.

“Who?” asked Bentley, turning so quickly that it seemed as if he started.

“Miss Horton,” Walker replied. “And there’s class to that girl, I’m here to tell you!”

117

Agnes, in the darkness of her compartment, strained forward to catch the sound of the doctor’s voice when she heard them enter, and when she knew that he was not there a feeling which was half resentment, half accusation, rose within her. Was she to be disappointed in him at last? Had he no more strength in the happy light of his new fortune than to go out and “celebrate,” as she had heard the sergeant confidentially charging to Horace, like any low fellow in the sweating throng?

But this thought she put away from her with humiliation and self-reproach, knowing, after the first flash of vexation, that it was unjust. Her

fears rose towering and immense again; in the silence of the graying morning she shivered, drawing her cold feet up into the cot to listen and wait.

Walker and Bentley had gone quietly to bed, and in the stillness around her there was an invitation to sleep. But for her there was no sleep in all that night's allotment.

The roof of the tent toward the east grew transparent against the sky. Soon the yellow gleam of the new sun struck it, giving her a sudden warm moment of hope.

It is that way with us. When our dear one lies dying; when we have struggled through a night hideous with the phantoms of ruin and disgrace, then the dawn comes, and the sun. We lift our seamed faces to the bright sky and hope again. For if there is still harmony in the heavens, how can the discord of the earth overwhelm us? So we comfort our hearts, foolishly exalting our troubles to the plane of the eternal consonance.

The sun stood "the height of a lance" when Agnes slipped quietly to the door of the tent. Over the gray desert lands a smoky mist lay low. Comanche, stirring from its dreams, was lighting its fires. Here passed one, the dregs of sleep upon him, shoulders bent, pail in hand, feet clinging heavily to the road, making toward the hydrant where the green oats sprang in the fecund soil. There, among the horses in the lot across the way, another growled hoarsely as he served the crowding animals their hay.

Agnes looked over the sagging tent-roofs with their protruding stovepipes and wondered what would be revealed if all were swept suddenly away. She wondered what fears besides her own they covered, silent in the pure light of day. For Comanche was a place of secrets and deceptions.

She laid a fire in the tin stove and put the kettle on to boil. Horace Bentley and Milo Strong were stirring within the tent, making ready for the stage, which departed for Meander at eight.

Mrs. Mann, the miller's wife, came out softly, the mark of the comb in her hair, where it had become damp at the temples during her ablution. She looked about her swiftly as she stood a moment in the door, very trim and handsome in her close-fitting black dress, with a virginal touch of white collar and a coral pin.

Agnes was bending over a bed of coals, which she was raking down to the front of the stove for the toast—a trick taught the ladies of the camp by Sergeant Schaefer—and did not seem to hear her.

“Dr. Slavens hasn’t come back?” Mrs. Mann whispered, coming over softly to Agnes’ side.

Agnes shook her head, turning her face a moment from the coals.

“I heard you get up,” said Mrs. Mann, “and I hurried to join you. I know just how you feel!”

With that the romantic little lady put an arm around Agnes’ neck and gave her a hurried kiss, for Horace was in the door. A tear which sprang suddenly leaped down Agnes’ face and hissed upon the coals before the girl could take her handkerchief from her sweater-pocket and stop its wilful dash. Under the pretext of shielding her face from the glow she dried those which might have followed it into the fire, and turned to Horace with a nod and smile.

What was there, she asked herself, to be sitting there crying over, like a rough-knuckled housewife whose man has stayed out all night in his cups? If he wanted to stay away that way, let him stay! And then she recalled his hand fumbling at the inner pocket of his coat, and the picture post-card which he had handed her at the riverside.

Still, it wasn’t a matter to cry about—not yet at least. She would permit no more disloyal thoughts. There was some grave trouble at the bottom of Dr. Slavens’ absence, and she declared to herself that she would turn Comanche over, like a stone in the meadow of which the philosopher wrote, and bare all its creeping secrets to the healthy sun, but that she would find him and clear away the unjust suspicions which she knew were growing ranker in that little colony hour by hour.

They all gathered to bid Sergeant Schaefer good-bye, for he was to rejoin them no more. June pressed upon him a paper-bag of fudge, which she had prepared the day before as a surprise against this event. The sergeant stowed it away in the side pocket of his coat, blushing a great deal when he accepted it.

There was a little sadness in their hearts at seeing the soldier go, for it foretold the dissolution of the pleasant party. And the gloom of Dr. Slavens’ absence was heavy over certain of them also, even though Sergeant Schaefer tried to make a joke of it the very last thing he said. They watched

the warrior away toward the station, where the engine of his train was even then sending up its smoke. In a little while Horace and Milo followed him to take the stage.

There came a moment after the men had departed when Agnes and William Bentley found themselves alone, the width of the trestle-supported table between them. She looked across at him with no attempt to veil the anxiety which had taken seat in her eyes. William Bentley nodded and smiled in his gentle, understanding way. 121

“Something has happened to him,” she whispered, easing in the words the pent alarm of her breast.

“But we’ll find him,” he comforted her. “Comanche can’t hide a man as big as Dr. Slavens very long.”

“He’ll have to be in Meander day after tomorrow to file on his claim,” she said. “If we can’t find him in time, he’ll lose it.”

CHAPTER VIII

THE GOVERNOR'S SON

After a conference with Walker in the middle of the morning, Bentley decided that it would be well to wait until afternoon before beginning anew their search for the doctor. In case he had been called in his professional capacity—for people were being born in Comanche, as elsewhere—it would be exceedingly embarrassing to him to have the authorities lay hands on him as an estray.

“But his instrument-case is under his cot in the tent,” persisted Agnes, who was for immediate action.

“He may have had an emergency call out of the crowd,” explained Bentley.

In spite of his faith in the doctor, he was beginning to lean toward Walker's view of it. Slavens was big enough to take care of himself, and experienced enough to keep his fingers out of other people's porridge. Besides that, there had to be a motive behind crime, and he knew of none in the doctor's case. He was not the kind of man that the sluggers and holdups of the place practiced upon, sober and straight as he always had been. Then it must be, argued Bentley, that the doctor had his own reason for remaining away. His unexpected luck might have unbalanced him and set him off on a celebration such as was common in such cases. 123

“Very well,” agreed Agnes. “I'll wait until noon, and then I'm going to the police.”

Being a regularly incorporated city, Comanche had its police force. There were four patrolmen parading about in dusty *déshabillé* with prominent firearms appended, and a chief who presided over them in a little box-house, where he might be seen with his coat off and a diamond in the front of his white shirt, smoking cigars all day, his heels on the window-sill.

As Dr. Slavens had not appeared at the time designated as her limit by Agnes, Bentley went with her to the chief's office to place the matter before him. It was well that they did not go there for sympathy, and unfortunate that they expected help. The chief received them with disdainful aloofness

which amounted almost to contempt. He seemed to regard their appeal to him for the elucidation of the doctor's mystery as an affront.

The chief was a short man, who vainly believed that he could sustain his trousers in dignified position about his hipless body with a belt. The result of this misplaced confidence was a gap between waistcoat and pantaloons, in which his white shirt appeared like a zebra's stripe.

He was a much-bedizened and garnitured man, for all that he lacked a coat to hang his ornaments upon. Stones of doubtful value and unmistakable size ornamented the rings upon his stocky fingers, and dangled in an elaborate "charm" upon the chain of his watch. The ¹²⁵only name they ever addressed him by in Comanche other than his official title was Ten-Gallon. Whether this had its origin in his capacity, or his similarity of build to a keg, is not known, but he accepted it with complacency and answered to it with pride.

Ten-Gallon was the chief guardian of the interests of the gamblers' trust of Comanche, which was responsible for his elevation to office—for even the office itself—and which contributed the fund out of which his salary came. It is a curious anomaly of civilization, everywhere under the flag which stretched its stripes in the wind above the little land-office at Comanche, that law-breaking thrives most prosperously under the protection of law.

Gambling in itself had not been prohibited by statute at that time in Wyoming, though its most profitable side diversions—such as dropping paralyzing poisons in a man's drink, snatching his money and clearing out with it, cracking him on the head with a leaden billet, or standing him up at the point of a pistol and rifling him—were, as now, discountenanced under the laws.

But what profit is there in gambling if the hangers-on, the cappers, the steerers, and the snatchers of crumbs in all cannot find protection under the flag and its institutions? That was what the gamblers' trust of Comanche wanted to know. In order to insure it they had the city incorporated, and put in a good, limber-wristed bartender as chief of police. ¹²⁵

It was to that dignitary that Dr. Slavens' friends had come with their appeal for assistance. There was discouragement in the very air that surrounded the chief, and in the indifference with which he heard their report. He looked at Agnes with the slinking familiarity of a man who knows but one kind of woman, and judges the world of women thereby. She

colored under the insult of his eyes, and Bentley, even-tempered and slow to wrath as he was, felt himself firing to fighting pitch.

“Well,” said the chief, turning from them presently with a long gape, terminating in a ructatious sigh, “I’ll shake out all the drunks in the calaboose this afternoon, and if your friend’s among ’em I’ll send him on over to you. No harm could happen to him here in Comanche. He’d be as safe here, night or day, as he would be playin’ tennis in the back yard at home.”

The chief mentioned that game with scorn and curling of the lip. Then he gazed out of the window vacuously, as if he had forgotten them, his mashed cigar smoking foully between his gemmed fingers.

Bentley looked at Agnes in amazed indignation. When he squared off as if to read his mind to the chief she checked him, and laid her hand on his arm with a compelling pressure toward the door.

“That man’s as crooked as the river over there!” he exclaimed when they had regained the sunlight outside the smoke-polluted office.

“That’s plain,” she agreed; “and it doesn’t mitigate my fears for the doctor’s safety in the least.”

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“Walker and I were wrong in our opinion; something has happened to Slavens,” said Bentley.

“Your opinion?” she questioned.

“Well, I should say Walker’s rather,” he corrected. “I only concurred weakly along toward the end. Walker has held out all the time that Slavens went out to hold a celebration all by himself.”

“No; he didn’t do that,” said she calmly. “I thought so for a little while this morning, too. But I know he didn’t. Do you suppose—”

She stopped, as if considering something too extravagant to utter.

“Suppose?” he repeated.

“He talked a good deal about going into the cañon to clear up the mystery of that newspaperman and earn the reward,” said she.

Bentley shook his head.

“He’d hardly start at night and without preparation.”

“He seemed to be a man of peculiar moods. If it came over him suddenly and strongly in an hour of depression he might even go to that desperate length. He believed the difficulties of the cañon were largely exaggerated, anyhow. Once he told me that he would undertake to go through it with

nothing more than a pair of moccasins and a lantern. It was his theory that a man would need the moccasins for clinging to the rocks.”

“It’s a queer notion,” said Bentley reflectively.

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“Do you think—” she began, halting her words again and looking at him with distended eyes.

“There’s no telling what a man might do when desperate and despondent,” he answered. “But I don’t believe he’d go without leaving some word, or at least making some disposition of his property in writing, in case he never returned. We’ll open his bags and see what we can find.”

They hurried forward to carry out this intention.

The doctor’s baggage consisted of his battered suitcase and the black bag which contained his instruments. Neither was locked, but neither contained any word to explain where he had gone, nor to give support to the belief that he had intended going anywhere.

Walker, whom Bentley and Agnes rejoined at the camp, sat pondering the information supplied by the girl concerning the doctor’s designs on the cañon.

“I’ll tell you,” he declared at length, as if talking to himself, “that man had the nerve to tackle it!”

Agnes looked at him, her face quickening.

“What do you know about him?” she asked.

“I know,” said Walker mysteriously, with no intention of bringing his own indiscretions up for the censure of June and her severe mother, “that he had courage enough to tackle anything. I’ve seen proof of that right here in Comanche, and I want to tell you people that doctor wasn’t any man’s coward.”

“Thank you for saying that,” blurted Agnes, wholly unintentionally, a glow of pride on her cheeks.

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Mrs. Reed and June looked at her, the widow with a severe opening of her mouth, out of which no sound came; June with a smile behind her hand.

Walker shook his head.

“He had the courage,” said he, “but he had too much sense to try to go through that cañon. No white man ever went in there and came out alive. And even if the doctor had wanted to go he wouldn’t have started at night.”

“I don’t know that it would make much difference,” said Agnes. “It’s always night in that terrible cañon.”

“And that’s so, too,” Walker agreed. “I think I’ll go over there and take a look around.”

“Do you mind if Mr. Bentley and I go with you?” Agnes asked.

“I was going to suggest it,” Walker replied, looking longingly at June.

June asked permission with her eyes; Mrs. Reed nodded, having overcome her fears of Walker, owing to the substantial credentials which he was able to show. Mrs. Mann put on her hat and slipped her black bag a bit farther up her arm, and stood ready in a moment to join the expedition. Mrs. Reed was to remain alone in camp to watch things, for they had been warned that morning by the hotel people against a band of visiting Indians, who picked up anything and everything that was not anchored at least at one end.

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It was late in the afternoon; the sun was low when they reached the river. There wasn’t anything to be made out of the footprints there. The mouth of the cañon had been visited by a great many tourists, some of whom had ventured within a little way to bring out stones for mementos of their daring days of fearsome adventures in the West.

The party stood looking into the mouth of the narrow slit between the high-towering walls. Down there it was already dark; the eye could pierce the gloom but a little way.

“There are places in there where the sun never shines, even for a second a day,” Walker declared. “And that water goes through there with power enough in it to grind a man’s bones against the rocks. There must be a fall of more than a thousand feet.”

“I don’t believe he went in there,” said Agnes with finality, after standing as if trance-bound for a long time, gazing after the foam-white river as it roared into the echoing depths.

“No,” Walker agreed. “He had too much sense for that.”

They were all cheered and lightened by this conclusion. A daylight study of the terrors of the place was sufficient to convince anybody that a man would have to be driven to desperate lengths before he would venture for the dubious reward or narrow notoriety to be gained by following that wild river through its dark way.

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“I camped over at the other side one summer,” Walker told them as they turned away to go back to Comanche, “and I used to pick up things that had

come through—boards and things that people had dropped in over at Meander. It pounds things up, I tell you!”

“Did you ever pick up any gold on the other side?” asked June.

“I never found a trace of any,” said Walker. “I think that’s all a sheep-herder’s yarn.”

They saw one of the police force in conversation with Mrs. Reed in front of the tent as they drew near, and hastened forward in the hope that he had brought news of the missing man. Mrs. Reed received them with shocked expression, and a gesture of the hands denoting hopelessness for the salvation of the world.

“It’s scandalous!” she declared.

The policeman, a carpenterly looking man full of sandy hairs, stood by, grinning.

“What is it, Mother?” asked June.

“I’ll not repeat what he says,” announced Mrs. Reed. “I will—not-repeat-it!”

They turned to the officer, who wore his tarnished badge—evidently bought after long service in a pawn-shop at Cheyenne—pinned to his suspender at a point where he could turn his eye down on it whenever the longing, or a desire to feed upon the pride of his official importance, overcame him.

“I was tellin’ her that the chief sent me over to say that your friend, the doctor, was seen last night at half-past two in the mornin’, jagged up ¹³⁴so tight he took two steps back’ards for every one he went ahead. The chief told me to tell you he was layin’ under a tent somewhere, and that he’d be as safe as a calf in a barn. I hope that’s what you wanted to know.”

The policeman turned and went his dusty way after delivering his message from the chief, the wagon-spoke which he carried at the end of a thong twirling at his wrist.

Walker looked around with a little flash of triumph in his eyes, for a man likes to be vindicated in his opinion, even at the expense of his friends’ honor. But the gust of pain and disappointment which he saw sweep over Agnes’ face set him back with a sudden wrench.

“Say,” said he with an assumption of indignation which he did not altogether feel, “I don’t believe that!”

“Nor I,” declared Bentley, with no need of assuming a part to say it. “I heard a man describing a crook the other day. He said the fellow was so crooked that if you were to shoot him in the top of the head the bullet would make seven holes in his body before it hit the ground. That’s the kind of a man that chief is.”

“Well, it’s scandalous!” declared Mrs. Reed. “Even if he comes back, his conduct is simply disgusting, and I’ll never permit him to address a word to my daughter again!”

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Agnes had drawn a little apart from them. She had no heart to come to Dr. Slavens’ defense, although she knew that the charge was calumnious. But it furnished her a sudden and new train of thought. What interest had the chief of police in circulating such a report? Was the motive for Dr. Slavens’ disappearance behind that insidious attempt to discredit him, and fasten a character upon him wholly foreign to his own?

It was a matter worth looking into. Had Dr. Slavens incurred, somehow, the disfavor of the vicious element which was the backbone of the place? And had he paid the penalty of such temerity, perhaps with his life?

Thinking over the futility of a further appeal to the authorities there, and wondering where she could turn for honest assistance beyond William Bentley, who could do no more than herself, Agnes walked away from the camp a short distance, retracing the way they had come.

“Of all the deluded, deceived creatures!” said Mrs. Reed.

“Hush-sh-sh!” said the miller’s wife.

It was almost sunset when Agnes, overtaking her thoughts, halted with a start to find that she had gone half the distance back to the river. Hoping that they would not be waiting supper on her account, she turned and hurried back.

Meanwhile, at camp there had been a little running-up of excitement, occasioned by the arrival of the Governor’s son, who came on a commission from his mother and sister, bearing a note of invitation to Mrs. Reed, her sister, Mrs. Mann, and June Reed.

Jerry Boyle—for that was the name of the Governor’s son—was greatly surprised to find his friend, Joe Walker, in the camp. But that only made it easier for him, he declared, seeing that Walker could vouch for him and put him on unquestionable terms at once.

“Just as if it were necessary!” exclaimed Mrs. Reed, glowing with pleasure. “And you the brother of my daughter’s dearest friend!”

Jerry Boyle seemed older by ten years than Walker. He was a tall man, with a little forward bend to him that gave him an awkward cast. He was dark-skinned and big-nosed, with black eyebrows which met at its bridge and appeared to threaten an invasion of that structure. Little sensitive, expressive ripples ran over his face as he talked, and that was all the time. For Boyle was as voluble as a political press-agent.

Bentley recognized him, even before he was introduced, as the man whom Walker had pointed out in the dance-house the night before. He said nothing about that, but he smiled to himself when he recalled Walker’s anxiety to leave the place. It was a sort of guilty honor, he thought, such as that which was anciently supposed to stand between thieves.

As Agnes approached, Boyle was in the middle of a story of his experiences in Comanche during the days of its infancy. Mrs. Reed, busy about the stove, had grown so deeply interested that she stood with a lamb chop in her hand poised above the frying-pan, her face all smiles. Boyle was seated on a low box, and some of the others were standing around him, hiding him from Agnes, who stopped near the stove on catching the sound of the new voice. Mrs. Reed nodded reassuringly.

“It’s the Governor’s son,” said she.

Boyle caught sight of Agnes at that moment and jumped to his feet. Walker turned to introduce him.

“No need,” said Boyle, striding forward to their great amazement, his hand outstretched. “Miss Gates and I are old friends.”

Agnes drew back with a frightened, shrinking start, her face very white.

“I beg your pardon, sir!” she protested with some little show of indignation.

“This is Miss Horton,” said Walker, coming to her rescue with considerable presence. “She’s one of us.”

Boyle stammered, staring in amazement.

“I apologize to Miss Horton,” said he with something like an insolent emphasis upon the name. “The resemblance is remarkable, believe me!”

Agnes inclined her head in cold acknowledgment, as if afraid to trust her tongue, and passed on into the tent. Boyle stared after her, and a feeling that

there was something out of tune seemed to fall upon the party waiting there for supper in the red sunset. 135

Boyle forgot the rest of his story, and the others forgot to ask him to resume it. He repeated something about remarkable resemblances, and seemed to have fallen into a period of abstraction, from which he roused himself presently with a short, grunting laugh.

"I must be gettin' on," said he, arising and taking his cowboy hat from the table, where it lay among the plates—to the great satisfaction and delight of Mrs. Mann, who believed that she had met a real westerner at last.

"Oh, stay for supper!" pleaded June.

"You'll get enough of me when you come out to the ranch," he laughed, giving her cheek a brotherly pinch.

While Mrs. Reed would have resented such familiarity with June's cheek on the part of Mr. Walker, or even Mr. Bentley, she took it as an act of condescension and compliment on the part of the Governor's son, and smiled.

Walker went off down the street with Boyle, to speed him on his way. The Governor's son was to send out to the ranch, some forty miles distant, for a conveyance to carry Mrs. Reed and her party thither. It was to be there early on the morning of the second day from that time, that being, for that country, only an easy day's drive for a double team to a democrat wagon.

There was an uncomfortable air of uneasiness and constraint upon them during supper and afterward, a period usually filled with banter and chatter, and shrill laughter from June. They were not able to get clear of the suspicion raised by Boyle's apparent recognition of Agnes and her denial that she was Miss Gates. The two older women especially seemed to believe that Agnes had been guilty of some serious misdemeanor in her past. 136

"He *wasn't* mistaken in her identity," whispered Mrs. Reed to Mrs. Mann when Agnes went in for a wrap as the chill of night began to settle.

Mrs. Mann, charitable and romantic as she was in her mild way, shook her head sadly.

"I'm afraid he wasn't," said she.

"I'm sorry that I can't take June away from here tomorrow," lamented Mrs. Reed. "There's something hidden in that woman's life!"

Agnes had come out silently, as anyone must have come over that velvet-soft earth, which much trampling only made the softer. In the gloom she stood just behind Mrs. Reed. That pure-minded lady did not know that she was there, and was unable to see the rolling warning in her sister's eyes.

"Would you mind walking over to the stage-office with me, Mr. Bentley?" asked Agnes. "I want to engage passage to Meander for tomorrow."

On the way to the stage-office they talked matters over between them. Her purpose in going to Meander was, primarily, to enlist the sheriff of the county in the search for Dr. Slavens, and, remotely, to be there when her day came for filing on a piece of land.

"I made up my mind to do it after we came back from the cañon," she explained. "There's nothing more to be hoped for here. That story the police told us only strengthens my belief that a crime has been committed, and in my opinion that chief knows all about it, too."

She said nothing of Boyle and the start that his salutation had given her. Whatever Bentley thought of that incident he kept to himself. But there was one thing in connection with Boyle's visit which he felt that she should know.

"The Governor's son told Walker that he saw the doctor late last night in about the same condition as that policeman described," he said. "It came up when Walker asked Boyle to keep an eye open and let us know if he happened to run across him."

"Well, in spite of the high authority, I don't believe it," said she with undisturbed conviction.

For a little while Bentley walked on beside her in silence. When he spoke there was the softness of reverence in his voice.

"If I had the faith of a good woman in such measure as that," said he, "I'd think I was next door to heaven!"

"It is the being who inspires faith that is more admirable than the faith itself, it seems to me," she rejoined. "Faith has lived in many a guilty heart—faith in somebody, something."

"Yes," he agreed gently. And then, after a little while: "Yes."

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"Will you be returning to the East soon?" she asked.

"I've been thinking some of going on to Meander to get a fuller impression of this country and see how the boy is getting on," he replied.

“Then go with me,” she invited.

“I wondered if you had faith enough in me to ask me,” he laughed.

There was an extra stage out the next morning, owing to the movement toward Meander of people who must file on their claims within the next ten days. Smith was to drive it. He was in the office when they arrived.

“I think I’ll assume the responsibility of taking the doctor’s two bags with me,” said Bentley.

She agreed that there was little use in leaving them behind. Walker was to go to his ranch the next day; the others would break camp the following morning. There would be nobody to leave his possessions in charge of, except the hotel-keeper, who had a notoriously short memory, and who was very likely to forget all about it, even if the doctor ever returned.

Bentley made arrangements for the transportation of that much excess baggage, therefore. The cost was reminiscent of freight charges in the days of the Santa Fé Trail.

“We’ll leave word for him at the hotel-office,” said he.

As they came out of the stage-office a man was mounting a horse before the stable door, a group of stage employees around him. He galloped off with a flourish. The man who had caparisoned his horse stood looking after him as he disappeared in the night.

“That feller’s in a hurry—he couldn’t wait for the stage in the morning,” said Smith. “He’s ridin’ relay to Meander tonight on our horses, and he’ll be there long before we start. He’s the Governor’s son.”

CHAPTER IX

DOUBLE CROOKEDNESS

Comanche was drying up like a leaky pail. There remained only the dregs of the thronging thousands who had chopped its streets to dust beneath their heels; and they were worked out, panned down to scant profit, and growing leaner picking every day.

The ginger was gone out of the barker's spiel; the forced gaiety was dying out of the loud levees where the abandoned of the earth held their nightly carousals. Comanche was in the lethargy of dissolution; its tents were in the shadow of the approaching end.

Most of the shows had gone, leaving great gaps in the tented streets where they had stood, their débris behind them, and many of the saloons were packing their furnishings to follow. It had been a seasonable reaping; quick work, and plenty of it while it lasted; and they were departing with the cream of it in their pouches. What remained ran in a stream too thin to divide, so the big ones were off, leaving the little fellows to lick up the trickle.

A few gambling-joints were doing business still, for men will gamble when they will neither eat nor drink. Hun Shanklin had set up a tent of his own, the big one in which he had made his stand at the beginning having been taken down. To make sure of police protection, he had established himself on Main Street, next door to headquarters.

Ten-Gallon, the chief, now constituted the entire force, all his special officers having been dropped to save expense to the municipality, since the population had begun to leak away so rapidly and the gamblers' trust had been dissolved.

The chief slept until the middle of each afternoon. Then he went on duty in Hun Shanklin's tent, where he usually remained the rest of the day, his chair tilted back against the pole at the front end. It was generally understood that he had a large interest in the game, which was the same old one of twenty-seven.

On the side there was an army-game outfit at which a pimple-faced young man presided, small whiskers growing between his humors where

they had escaped the razor, like the vegetation of that harsh land in the low places, out of the destroying edge of the wind. For army-game was held so innocuous in Comanche that even a cook might run it.

It was the third day after the drawing, and the middle of the afternoon. That short-time had seen these many changes in Comanche, and every hour was witnessing more. Mrs. Reed and her party had gone that morning in the wagon sent for them from the Governor's ranch. The Hotel Metropole, now almost entirely without guests for its many tents and cots, was being taken down.

The red-nosed proprietor was loading cots into a wagon, his large wife, in a striped kimono with red ruffles at the sleeves and a large V of bare bosom showing, standing in the door of the office-tent directing his labors in a voice which suggested a mustache and knee-boots. A dangling strand of her greasy black hair swung in the wind across her cheek, at times lodging in the curve of it and obscuring her eye. As the lady's hands were both employed, one in holding up the train of her florescent garb, the other in supporting her weight against the tent-pole, she had no free fingers to tuck the blowing wisp in place. So, when it lodged she blew it out of the way, slewing her mouth around to do so, and shutting one eye as if taking aim.

All these employments left her no time for the man who had approached within a few feet of her and stood with an inquiring poise as if asking permission to speak. She went on with her directing, and skirt-holding, and leaning against the tent-pole, and blowing, without giving him a full look, although she had taken his appraisal with the corner of her eye.

The man was not of an appearance to inspire the hope of gain in the bosom of the hostess. His band-less slouch-hat flapped down over his forehead and face, partly hiding a bandage, the sanguine dye of which told what it concealed. A black beard of some days' growth, the dust of the range caught in it, covered his chin and jowls; and a greasy khaki coat, such as sheep-herders wear, threatened to split upon his wide shoulders every time he moved his arms.

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His trousers were torn, and streaked with the stain of rain and clay. He had pinned the rents about his knees together, but he seemed so insecurely covered that a strong wind might expose him, or a sudden start burst his seams and scant contrivances to shield his nakedness. He touched his hat in a moment when he caught the quick eye of the landlord's wife upon him again, and moved a little nearer.

“Can you tell me, madam,” said he respectfully, “what has become of the party that was camped in the tent around on the other side—four ladies and several men?”

“We don’t lodge either sheep-herders or sheep-shearers unless they take a bath first,” said she, turning from him disdainfully.

“But I am neither a herder nor a shearer,” he protested, “although I may—”

“May be worse,” she finished, though perhaps not in the way he intended.

“Suit yourself about it,” he yielded. “I don’t want lodging, anyhow.”

The landlord came staggering in with an armload of cheap bed-covers and threw them down where his dragoon of a wife directed with imperious gesture.

“Just look at all that money invested and no return!” she lamented.

The battered stranger appealed to the landlord, repeating his question. 144

“None of your business,” the landlord replied crabbedly. “But they’re gone, if that’ll do you any good.”

“Did they leave two grips—a suitcase and a doctor’s instrument-case—with you?” inquired the man.

“They left a pie-anno and a foldin’-bed, and a automobile and a safety-razor!” said the landlord, looking reproachfully at his big wife, who was motioning him out to his labors again.

“Or any word for Dr. Slavens?” the stranger pursued with well-contained patience.

“What do you want to know for?” asked the woman, turning upon him suddenly.

“Because the grips belonged to me, madam; I am Dr. Slavens.”

The landlord looked at him sharply.

“Oh, you’re the feller that went off on a drunk, ain’t you? I remember you now. Well, they didn’t leave no grips here.”

“And no word either that I know of,” added the woman.

She swept Dr. Slavens with wondering eyes, for she had held a pretty good opinion of him before his sudden, and evidently heavy, fall.

“But where in this world have you been, man?” she asked.

"Nowhere in *this* world," he answered. "I've been taking a little side-trip to hell!"

"You cert'nly look like it, mister!" the woman shuddered, closing the wide V at her bosom, the flaring garment clutched in her great ring-encumbered hand.

"Will you tell me, then, about my friends?" he asked.

"Gone; that's all we know," said she.

"Part went on the train, two or three days ago; some went on the stage; and the rest left in a wagon this morning," said the landlord.

But he couldn't tell who went on the train, the stage, or the wagon. It was none of his business, he said. They paid their bill; that was all he knew, or cared.

"May I take a look around the tent to see if they left any written word for me there?" the doctor requested.

"Go on," said the woman, a little softening of sympathy coming into her hard eyes.

Dr. Slavens went back to the tent, which stood as it had been left that morning when the last of the party went away. The canvas under which their table stood stretched there hospitably still, and the stove with the morning's ashes cold upon its little hearth. Inside, the cots were all in place, but there was not a line of writing from any friendly hand to tell him where they had gone, or where his property had been left.

He walked toward the business part of the town and turned down Main Street, considering with himself what turn to make next. His head bent in meditation, he passed along lamely, his hands in the pockets of his torn trousers, where there was nothing, not even the thickness of a dime, to cramp his finger-room. Pausing in the aimless way of one who has no unfinished business ahead of him, he looked around, marking the changes which had come upon the street during those few days.

The litter of broken camp was on every hand; broken barrels, piles of boxes, scattered straw, bottles sown as thickly upon the ground as if someone had planted them there in the expectation of reaping a harvest of malt liquors and ardent spirits. Here the depression of a few inches marked where a tent had stood, the earth where the walls had protected it from the beating feet showing a little higher all around; there in the soft ground was the mark of a bar, the vapors of spilled liquors rising sharply in the sun.

Bands of boys and camp-dregs, of whom he might have been one from his appearance, scraped and dug among the débris, searching for what might have been dropped from careless or drunken hands and trampled out of sight. That they were rewarded frequently was attested by the sharp exclamations and triumphant cries.

Across from where he stood was the site of a large place, its littered leavings either already worked over or not yet touched. No one scratched and peered among its trash-heaps or clawed over its reeking straw. Dr. Slavens took possession of the place, turning the loose earth and heaped accumulations with his feet as he rooted around like a swine. It must have been worked over and exhausted, he concluded, for it turned no glint¹⁴⁷ of silver to the sun. Persisting, he worked across the space which the tent had covered, and sat down on a box to rest.

The sun was low; the tops of two tall, round tents across the way came between it and his eyes when he sat down. That was the luck of some people, thought he, to arrive too late. The pay-dirt was all worked out; the pasturage was cropped; the dry sage was all gathered and burned.

No matter. A man had but one moment of life to call his own, wrote Marcus Aurelius. The moment just passed into the score of time's count, the moment which the hand of the clock trembles over, a hair's breadth yet to go—these are no man's to claim. One is gone forever; the other may mark the passing of his soul. Only this moment, this throb of the heart, this half-drawn breath, is a living man's to claim. The beggar has it; the monarch can command no more. Poor as he was, Dr. Slavens thought, smiling as he worked his foot, into the trampled dust, he was as rich in life's allotment as the best.

The sole of his cut and broken shoe struck some little thing which resisted, then turned up white beneath his eye. Broken porcelain, or bone fragment, it appeared. He would have pushed it aside with his toe; but just then it turned, showing the marking of a die.

Here was a whimsical turn of circumstance, thought he. An outcast die for a broken man, recalling by its presence the high games of chance which both of them had played in their day and lost, perhaps. It was a little, round-cornered die, its spots marked deep and plain. As it lay in his hand it brought reminiscences of Hun Shanklin, for it was of his pattern of dice, and his size, convenient for hiding between the fingers of his deceptive hand.

Dr. Slavens rolled it on the box beside him. It seemed a true and honest die, for it came up now an ace, now trey; now six, now deuce. He rolled it, rolled it, thinking of Hun Shanklin and Hun's long, loose-skinned hand.

For a place of wiles, such as Comanche had been and doubtless was still, it was a very honest little die, indeed. What use would anybody have for it there? he wondered. The memory of what he had seen dice do there moved him to smile. Then the recollection of what had stood on that spot came to him; the big tent, with the living pictures and variety show, and Hun Shanklin's crescent table over against the wall.

That must have been the very spot of its location, with the divided wall of the tent back of him, through which he had disappeared on the night that Walker lost his money and Shanklin dropped his dice. Of course. That was the explanation. The little cube in Slavens' palm was one of Shanklin's honest dice, with which he tolled on the suckers. He had lost one of them in his precipitate retreat.

Dr. Slavens put the cube in his pocket and got up, turning the debris of the camp again with his foot, watching for the gleam of silver. As he worked, a tubby man with whiskers turned out of the thin stream of traffic which passed through the street and sat on one of the boxes near at hand. He sat there wiping his face, which was as red and sweat-drenched as if he had just finished a race, holding his hat in his hand, exclaiming and talking to himself.

He was so self-centered in his overflowing indignation that he did not notice the man kicking among the rubbish just a few feet away. Presently the little man drew out a roll of money and counted it on his knee, to look up when he had finished, and shake his fist at the tent which stood shoulder-to-shoulder by the police station. The gesture was accompanied by maledictions upon crooks and robbers, and the force of his expressions made necessary the use of the handkerchief again. This the man took from his hat, which he held in his hand ready to receive it again like a dish, and scrubbed his fiery face, set over with fiery whiskers and adorned with a fiery nose. When he had cooled himself a bit he sat watching the doctor at his labor, lifting his eyebrows every time he blinked.

"Lost something?" he asked.

"Yes," replied the doctor, kicking away, not even looking at his questioner.

“Well, if you dropped it out of your hand or through a hole in your pocket you’re lucky!” said the little man, shaking his fist at the tent where his wrath appeared to center. “This place is full of crooks. They’ll rob you when you’re asleep and they’ll skin you when you’re awake, with both eyes open.”

The doctor had nothing to add to this, and no comment to append. The man on the box put on his hat, with a corner of handkerchief dangling from it over his ear.

“You live here?” he inquired.

“Yes; right now I do,” the doctor replied.

“Well, do you know anything about a long, lean, one-eyed man that runs a dice-game over there in that tent?”

“I’ve heard of him,” said the doctor.

“Well, he skinned me out of two hundred dollars a little while ago, blast his gizzard!”

“You’re not the first one, and it’s not likely that you’ll be the last,” the doctor assured him, drawing a little nearer and studying the victim from beneath his hanging hat-brim.

“No; maybe not,” snapped the other. “But I’ll even up with him before I go away from here.”

“Would you be willing to risk ten dollars more on a chance to get it back?” asked the doctor.

“Show me the man who can tell me how to do it, and watch me,” bristled the victim.

“I know that man, and I know his scheme,” said the doctor, “and I’ve got one that will beat it.”

The whiskered man put his hand into the pocket where the remainder of his roll was stored, and looked at the battered stranger with a disfavoring scowl.

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“How do I know you ain’t another crook?” he asked.

“You don’t know, and maybe I am a crook in a small way. I’m in hard luck right now.”

“What’s your scheme?”

“That’s my capital,” the doctor told him. “If I had a few dollars I’d put it through without splitting with anybody; but I haven’t a cent. I’ve been kicking this straw and trash around here for the last hour in the hope of

turning up a dime. I'll say this to you: I'll undertake to recover your two hundred dollars for you if you'll put up ten. If I get it back, then you are to give me twenty-five of it, and if I win more I'm to keep all above the two hundred. And you can hold on to your ten dollars till we stand up to the table, and then you can hold to my coat. I can't get away with it, but I don't guarantee, you understand, that I'll win."

The little man was thoughtful a spell. When he looked up there was the glitter of hope in his sharp scrutiny.

"It'd take a crook to beat that old man's game," said he, "and maybe you can do it. As long as I can hold on to the money I don't see how I stand to lose it, and I've got a notion to go you."

"Suit yourself," said the doctor, turning again to his exploration of the straw.

"Ain't much in that," commented the gambler's victim, watching him with puzzled face.

No comment from the searching man.

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"You're a funny feller, anyhow, and I got a notion to take you up. Crook, heh?"

"Oh, a sort of a tin-horn," answered the doctor apparently indifferent about the whole matter.

Slavens was working farther away now, so the man left his place on the box to draw within the range of confidential conversation.

"If I was to put up the ten, would you be willing to go over there now and put that scheme of yours in motion?" he asked.

"No; not now. There would be some preliminaries. In the first place, that old man knows me, although he might not spot me at the first look in this rig. I'd have to get a pair of goggles to hide my eyes. And then there would be supper."

"Sure," agreed the little man. "I was going to ask you about that, anyhow."

"Thank you. The crowd will be thicker in there about ten o'clock tonight, and he'll have more money on the table. It will be better for me and for my scheme to wait till about that time. It's a long shot, partner; I'll tell you that before you take it."

"One in five?" asked the man, looking around cautiously, leaning forward, whispering.

“Not one in twenty,” discounted the doctor. “But if it goes, it goes as smooth as grease.”

The man stood considering it, looking as grave as a Scotch capitalist. Suddenly he jerked his head.

“I’ll take it!” said he.

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Over a greasy supper, in a tent away out on the edge of things, they arranged the details of their plot against Hun Shanklin’s sure thing. What scheme the doctor had in mind he kept to himself, but he told his co-conspirator how to carry himself, and, with six small bills and some paper, he made up as handsome a gambler’s roll as could have been met with in all Comanche that night. Out of the middle of its alluring girth the corner of a five-dollar note showed, and around the outside Slavens bound a strip of the red handkerchief upon which the little man had mopped his sweating brow. It looked bungling enough for any sheep-herder’s hoard, and fat enough to tempt old Hun Shanklin to lead its possessor on.

After he had arranged it, the doctor pushed it across to his admiring companion.

“No,” said the little man, shaking his head; “you keep it. You may be a crook, but I’ll trust you with it. Anyhow, if you are a crook, I’m one too, I reckon.”

“Both of us, then, for tonight,” said the doctor, hooking the smoked goggles behind his ears.

CHAPTER X

HUN SHANKLIN'S COAT

Several sheep-herders, who had arrived late to dip into the vanishing diversions of Comanche, and a few railroad men to whom pay-day had just supplied a little more fuel to waste in its fires, were in Hun Shanklin's tent when Dr. Slavens and his backer arrived.

Shanklin was running off about the same old line of talk, for he was more voluble than inventive, and never varied it much. It served just as well as a new lecture for every occasion, for the memory of suckers is even shorter than their judgment.

Gents were invited to step up and weigh the honesty of those dice, and gaze on the folly of an old one-eyed feller who had no more sense than to take such long chances. If anybody doubted that he took long chances, let that man step up and put down his money. Could he throw twenty-seven, or couldn't he? That was the question, gents, and the odds were five to one that he could.

"I ain't in this business for my health, gents," he declared, pouring the dice out on his table, shaking them, and pouring them again. "I'm a gambler, and I'm here to make money, and make it as easy as I can; but if I'd been takin' my pay in sheepskins since I've been in this man's town I wouldn't have enough of them to make me a coat. Live and let live is my motto, and if you can't let 'em live let 'em die."

"Five times one dollar is five dollars, and five times five is twenty-five. Did any of you fellers ever make that much in a minute? Look at them dice. Take 'em in your hand; roll 'em on the table. Don't they run true and straight? Twenty-seven comes up for you sometimes, and it comes up for me. But it comes up oftener for me than it does for you, because I've got it charmed. That's m' lucky number. I was borned on the 27th of Jannewarry, in Range 27, Township 27, twenty-seven mile from Turkey Trail, Montaney, where the wind blows circles and the water runs up-hill.

"You win, friend," pushing stake and winnings to a sheep-herder who had ventured a dollar. "Five times one is five."

Interest in the game began to show rising temperature; the infection of easy money was working through the bystanders' sluggish blood. Shanklin kept the score of loss and gain a little in his own favor, as he was able to do from his years of practice, while still leaving the impression among the players that collectively they were cleaning him out. Some who felt sudden and sharp drains dropped out, but others took their places, eyes distended, cheeks flushed, money in hand.

Dr. Slavens and his backer made their way to the front. Slavens noted that Shanklin was making an extraordinary spread of money, which he had beside his hand in a little valise. It was craftily disposed in the mouth of the half-open bag, which seemed crammed to the hinges with it, making an alluring bait. The long, black revolver of Shanklin's other days and nights lay there beside the bag asserting its large-caliber office of protection with a drowsy alligator look about it.

Slavens was as dirty and unwashed as the foulest in that crowd. His khaki coat bore a varnish of grease, his hat was without band or binding, and the growth of beard which covered his face like the bristles of a brush gave him the aspect of one who had long been the companion and warder of sheep upon the hills. With the added disguise of the smoked-glass goggles, common to travelers in that glaring, dusty land, it would have required one with a longer and more intimate acquaintance with him than Hun Shanklin could claim to pick him out of a crowd.

Slavens pulled out his roll and stood against the table, holding it in his hand with a loutish display of excitement and caution, as if unable to make up his mind whether to risk it on the game or not. When Shanklin saw it he began to direct his talk with a view to charming it out of the supposed sheep-herder's hand.

With nervous fingers Slavens untied the strip of handkerchief, turned his back, and slipped off a dollar bill. This he put on the table with a cautious leaning forward and a suspicious hovering over it with the hand, playing the part so well that Shanklin's sharp old eye was entirely deceived. 157

"You win, friend," said Shanklin, pushing five dollars across the table. "This is like takin' money away from a child."

There was some tolling to be done on both sides in that game. Slavens turned his back again, with a true pastoral show of secrecy concerning his money, although he bungled it so that Shanklin could see him pulling the

five-dollar note from the middle of his roll, as if searching for the next smallest bill. This he put on the table.

There was too much under his eye that throw for old Hun to let it get away. So the magic twenty-seven came rattling out of the box, and Hun raked over his winnings with doleful face and solemn shaking of the head, according to his way. He predicted feelingly that his luck could not last, and that the next time his number came up there would be only two dollars on the table.

From the little pile of one-dollar bills under his hand—the five which he had won and the one that he had first staked—the doctor counted five slowly, and then counted it over again, to make sure. He won.

The others were watching him as he pushed the twenty-five dollars out in the middle of the table with a defiant snort. He crouched over his stake with guarding mien as old Hun took up the box and shook the dice. They fell near his hand, scattering a little, rolling over to the edge of his money as they settled down. He had won again. 158

This extraordinary luck seemed to turn the bettor's head. He spread out his fingers, leaning lower over his stake, as if to prevent its being swept away by violence or mistake.

"I won, I tell you! I won!" said he.

"You won, friend," said Hun, counting out the money to him, a look of triumph in his greedy little eye. For, according to all the signs, the poison was so deep in the supposed sheep-herder's blood that nothing but the loss of all his hoard would cool it again.

Slavens nervously counted down twenty-five dollars again, keeping the remainder of his winnings in his hand, as if ready to take chance on the jump.

A man must have it given to him both ways in order to key him up to the right place, Hun Shanklin knew. All winning would no more do than all loss. So this time the loaded dice were switched into the box, and the charmed number came out again.

"Hold on! Hold on!" protested the bettor as Shanklin started to sweep the money away with one hand and gather in his tricky dice with the other. For Hun never left those dice any longer on the board than necessary.

Slavens threw himself forward on the table, his elbows spread, scrutinizing the dice as if he had not yet figured the total.

“Yes; you win this time,” said he grudgingly, removing his hand from his stake, but dropping the money which he clutched in his fist at the same time. 159

With fatherly kindness Shanklin admonished him to hold on to his money, and helped him pick it up. And, sharp as his old eye was, he did not see that one of his precious dice, hidden under a bill, had changed places with another, which had waited that moment in the doctor’s hand.

The others around the table had given the game over to the amazing sheep-herder who seemed to have so much cash. They stood by, gaping and exclaiming, growing hotter and hotter with the fever all the time themselves, licking their dry lips, feeling of their money, getting ready to pitch into it as soon as the film of chance had thickened a little on their eyes, shutting out reason entirely.

Slavens straightened up and gave his backer two gentle prods in the ribs, which was the signal agreed upon to let the other know that the scheme was in working order, and that something was due to happen. He counted down one hundred dollars and stood expectant, while Shanklin held his hand over the mouth of the dicebox and looked at him with contemptuous reproach.

“No, you don’t! No, you don’t!” said Hun. “If you want to play this man’s game you got to shove up some money of your own. That money’s my money, and you’ve been shovin’ it on and draggin’ it off so much I’m afraid you’ll wear it out if you keep on.

“It’s mine, I tell you! Every cent of it’s mine! If you got any of your own put it up, and then I’ll roll ’em. If you got a hundred to pile on top of that, or five hundred, or ten hundred, come on and pile it up. Then I’ll roll ’em. But I ain’t a goin’ to stand here and speculate in my own money all night!” 160

So there they were, caught in a blind cañon when they thought they were coming into the clear. That was an unlooked-for and unprepared-for turn that Shanklin had given to their plans. Right when they had him unsuspectingly loaded up so he could no more throw twenty-seven than he could fly, except by the tremendously long chance that the good die would fall right to make up the count, he sat down on his hind legs and balked.

Slavens was at the end of his rope. There appeared nothing for it but to withdraw the stake and sneak off with only half of his backer’s loss of the afternoon retrieved. He was reaching out his hand to pull the money away, when the little fellow with whiskers caught his arm.

Slavens thought he read a signal in the touch, and turned as if to consult his roll again. As he did so the little man thrust a comfortable wad of bills into his hand, and Slavens faced the table, counting down five one-hundred-dollar bills.

Hun Shanklin's eye was burning the backs of those aristocrats of the currency as he lifted his box.

"That's more like it," he commended. "I can play with a *gentleman* that carries them things around with him all night, even if I lose at every throw."

"Hold on!" said the doctor as Hun was tilting the box to throw. "Cover that money before you throw. I've got six hundred dollars down there, and I want you to count out three thousand by the side of it."

"Well, I've got the money, friend, if that's what you doubt," said Shanklin, with a lofty air of the injured gentleman.

He drew a sheaf of bills from the valise and, in the stillness of awe which had come over the crowd, counted down the required amount.

"I've won fortunes, gentlemen, and I've lost 'em," said Shanklin, taking up the box again. "Keep your eye on the dice."

He was so certain of what would come out of the box that he reached for the money before the dice had settled, ready to sweep it away. But a change came over his face, as of sudden pain, when he saw the result of the throw, and with a little dry snort his hand shot out toward the revolver which lay beside his valise.

The little man with whiskers, admirably cool, got there first. Hun Shanklin was looking into the end of his own gun, and unloading, through the vent of his ugly, flat mouth, the accumulated venom of his life. He was caught in his own trap by a sharper man than himself, a being that up to that minute he had believed the world could not produce.

Dr. Slavens quickly gathered the money. The others around the table, blazing now in their desire to get a division of fortune's favors, put down their bets and called loudly for the gamekeeper to cover them.

"Game's closed," Shanklin announced, shutting up his valise, into which he had tossed both dice and box.

He made a move as if to part the tent-wall behind him.

"Hold on!" said the doctor, snatching off his goggles and pushing up the brim of his hat. "I've got another score to settle with you, Shanklin. Do you know me now?"

Shanklin didn't wait to reply. He dropped to his knees just as Slavens reached for him, catching the collar of his coat. In an instant the gambler was gone, but his coat was in Dr. Slavens' hand, a circumstance from which the assembled men drew a great deal of merriment.

The chief of police, remiss in his high duty, should have been there to sustain Shanklin's hand, according to their gentlemanly agreement when the partnership was formed. He arrived too late. Shanklin was gone, and from the turmoil in the tent the chief concluded that he had trimmed somebody in his old-fashioned, comfortable way. So his duty, as he saw it in that moment, lay in clearing them out and dispersing them, and turning deaf ears to all squeals from the shorn and skinned.

Dr. Slavens and his friend had nothing to linger for. They were the first to leave, the doctor carrying Shanklin's coat under his arm, the pockets of his own greasy makeshift bulging with more money than he ever had felt the touch of before. As they hurried along the dark street away from the scene of their triumph, the little man with fiery whiskers did the talking.

"Mackenzie is my name," said he, all of the suspicion gone out of him, deep, feeling admiration in its place, "and if you was to happen up to southern Montana you'd find me pretty well known. I've got fifty thousand sheep on the range up there, average four dollars a head, and I'd hand half of 'em over to you right now if you'd show me how you turned that trick. That was the slickest thing I ever saw!"

"It wouldn't do you any good at all to know how it was done," said Slavens, "for it was a trick for the occasion and the man we worked it on. The thing for us to do is to go to some decent, quiet place and divide this money."

"Give me my two hundred and the stake," said Mackenzie, "and keep the rest. I don't need money; I've got two national banks full of it up there in Montana now."

"Lord knows I need it!" said the doctor, beginning to sweat over the nearness to visions which he once believed he should never overhaul.

He stepped along so fast in his eagerness to come up with and lay hands on them that Mackenzie was thrown into a trot to keep up.

"I don't know who you are or where you came from," said Mackenzie, "but you're not a crook, anyhow. That money's yours; you got it out of him

as beautiful as I ever saw a man skinned in my day. But if you don't want to tip it off, that's your business." 164

"It was a chance," said the doctor, recalling a night beside the river and the words of Agnes when she spoke of that theme, "and I had the sense and the courage for once to take it."

In the café-tent where they had taken their supper they sat with a stew of canned oysters between them, and made the division of the money which the lost die had won. Mackenzie would accept no more than the two hundred dollars which he had lost on Shanklin's game, together with the five hundred and ten advanced in the hope of regaining it.

It was near midnight when they parted, Mackenzie to seek his lodging-place, Dr. Slavens to make the rounds of the stores in the hope of finding one open in which he could buy a new outfit of clothing. They were all closed and dark. The best that he could do toward improving his outcast appearance was to get shaved. This done, he found lodging in a place where he could have an apartment to himself, and even an oil-lamp to light him to his rest.

Sitting there on the side of his bed, he explored the pockets of Hun Shanklin's coat. There were a number of business cards, advertising various concerns in Comanche, which Shanklin had used for recording his memoranda; two telegrams, and a printed page of paper, folded into small space. There was nothing more. 165

The paper was an extra edition of *The Chieftain*, such as the doctor had grown sadly familiar with on the day of the drawing. With a return of the heartsickness which he had felt that day, he unfolded it far enough to see the date. It was the day of the drawing. He dropped the half-folded sheet to the floor and took up the telegrams.

One, dated the day before, was from Meander. The other was evidently Shanklin's reply, which perhaps had not been filed, or perhaps was a copy. The first read:

Can close with Peterson if you are sure he will be Number One.

Be certain on numbers N. W. quar. 6-12-33. Repeat.

JERRY.

The reply which Shanklin had written and perhaps sent, preserving a copy in his crafty, cautious way, was:

Peterson is Number One. N. W. quarter 6-12-33 is right.

There was neither name nor address on the telegram, but it was easy to see that it was for “Jerry” at Meander. Some deal was on foot, a crooked deal, no doubt, between Shanklin and somebody for something in which Peterson and Number One—

Hold on! Slavens sat up with a quickening of interest in those two words which he thought he never should feel again. Peterson! That was the name of the winner of Number One. Certainly! Queer that he didn’t put two and two together at the first glance, thought he. He wondered how much they were paying Peterson for his relinquishment, and what there was in the northwest quarter of Section Six, Township Twelve, Range Thirty-three, that Hun Shanklin wanted to get his hands on.

Well, it was interesting, at any rate, even though he didn’t draw himself. In a flash he thought of Agnes and of her hopes, and her high number, and wondered whether she had gone to Meander to file. Slavens held up Shanklin’s coat by the collar and ran through the pockets in the hope of finding something that would yield further particulars.

There was nothing else in the coat. It didn’t matter, he reflected; his interest in Claim Number One was gone forever. He didn’t care who had it, or what was done with it, or whether Hun Shanklin and the man called Jerry gave ten thousand dollars for it or ten cents.

But that was a pretty good coat. It was a great deal better and more respectable than the one he had on, and it looked as if it might come nearer fitting. True, Shanklin was a thin man; but he was wide.

The doctor put on the garment. It was a very comfortable fit; the sleeves were a little long, but there was room enough in the shoulders. Surprising, said he, how wide that old rascal was in the chest. He transferred his money to Hun Shanklin’s pockets, chuckling at the thought that he was returning it whence it came. In conscience, said he, if conscience required such a palliative, he had made restitution.

167

On the floor at his foot lay the extra. In falling it had presented to his view the other side of the fold. The ruled, double-column box, with the surrounding type lifted irregularly around it, attracted his attention. He picked it up, sat again on the edge of the bed, and read his own name printed there as the winner of Number One.

He couldn't make it out. He turned the paper, looking again at the date. "Owing to a mistake in transmitting the news," he read. He got up and walked the length of his compartment, the paper in his hand. How was that? Number One—he was the winner of Number One! How was that? How was that?

There was fortune's caper for you! Number One! And the time past—or but a few hours between then and the limit—for stepping up and claiming it! And Hun Shanklin had a hand in it. Wait a minute—wait!

Hun Shanklin, and a man called Jerry, and Peterson, the Swede. But Shanklin, who sent telegrams assuring somebody that Peterson was Number One—Shanklin most of all. Slavens passed his hand with tentative pressure over the soiled bandage which bound his brow, feeling with finger and thumb along the dark stain which traced what it hid from sight. Shanklin! That would explain some things, many things. Perhaps all things.

He stood there, counting on his fingers like a schoolboy, frowning as he counted. One—two—three. The third day—that was the third day. And he was Number One. And he had lost!

Out in the office of the lodging-place a lamp burned smokily at the elbow of an old man who read a paper by its light.

"This should be the twenty-eighth, according to my reckoning," said Slavens, appearing before him and speaking without prelude.

The old man looked up, unfriendly, severe.

"You're purty good at figures," said he.

He bumped his bony shoulders over his paper again.

Undaunted, Slavens asked him the hour. The old clerk drew out a cheap watch and held it close to his grizzled face.

"Time for all honest men but me and you to be in bed, I reckon. It's a quarter to one."

A quarter to one! Next morning—no; that very morning at nine o'clock, Peterson would step up to the window of the land-office in Meander and file on Claim Number One—*his* claim—Dr. Warren Slavens' claim, the seed of his dead hope. That is, if the long chance that lay between him and that hour should be allowed to pass unimproved.

"Do you want to sell that watch?" asked the doctor suddenly.

The old man looked up at him sharply, the shadow of his nose falling long upon his slanting paper.

“You go to thunder!” said he.

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“No,” said Slavens without showing offense. “I want that watch for a few hours, and I’ll pay you for it if you want to let me have it.”

He drew out a roll of money as thick as the old man’s thin neck, and stood with it in his hand. The old man slipped the leather thong from his buttonhole and laid the watch on the board in front of him.

“It cost me a dollar two or three years ago”—what was a year to him in his fruitless life, anyway?—“and if you want to give me a dollar for it now you can take it.”

Slavens took up the timepiece after putting down the required price.

“I paid for my bed in advance, you remember?” said he.

The old clerk nodded, his dull eye on the pocket into which all that money had disappeared.

“Well, I’m going out for a while, and I may not be back. That’s all.”

With that the doctor passed out into the street.

Eight hours between him and the last chance at Claim Number One—eight hours, and sixty miles. That was not such a mighty stretch for a good horse to cover in eight hours—nothing heroic; very ordinary in truth, for that country.

With a clearly defined purpose, Slavens headed for the corral opposite the Hotel Metropole, beside which the man camped who had horses for hire. A lantern burned at the closed flap of the tent. After a little shaking of the pole and rough shouting, the man himself appeared, overalled and booted and ready for business.

“You must weigh a hundred and seventy?” said he, eying his customer over after he had been told what a horse was wanted for. “What’s your hurry to git to Meander?”

“A hundred and eighty,” corrected the doctor, “and none of your business! If you want to hire me a horse, bring him out. If you don’t, talk fast.”

“I ain’t got one I’d hire you for that ride, heavy as you are,” said the man; “but I’ve got one a feller left here for me to sell that I’d sell you.”

“Let me see him,” said the doctor.

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The man came out of the straw-covered shed presently, leading a pretty fair-looking creature. He carried a saddle under his arm. While the doctor looked the beast over with the lantern the man saddled it.

“Well, how much?” demanded the doctor.

“Hundred and fifty,” said the man.

“I’ll give you a hundred, and that’s fifty more than he’s worth,” the doctor offered.

“Oh, well, seein’ you’re in such a rush,” the man sighed.

As he pocketed the price he gave the directions asked.

“They’s two roads to Meander,” he explained; “one the freighters use that runs over the hills and’s solid in most all kinds of weather, and the stage-road, that follows the river purty much. It’s shorter by a few miles and easier to foller; but it’s got some purty loose ground here and there.”

“Much obliged,” said the doctor, striking his heels to his horse’s sides and galloping off, following the road which he had seen the stages take to Meander, in the days when Claim Number One was farther off even than eight hours and sixty miles.

CHAPTER XI

NUMBER ONE

In Meander that morning people began to gather early at the land-office, for it was the first day for filing, and a certain designated number, according to the rules laid down and understood before the drawing, must appear and make entry on their chosen tracts.

There had been a good deal of talk and excitement over the nonappearance in Meander of the man who drew the first chance. The story had gone around, from what source nobody knew, that he would lapse, in which case Number Two would become Number One, and all along the line would advance. Number One would have to be there to file first, as Number Two could not be entered ahead of him, and if he did not step up to the window when it opened, his chance was gone forever.

The United States Government would accept no excuses; the machinery of its vast, admirable business could not be thrown out of gear for an hour or a day, and stand idle while the clerks waited for the holder of Claim Number One to come from some distant part and step into his own. So there was a good deal of nervousness and talking, and speculating and crowding forward in the waiting line, as the hour for opening the office drew near. ¹⁷³

At the head of the line, holding a card with certain figures on it, stood Axel Peterson, a bony-faced man with lean, high shoulders, engineer in the flour-mill at Meander. Peterson strained his long neck and lifted his chin as if his loose collar bound him and choked his aspirations.

It was a racking hour for Axel Peterson, who had been offered a sum which was riches to him if he would file on the land described by the figures on the card, pay its purchase price to the government on the spot with the money provided him for that purpose, and then step out. Already he had signed an agreement to make a deed to it. However, the land was yet in the mists of uncertainty just ahead, beyond his grasp.

For it was stipulated in his agreement that if the-holder of the first choice should appear in time to file, then Peterson was to hand over the money which he carried in his pocket to purchase immediate title to the claim. In that case, Jerry Boyle, the Governor's son, who stood side by side with

Peterson before the window and held Peterson's agreement to deed certain described lands in his hand; in that case Jerry Boyle would be free to open negotiations with the holder of the first chance.

There was no secret among those gathered to file regarding what was going forward at the head of the line. It was generally understood, also, that others were on hand to grab the same piece of land as that which Boyle was so eager to get into his possession. Gold, some said. Others were strong in the statement that it was coal and oil. At any rate there was another man present who had been active with Peterson, but he had arrived too late. Boyle already had the Scandinavian down in writing.

Milo Strong was in his place, hoping in his heart that Dr. Slavens would not appear, as the physician's lapse would set him one forward. Off to one side, among hundreds gathered to witness the filing on lands which would mean the development of a great stretch of country around Meander, and thereby add to its prosperity and importance, were William and Horace Bentley and Agnes.

They watched the clerks in the land-office arrive and enter through the side door. A shelf had been arranged in one of the front windows of the office, past which the entrants could file without going into the building. At nine o'clock this window would be opened. It was before it that Peterson and Jerry were standing.

William Bentley looked at his watch.

"Seven minutes more," he announced.

"He'll never come," said Agnes, shaking her head sadly. "His chance is slipping away."

"I've hoped right up to this minute that he would come," said William, "but I drop out now. It would have been such easy money for him, too."

"Yes; Boyle's got that fellow tied up to relinquish to him the minute the entry is made," Horace added. "I know the lawyer who drew up the papers. It's illegal all through, but they say Boyle's got such a pull through his father that anything he wants will go."

Until that hour Agnes had kept her faith in Dr. Slavens and her hope that he would appear in time to save his valuable claim. Now hope was gone, and faith, perhaps, had suffered a tarnishment of luster.

For that is the way of human judgment. When one whom we have expected to rise up out of the smoke of obscurity or the fog of calumination

fails in what we feel to be his obligation to the world and ourselves—especially ourselves—faith falters in its place, and gives way to reproach, bitter words, hot arraignments. There is no scorn like the scorn of one who has been a friend.

And still Agnes kept her faith that Dr. Slavens was blameless for his unexplained disappearance and prolonged absence deep-anchored in her heart. But there was a surface irritation at that moment, a disposition to censure and scold. For nothing short of death should keep a man away from the main chance of his career, thought she, and she could not believe that he was dead.

It was altogether disappointing, depressing. He should have come; he should have moved the encumbering obstacles out of his way, no matter what their bulk. Not so much for his own sake maybe, when all was refined to its base of thought, as for the redemption of her faith and trust.

“I don’t care to stay and see them file,” said she, turning away. “I’ll get enough of it, I suppose, when my turn comes, waiting in line that way in the sun.”

“There’s a special stage out for Comanche at eleven,” said William, his watch in his hand. “If I can get a seat I’ll return on it. It’s time I was back in the shop.”

“For,” he might have added if he had expressed his thoughts, “no matter what I think of you, Agnes, I see that it would be useless for me to hang around and hope. Dr. Slavens has stepped into the door of your heart, and there is no room for anybody else to pass.”

But he left it unsaid, standing with his head bent as if in meditation, his watch in his hand.

“Two minutes more,” he announced.

“I’m moving from the hotel,” said she quickly, “to a room I’ve taken with a dear old lady in a funny little house among the trees. It’s cheaper for me while I wait to file. I’ll see you to say good-bye.”

She hurried away, leaving the two men standing looking after her, Horace smiling, for he did not altogether understand. William could see deeper. He knew that she was afraid lest her disappointment would burst out in tears if she remained to see Axel Peterson square his elbows on the shelf before the window and make entry on Claim Number One.

A clerk within the office was pounding on the window-sash, for the paint which the building had been treated to in honor of the occasion had gummed it fast. Axel Peterson, straining his long neck, swallowing dry gulps, looked to the right, the left, the rear. The ends of his fingers were fairly on Claim Number One; nobody was pressing forward to supplant him and take away his chance.

Of course, in case Boyle could not induce the holder of the first chance, in the event that he *might* yet come, to file on the coveted land, then there would be a chance left for Peterson. So Peterson knew—Boyle had made that plain. But who could resist the amount Boyle was ready to give? Nobody, concluded Axel Peterson, feeling a chill of nervousness sweep him as the window-sash gave and the window opened, showing the two clerks ready, with their pens in hand.

The preliminary questions were being asked; the card with Peterson's signature on it was taken out of the file for its identification—although he was personally known to everybody in the town—for no detail of caution and dignity could be omitted on an occasion so important as that; Axel Peterson was taking his breath in short bites, his hand trembling as he took up the pen to enter his name when that moment should arrive; his voice was shaking as he answered the questions put to him by the clerk.

There was a stirring down the line, and a crowding forward. From the outer rim of the people gathered to bear witness to the important ceremony there rose a subdued shout, like the expression of wonder or surprise. The volume of this sound increased as it swept toward the office. Those in the line, Axel Peterson first of all, saw a movement in the crowd, saw it part and open a lane for a dusty man on a sweat-drenched horse to pass.

One of the clerks arranged the detail-map of the reservation before him with great deliberation, his pen ready to check off the parcel of land when the entrant should give its description. The other spread the blank on the desk, dipped his pen, and asked:

“What tract do you wish to file on, Mr. Peterson?”

The man on horseback had forged through the crowd and brought his stumbling beast to a stand not a rod away from Axel Peterson's side. Peterson had viewed the proceeding with a disturbing qualm. Boyle, as talkative before as a washerwoman, now grew suddenly silent. His mouth stood open impotently; the gray of a sinking heart came over his face as he

looked long at the battered man, who had dropped the reins to the ground and was coming toward them on unsteady legs.

Then, in a flash, Boyle recovered his poise.

“Quick! Quick!” he called to the clerk, thrusting an impatient hand through the window. “Give him the paper and let him sign; you can fill in the numbers afterward!”

The clerk owed his appointment to Boyle’s father when the latter was in Congress; so he was ready at heart to obey. But it was an irregularity which might rebound with uncomfortable result. Thus he hesitated a few seconds, and as he hesitated the road-stained horseman pushed in between Axel Peterson and the window. 179

“You’re a little hasty,” said the man. “It’s a few seconds until nine yet, according to my time. My name is Slavens, and I am Number One.”

The people in the crowd pressed closer, closing around the tired horse, which stood with its head drooping, its flaccid sides heaving. Jerry Boyle said nothing, but he put into his pocket the paper which he had been holding ready in his hand for Axel Peterson’s signature the minute the entry should be made, and turned his back. A black-visaged man with shifting, greasy eyes shouldered, panting, through the press of people and put his hand on Slaven’s arm.

“I’d like to have a word with you before you file,” he requested.

Slavens looked at him severely from the shadow of his battered hat. The man lacked the bearing of one who inspires confidence; Slavens frowned his disapproval of the approach.

“It means money to you,” pressed the man, stretching out his hand and showing a card with numbers penciled on it.

Axel Peterson had stood gaping, his card with numbers on it also in his hand, held up at a convenient angle for his eyes. Dr. Slavens had read them as he pushed Peterson aside, and the first two figures on the other man’s card—all that Slavens could hastily glimpse—were the same. And, stranger still, they were the same as Hun Shanklin had recorded in telegraphed reply to the request from Jerry that he repeat them. 180

That was enough to show him that there was something afoot worth while, and to fortify him in his determination, strong in his mind every mile of that long night ride, to file on that identical tract of land, come of it what might.

"I'll talk to you after a while," said he.

Boyle said nothing, although the look he gave the forward man was blasting and not without effect. The fellow fell back; something which looked like a roll of bills passed from Boyle's hand to Axel Peterson's, and with a jerk of the shoulder, which might have been intended as a defiance to his rival or as an expression of resignation, Boyle moved back a little into the crowd, where he stood whispering with his friends. Peterson's face lit up again; he swallowed and stretched his neck, wetting his dry lips with his tongue.

The preliminaries were gone over again by the clerks with deliberate dignity; the card bearing the doctor's signature was produced, his identity established, and the chart of the reservation again drawn forward to check off the land as he gave the description.

"What tract have you selected, Dr. Slavens?" asked the clerk with the blank.

Dr. Slavens drew from the pocket of his coat a crumpled yellow paper, unfolded it, and spread it on the shelf.

"The northwest quarter of Section Six, Township Twelve, Range Thirty-three," he replied, his eyes on Hun Shanklin's figures. 181

Jerry Boyle almost jumped at the first word. As the doctor completed the description of the land he strode forward, cursing in smothered voice.

"Where did you get that paper?" he demanded, his voice pitched an octave above its ordinary key by the tremulous heat of his anger.

Dr. Slavens measured him coldly with one long, contemptuous look. He answered nothing, for the answer was obvious to all. It was none of Boyle's business, and that was as plain as spoken words.

Boyle seemed to wilt. He turned his back to the winner of Number One, but from that moment he stuck pretty close to Axel Peterson until something passed between them again, this time from Peterson's hand to Boyle's. Peterson sighed as he gave it up, for hope went with it.

Meantime a wave of information was running through the crowd.

"It's Number One," men repeated to each other, passing the word along. "Number One got here!"

Hurrying to the hotel, Agnes was skirting through the thinner edges of the gathering at the very moment when Dr. Slavens turned from the window, his papers in his hand. As he went to his weary horse and took up the reins,

the creature greeted him with a little chuckling whinny, and the people gave him a loud and hearty cheer.

When the cheering spread to the people around her, Agnes stopped and asked a man why they did that. She spoke a little irritably, for she was out of humor with people who would cheer one man for taking something that belonged to another. That was the way she looked at it, anyhow.

“Why, haven’t you heard?” asked the man, amazed, but enlarged with importance, because he had the chance of telling somebody. “It’s Number One. He rode up on a horse just in the nick of the second and saved his claim.”

“Number One!” said she. “A horse!”

“Sure, ma’am,” said her informant, looking at her queerly. “Here he comes now.”

Dr. Slavens passed within a few feet of her, leading his horse toward the livery stable. If it had not been that the wind was blowing sharply, turning back the flapping brim of his old hat, she would have repudiated him as an impostor. But there was no mistaking him, in spite of the strange clothing which he wore, in spite of the bloody bandage about his head.

And at the sight of that bandage her heart felt a strange exultation, a stirring leap of joy, even stronger than her pity and her pain. For it was his vindication; it was the badge of his honor; it was his credentials which put him back in the right place in her life.

He had come by it in no drunken squabble, she knew; and he had arisen from the sickness of it to mount horse and ride—desperately, as his condition told—to claim his own. Through the leagues of desert he had come, through the unfriendly night, with what dim hope in his breast no man might know. Now, sparing the horse that had borne him to his triumph, he marched past her, his head up, like one who had conquered, even though he limped in the soreness of bruised body.

People standing near wondered to see the tall, pale woman put out her hands with more than a mother’s pity in her eyes, and open her lips, murmuring a name beneath her breath.

The Bentleys, who had seen Dr. Slavens arrive, had not been able to force their way to him through the crowd. Now, with scores of others, they followed him, to have a word with him after he had stabled his horse. As they passed Agnes, William made his way to her.

“He arrived in time!” he cried triumphantly, the sparkle of gladness in his honest eyes. “He has justified your faith, and your trust, and your—”

She put out both her hands, tears in her eyes, as he halted there, leaving unsaid what there was no need to say.

“I’ll tell him where to find you,” said he, passing on.

In her room at the hotel Agnes sat down to wait. Peace had come into her soul again; its fevered alarms were quiet. Expectancy trembled in her bosom, where no fear foreshadowed what remained for him to say. Her confidence was so complete in him, now that he had come, that she would have been satisfied, so she believed at that hour, if he had said:

“I was unable to come sooner; I am sorry.”

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For love is content with little while it is young.

Agnes thought of her prettiest dress, tucked away in the little steamer-trunk, and brought it out. It was not extremely gay, but it was light in color and fabric, and gave a softness to the lines of the body, and a freshness of youth. And one needs to look carefully to that when one is seven-and-twenty, she reflected.

Her fingers fluttered over her hair; she swayed and turned before the glass, bringing the lines of her neck into critical inspection. There was the turn of youth there yet, it comforted her to see, and some degree of comeliness. He would come soon, and she must be at her best, to show him that she believed in him, and give him to understand that she was celebrating his triumph over the contrary forces which he had whipped like a man.

Faith, thought she, as she sat by the window and looked down upon the crowd which still hung about the land-office, was a sustaining food. Without it the business of all the world would cease. She had found need to draw heavily upon it in her years, which she passed in fleeting review as she looked pensively upon the crowd, which seemed floundering aimlessly in the sun.

All at once the crowd seemed to resolve into one personality, or to become but the incidental background for one man; a tall man with a slight stoop, whose heavy eyebrows met above his nose like two black caterpillars which had clinched in a combat to contest the passage. Here and there he moved as if seeking somebody, familiarly greeted, familiarly returning the salutations.

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That morning she had seen him at the head of the line of men waiting to file on land, close beside Peterson, who believed himself to be Number One. She had wondered then what his interest might be, and it was largely due to a desire to avoid being seen by him that she had hurried away. Now he turned as if her thoughts had burned upon his back like a sun-glass, looked directly toward her window, lifted his hat, and smiled.

As if his quest had come to an end at the sight of her, he pushed across the street and came toward the hotel. She left the window, closing it hurriedly, a shadow of fear in her face, her hand pressed to her bosom, as if that meeting of eyes had broken the lethargy of some old pain. She waited, standing in the center of the room, as if for a summons which she dreaded to hear.

The hotel at Meander had not at that day come to such modern contrivances as telephones and baths. If a patron wanted to talk out on the one wire that connected Meander with the world and the railroad, he had to go to the stage-office; if he wanted a bath he must make a trip to the steam laundry, where they maintained tubs for that purpose. But these slight inconveniences were not all on one side of the house. For if a message came to the office for a guest in his room, there was nothing for the clerk to do but trot up with it.

And so it came that when Agnes opened her door to the summons, her bearing had no touch of fear or timidity. In the hall she faced the panting clerk, who had leaped up the stairs and was in a hurry to leap down again.

"Mr. Jerry Boyle asks if he may have the pleasure of seeing you in the parlor, Miss Horton," said the clerk.

"Tell Mr. Boyle," she answered with what steadiness she could command, "that I have an appointment in a few minutes. I'm afraid that I shall not be able to see him before—before—tomorrow afternoon."

That was enough for the clerk, no matter how near or how far it came to satisfying the desires of Jerry Boyle. He gave her a stubby bow and heeled it off downstairs again, kicking up quite a dust in his rapid flight over the carpet in the hall.

As if numbed or dreaming, Agnes walked slowly about her room, touching here or there a familiar article of apparel, and seeking thus to recall herself to a state of conscious reasoning. The events of the morning—the scene before the land-office, her start back to the hotel, the passing of

that worn, wounded, and jaded man—seemed to have drawn far into the perspective of the past.

In a little while William Bentley came up for his bag—for in that hotel every man was his own porter—and called her to the door. He was off with Horace on the eleven o'clock stage for Comanche. Next morning he would take a train for the East. Dr. Slavens sent word that he would come to the hotel as soon as he could make himself presentable with a new outfit.

“Horace will stay at Comanche a while to look around,” said William, giving her his card with his home address. “If there’s anything that I can do for you any time, don’t wait to write if you can reach a telegraph-wire.”

If there was pain in his eyes she did not see it, or the yearning of hope in his voice, she did not hear. She only realized that the man who filled her life was coming soon, and that she must light again the fires of faith in her eyes to greet him.

CHAPTER XII

THE OTHER MAN

Dr. Slavens stood at the door of the parlor to meet her as she came toward him, a little tremor of weakness in her limbs, a subconscious confession of mastery which the active feminine mind might have denied with blushing show of indignation.

The clothiers of Meander had fitted Slavens out with a very good serge suit. Tan oxfords replaced his old battered shoes. A physician had dressed the cut on his forehead, where adhesive plaster, neatly holding gauze over the cut, took away the aspect of grimness and gravity which the bloody bandage of the morning had imparted. For all his hard fight, he was quite a freshened-up man; but there was a questioning hesitation in his manner as he offered his hand.

Her greeting removed whatever doubt that William Bentley's assurance of her fidelity might have left. She took his hand between both her own and held it so a little while, looking into his eyes without the reservation of suspicion or distrust.

"We believed you'd come in time all along," said she.

"You believed it," he replied softly, not the faintest light of a smile on his serious face; "and I cannot weigh my gratitude in words. There is an explanation to be made, and I have saved it for you. I'm a beast to think of food just now, perhaps, but I haven't eaten anything since yesterday evening."

"You can tell me afterward, if you wish," she said.

Through the meal they talked of the others, of who had come to Meander, who had gone home; of June and her mother and the miller's wife. Nothing was said of the cause of his absence nor of his spectacular arrival just in the second remaining to him to save his chance.

"I noticed a road running up toward the mountain," said he when they had finished. "Shall we walk up that way?"

Out past the little cultivated gardens, where stunted corn was growing in the futile hope that it might come to ear, they followed the road which led into the mountain gorge. A rod-wide stream came plunging down beside the

way, bursting its current upon a thousand stones here and there, falling into green pools in which the trout that breasted its roaring torrent might find a place to pant.

Here, in an acre of valley, some remnant of glacier had melted after its slow-plowing progress of ten million years. The smooth, round stones which it had dropped when it vanished in the sun lay there as thickly strewn as seeds from a gigantic poppy-boll. And then, as the gorge-wedge narrowed, there were great, polished boulders, like up-peeping skulls, and riven ledges against which Indian hunters had made their fires in the old days. And on the tipping land of the mountainside, and the little strips where soil lodged between the rocks, the quaking-aspen grew thick and tall.

There in a little nook among the trees, where trampling tourists had eaten their luncheon upon a flat stone and left the bags and pickle-bottles behind them, they sat down. At that altitude the sunshine of an afternoon in late August was welcome. A man whipping the stream for trout caught his tackle in some low branches not ten feet from where they sat, and swore as he disentangled it. He passed on without seeing them.

“That goes to illustrate how near a man may be to something, and not know it,” said the doctor, a smile quickening his grave face for a moment. “This time yesterday I was kicking over the rubbish where a gambling-tent had stood in Comanche, in the hope of finding a dime.”

He stopped, looked away down the soft-tinted gorge as if wrapped in reminiscent thought. She caught her breath quickly, turning to him with a little start and gazing at his set face, upon which a new, strange somberness had fallen in those unaccounted days.

“Did you find it?” she asked.

“No, I didn’t,” he answered, coming out of his dream. “At that hour I knew nothing about having drawn the first number, and I didn’t know that I was the lucky man until past midnight. I had just a running jump at the chance then, and I took it.”

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“And you won!” she cried, admiration in her eyes.

“I hope so,” said he, gazing earnestly into her face.

Her eyes would not stand; they retreated, and a rush of blood spread over her cheeks like the reserve of an army covering its withdrawal from the field.

“I feel like I had just begun to live,” he declared.

"I didn't see you arrive this morning," she told him, "for I turned and went away from the land-office when they opened the window. I couldn't stand it to see that man Peterson take what belonged to you."

He looked at her curiously.

"But you don't ask me where I was those two days," said he.

"You'll tell me—if you want me to know," she smiled.

"When I returned to the Hotel Metropole, even more ragged and discreditable-appearing than I was when you saw me this morning," he resumed, "the proprietor's wife asked me where I'd been. I told her I had been on a trip to hell, and the farther that experience is behind me the stronger my conviction that I defined it right.

"When I left you that night after we came back from the river, I went out to look for young Walker, all blazing up, in my old-time way of grabbing at things like a bullfrog at a piece of flannel, over what you had said about a man not always having the sense and the courage to take hold of his chances when they presented.

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"Walker had talked to me about going in with him on his sheep-ranch, under the impression, I suppose, that I had money to invest. Well, I hadn't any, as you know, but I got the notion that Walker might set me up with a flock of sheep, like they do in this country, to take care of on shares. I had recovered entirely from my disappointment in failing to draw a claim, as I thought, knowing nothing about the mistake in telephoning the names over.

"I used to be quick to get over things that were based on hope that way," he smiled, turning to her for a second and scarcely noting how she leaned forward to listen. "Just then I was all sheep. I had it planned out ten years ahead in that twenty minutes. When a man never has had anything to speculate in but dreams he's terribly extravagant of them, you know. I was recklessly so.

"Well, I was going along with my head in the clouds, and I made a short cut to go in the back way of the biggest gambling-tent, where I thought Walker might be watching the games. Right there the machinery of my recollection jumps a space. Something hit me, and a volcano burst before my eyes."

"Oh, I knew it! I knew it!" she cried, poignant anguish in her wailing voice. "I told that chief of police that; I told him that very thing!"

“Did you go to that brute?” he asked, clutching her almost roughly by the wrist.

“William Bentley and I,” she nodded. “The chief wouldn’t help. He told us that you were in no danger in Comanche.”

“What else?” he asked.

“Go on with the story,” said she.

“Yes. I came back to semiconsciousness with that floating sensation which men had described to me, but which I never experienced before, and heard voices, and felt light on my closed eyes, which I hadn’t the power to open. But the first thing that I was conscious of, even before the voices and the light, was the smell of whisky-barrels.

“Nothing smells like a whisky-barrel. It’s neither whisky nor barrel, but whisky-barrel. Once you have smelled it you never forget. I used to pass a distillery warehouse on my way to school twice a day, and the smell of whisky-barrels was part of my early education; so I knew.

“From the noise of voices and the smell of the barrels I judged that I must be behind the stage of the variety-theater tent, where they kept the stock of whisky for the bar. In a little while I was able to pick up the identity of one of the voices. The other one—there were two of them near me—belonged to a man I didn’t know. You have heard us speak, when we were back in camp, of Hun Shanklin, the gambler?”

She nodded, her face white, her lips parted, her breath hanging between them as by a thread.

“It was his voice that I heard; I was coming stronger every second. I made out that they were talking of my undesirable presence in that community. Shanklin owed me a grudge on account of a push that I gave his table one night when he was robbing a young fool with more money than brains by his downright crooked game. That shove laid the old rascal’s scheme bare and kept him out of several thousand dollars that night.

“I supposed until last night that his sole object in assaulting me in the dark was to pay off this score; but there was another and more important side to it than that. Shanklin and the fellow with him, whoever it was, knew that I was the winner of Number One, and they wanted me out of the way.

“I’m not clear yet in my mind just why; but they must have had some inside information ahead of others in Comanche that I, and not Peterson, was the lucky man, as reported first. For that extra wasn’t out then.”

"It was all a swindle, the extra," she hastened to explain. "That editor knew all the time who Number One was. He held your name back just so he might sell a lot more papers. We found out about it after we came here."

"Of course Shanklin was in with him some way. They're all crooks," the doctor commented.

"Perhaps the other man was that wicked chief of police," said she. "I wouldn't consider him above it."

"Nor I," Slavens admitted. "But I don't know; I never heard him speak. I thought I heard that other voice this morning here in Meander, but I'm not sure. I'll be listening. I must get on with my yarn, and I warn you now that I'm going to tax your credulity and try your confidence before I'm through."

"I lay there gathering strength while they talked about putting me away, like a man who had been choked. I couldn't see them when I opened my eyes, for they were back of me somewhere, moving the barrels and boxes around. There was a lantern standing on the ground near my head, and the thought came to me that if I could knock it over and put it out I might make a stagger for the outside and get clear of them. So I upset it."

"The thing didn't go out. It lay on its side, burning away the same as ever, but the move I had made tipped it off to them that I wasn't all in. I heard Shanklin swearing as he came toward me, and I picked up what strength I had, intending to make a fight for it. I wasn't as brisk as I believed myself to be, unluckily, and I had only made it to my knees when they piled on to me from behind. I suppose one of them hit me with a board or something. There's a welt back there on my head, but it don't amount to anything."

"The cowards!" she breathed, panting in indignation.

"I wish we could find a name in some language that would describe them," said he; "I've not been able to satisfy myself with anything that English offers. No matter. The next thing that I knew I was being drenched with icy water. It was splashing over my head and running down my face, and the restorative qualities of it has not been overrated by young ladies who write stories about fainting beauties for the magazines, I can hereby testify. It brought me around speedily, although I was almost deaf on account of a roaring, which I attributed to the return circulation in my battered head, and sickened by an undulating, swirling motion by which I seemed to be carried along."

“I felt myself cramped, knees against my chin, and struggled to adjust my position more comfortably. I couldn’t move anything but my hands, and exploration with them quickly showed me that I was in a box, rather tight on sides and bottom—one of those tongue-and-groove cases such as they ship dry goods in—with the top rather open, as if it had been nailed up with scraps. The water was splashing through it and drenching me, and I knew in a flash, as well as if they had told me what they were going to do, what they had done. They had carted me to the river and thrown me in.”

“The cañon! The cañon!” said she, shuddering and covering her face with her hands. “Oh, that terrible water—that awful place!”

“But I am here, sitting beside you, with the sun, which I never hoped to see again, shining on my face,” he smiled, stroking her hair comfortingly, as one might assuage the terror of a child.

Agnes lifted her head in wondering admiration.

“You can speak of it calmly!” she wondered, “and you went through it, while it gives me a chill of fear even to think about it! Did you—come ¹⁹⁷ to shore before you entered the cañon?”

“No; I went through it from end to end. I don’t know how far the river carried me in that box. It seemed miles. But the cañon is only two miles long, they say. The box floated upright mainly, being pretty well balanced by my weight in the bottom, but at times it was submerged and caught against rocks, where the current held it and the water poured in until I thought I should be drowned that way.

“I was working to break the boards off the top, and did get one off, when the whole thing went to pieces against a rock. I was rolled and beaten and smashed about a good bit just then. Arms were useless. The current was so powerful that I couldn’t make a swimming-stroke. My chief recollection of those few troubled moments is of my arms being stretched out above my head, as if they were roped there with the weight of my body swinging on them. I supposed that was my finish.”

“But you went through!” she whispered, touching him softly on the arm as if to recall him from the memory of that despairing time.

“I came up against a rock like a dead fish,” said he, “my head above water, luckily. The current pinned me there and held me from slipping down. That saved me, for I hadn’t strength to catch hold. The pressure

almost finished me, but a few gasps cleared my lungs of water, and that helped some. 198

“There is no need for me to pretend that I know how I got on that rock, for I don’t know. A man loses the conscious relation with life in such a poignant crisis. He does heroic things, and overcomes tremendous odds, fighting to save what the Almighty has lent him for a little while. But I got on that rock. I lay there with just as little life in me as could kindle and warm under the ashes again. I might have perished of the chill of that place if it hadn’t been that the rock was a big one, big enough for me to tramp up and down a few feet and warm myself when I was able.

“I don’t know how far along the cañon I was, or how long it was after day broke over the world outside before the gray light sifted down to me. It revealed to me the fact that my rock of refuge was about midway of the stream, which was peculiarly free of obstructions just there. It seemed to me that the hand of Providence must have dashed me against it, and from that gleam I gathered the conviction that it was not ordained for me to perish there. I could not see daylight out of either end of the cañon, for its walls are winding, and of course I had nothing but a guess as to how far I had come.

“There was no foothold in the cliffs on either hand that I could see, and the pounding of that heavy volume of water down the fall of the cañon seemed to make the cliffs tremble. I had to get ashore against the cliff-side, somehow, if I ever intended to get out, and I intended to get out, no two ways about it. I might drown if I plunged in, but I might not. And I was certain to starve if I stuck to the rock. So I took off my coat, which the river had spared me, and let myself down from the lower end of the rock. I had that rolling and thrashing experience all over again, still not quite so bad, for there was daylight to cheer me every time my head got clear of the water. 199

“There’s no use pulling the story out. I made it. I landed, and I found that I could work my way along the side of the cliff and over the fallen masses by the waterside. It wasn’t so bad after that.

“My hope was that I might find a place where a breach in the cliff would offer me escape that way, but there was none. The strip of sky that I could see looked no wider than my hand. I saw the light at the mouth of the cañon when it was beginning to fall dusk in there. I suppose it was along the middle of the afternoon.”

“We were over there about then,” said she, “thinking you might have gone in to try for that reward. If we only had known!”

“You could have come over to the other end with a blanket,” said he, touching her hand in a little communicative expression of thankfulness for her interest. “There is a little gravelly strand bordering the river at that end. After its wild plunge it comes out quite docile, and not half so noisy as it goes in. I reached that strip of easy going just as it was growing too dark for safe groping over the rocks, and when I got there my legs bent like hot candles.”

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“I crawled the rest of the way; when I got out I must have been a sight to see. I know that I almost frightened out of his remaining wits a shepherd who was watering his flock. He didn’t believe that I came through the cañon; he didn’t believe anything I said, not even when I told him that I was cold and hungry.”

“The unfeeling beast!”

“Oh, no; he was just about an average man. He had a camp close by, and let me warm and dry myself by his fire; gave me some coffee and food when he saw that I wasn’t going to hurt him, but I don’t believe he shut an eye that entire night. He was so anxious to get rid of me in the morning that he gave me an old hat and coat, and that was the rig I wore when I returned to Comanche.”

“The hotel-keeper gave you the message that we left?” she asked.

“He was surly and ungracious, said he didn’t know where you were. I was of the opinion that you had turned my baggage over to him, and that he found it convenient to forget all about it.”

“We brought it here—it’s in my room now; and we told him when we left where we were going, Mr. Bentley and I.”

“Well, what little money I had was in my instrument-case,” said he. “So I was up against it right. I knew there was no use in lodging a complaint against Shanklin, for I had no proof against him, and never could convince a jury that I was in my right mind if I should tell my story in court. So I let that pass.”

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“It was a miraculous deliverance from death!” Agnes exclaimed, taking her breath freely again. Tears mounted to her eyes as she measured Dr. Slavens’ rugged frame as if with a new interest in beholding a common pattern which had withstood so much.

He told her of meeting Mackenzie, and of finding the lost die; of the raid they had made by means of it on Shanklin's money; of his discovery of the midnight extra in the pockets of the gambler's coat.

"So there you have it all," said he, smiling in embarrassment as if the relation of so much about himself seemed inexcusable. "Anyway, all of the first part of the story. The rest is all on dry land, and not interesting at all."

"But you hadn't had time to look over the land; you didn't know the good locations from the worthless," said she. "How did you pick out the claim you filed on?"

"Well, there's a little more of the story, it seems, after all. There was a plot between Shanklin and another to file Peterson on a certain tract and then buy him out, I suppose."

He told her of the telegram signed "Jerry," and of Shanklin's reply.

"So I concluded," he said, "that if the land described by their numbers was valuable to them it would be valuable to me. That my guess was good, I had proof when I filed. The chap who was piloting Peterson up to the window, and who I suspect was the 'Jerry' of the message, wanted to know where I got the figures. He wasn't a bit nice about it, either."

A swift pallor overspread Agnes Horton's face; a look of fright stood in her eyes.

"Was he a tall man, dark, with heavy eyebrows?" she inquired, waiting his answer with parted lips.

"That fits him," said he. "Do you know him?"

"It's Jerry Boyle, the Governor's son. He is Walker's friend; Walker brought him to camp the day after you disappeared. He had an invitation for Mrs. Reed and her party from his mother—you know they had been expecting it. And he said—he said—"

"He said—"

"That is, he told Walker that he saw you—*drunk* at two o'clock that morning."

"Hum-m," rumbled the doctor, running his hands through his hair. "Hum-m! I thought I knew that voice!"

He got to his feet in his agitation. Agnes rose quickly, placing her hand on his arm.

"Was he the other man?" she asked.

“Well, it’s a serious charge to lay against the Governor’s son,” he replied, “but I’m afraid he was the other man.”

There was such a look of consternation in her face that he sought to calm her. 203

“He’s not likely to go any further with it, though,” Slavens added.

“Oh, you don’t know him. You don’t know him!” Agnes protested earnestly.

He searched her face with a quick glance.

“Do you?” he asked, calmly.

“There is something bad in his face—something hiding, it seems to me,” she said, without show of conscious evasion.

“I’ll call him, no matter what move he makes,” Slavens declared, looking speculatively across the gorge. “Look how high the sun is up the wall over yonder. I think we’d better be going back.”

“Oh, I’ve kept you too long,” she cried in self-reproach. “And to think you were in the saddle all night.”

“Yes; I lost the trail and rode a good many miles out of the way,” said he. “But for that I’d have been on hand an hour sooner.”

“Well, you were in time, anyway.”

“And I’ve drawn blindly,” he laughed. “I’ve got a piece of land marked ‘Grazing,’ on the chart. It may be worth a fortune, and it may be worth twenty cents an acre. But I’m going to see it through. When are you going to file?”

“My number comes on the fifth day, but lapses may bring me in line tomorrow,” she answered. “Smith, the stage-driver, knows of a piece adjoining the one he has selected for himself, if nobody ‘beats him to it,’ as he says. He has given me the numbers, and I’m going to take his word for it. About half of it can be irrigated, and it fronts on the river. The rest is on the hills.” 204

“I hope you may get it. Smith ought to know what’s good in this country and what isn’t. When you have it you’ll lead on the water and plant the rose?”

“And plant the rose,” she repeated softly.

“Don’t you think,” he asked, taking her hand tenderly as she walked by his side, “that you’d better let me do the rough work for you now?”

“You are too generous, and too trusting in one unknown,” she faltered.

The beat of hoofs around the sharp turn in the road where it led out into the valley in which Meander lay, fell sharp and sudden on their ears. There the way was close-hemmed with great boulders, among which it turned and wound, and they scarcely had time to find a standing-place between two riven shoulders of stone when the horseman swept around the turn at a gallop.

He rode crouching in his saddle as if to reach forward and seize some fleeing object of pursuit, holding his animal in such slack control that he surely must have ridden them down if they had not given him the entire way. His hat was blown back from his dark face, which bore a scowl, and his lips were moving as if he muttered as he rode. Abreast of the pair he saw them where they stood, and touched his hat in salute. 205

In the dust that he left behind they resumed their way. Dr. Slavens had drawn Agnes Horton's hand through his arm; he felt that it was cold and trembling. He looked at her, perplexity in his kind eyes.

"That's the man who stood with Peterson at the head of the line," he said.

"Yes; Jerry Boyle," she whispered, looking behind her fearfully. "Let's hurry on! I'm afraid," she added with the ineffectiveness of dissimulation, "that I've kept you from your sleep too long. Together with your awful experience and that long ride, you must be shattered for the want of rest."

"Yet I could stand up under a good deal more," he rejoined, his thoughts trailing Jerry Boyle up the shadowy gorge. "But I was asking you, before that fellow broke in—"

She raised her hand appealingly.

"Don't, please. Please—not now!"

CHAPTER XIII

SENTIMENT AND NAILS

Vast changes had come over the face of that land in a few days. Every quarter-section within reach of water for domestic uses had its tent or its dugout in the hillside or its hastily built cabin of planks. Where miles of unpeopled desert had stretched lonely and gray a week before, the smoke of three thousand fires rose up each morning now, proclaiming a new domain in the kingdom of husbandry.

On the different levels of that rugged country, men and women had planted their tent-poles and their hopes. Unacquainted with its rigors, they were unappalled by the hardships, which lay ahead of them, dimly understood. For that early autumn weather was benignant, and the sun was mellow on the hills.

Speculation had not turned out as profitable as those who had come to practice it had expected. Outside of the anxiety of Jerry Boyle and others to get possession of the apparently worthless piece of land upon which Dr. Slavens had filed, there were no offers for the relinquishment of homesteads. That being the case, a great many holders of low numbers failed to file. They wanted, not homes, but something without much endeavor, with little investment and no sweat. So they had passed on to prey upon the thrifty somewhere else, leaving the land to those whose hearts were hungry for it because it *was* land, with the wide horizon of freedom around it, and a place to make home.

And these turned themselves to bravely leveling with road-scrapers and teams the hummocks where the sagebrush grew, bringing in surveyors to strike the level for them in the river-shore, plotting ditches to carry the water to their fields. Many of them would falter before the fight was done; many would lose heart in the face of such great odds before the green blessing of alfalfa should rise out of the sullen ground.

Many a widow was there, whose heart was buried in a grave back East, and many a gray man, making his first independent start. Always the West has held up its promise of freedom to men, and the hope of it has led them farther than the hope of gold.

About midway between Meander and Comanche, Agnes Horton was located on the land which Smith had selected for her. Smith had retired from driving the stage and had established a sort of commercial center on his homestead, where he had a store for supplying the settlers' needs. He also had gone into the business of contracting to clear lands of sagebrush and level them for irrigation, having had a large experience in that work in other parts of the state.

Agnes had pitched her tent on the river-bank, in a pleasant spot where there was plenty of grazing for her horse. Just across her line, and only a few hundred yards up-stream, a family was encamped, putting up³⁰⁸ a permanent home, making a reckless inroad among the cottonwoods which grew along the river on their land. Across the stream, which was fordable there, a young man and his younger wife, with the saddle-marks of the city on them, had their white nest. Agnes could hear the bride singing early in the morning, when the sun came up and poured its melted gold over that hopeful scene, with never a cloud before its face.

Twenty miles farther along, toward Comanche, Dr. Slavens had pitched his tent among the rocks on the high, barren piece of land which he had selected blindly, guided by Hun Shanklin's figures. He was not a little surprised, and at the same time cheered and encouraged, to find, when he came to locating it, that it was the spot where they had seen Shanklin and another horseman on the afternoon of their stage excursion, when the two had been taken by Smith as men of evil intent, and the doctor had been called to the box to handle the lines.

His neighbors in the rich valley below him regarded him with doubt of his balance, and that was a current suspicion up and down the river among those who did not know the story. But the politicians in Meander, and those who were on hand before the filing began, who knew how Jerry Boyle had nursed Axel Peterson, and how he had dropped the Scandinavian when the stranger rode up unexpectedly and filed on Number One, believed that the doctor had held inside information, and that his claim was worth millions.

But if the quarter-section contained anything of value, there was²⁹⁹ no evidence of it that Dr. Slavens could find. It was about the crudest and most unfinished piece of earth that he ever had seen outside the Buckhorn Cañon. It looked as if the materials for making something on a tremendous pattern had been assembled there, thrown down promiscuously, and abandoned.

Ledges of red rock, which seemed as if fires had scorched them for ages, stood edgewise in the troubled earth, their seamed faces toward the sky. It was as if nature had put down that job temporarily, to hurry off and finish the river, or the hills beyond the river, and never had found time to come back. Tumbled fragments of stone, huge as houses, showing kinship with nothing in their surroundings, stood here thickly in a little cup between the seared hills, and balanced there upon the sides of buttes among the streaks of blue shale.

A little grass grew here and there in carpet-size splotches, now yellow and dry, while that in the valley was at its best. Spiked plants, which looked tropical, and which were as green during the rigors of winter as during the doubtful blessings of summer, stood on the slopes, their thousand bayonets guarding against trespass where only pressing necessity could drive a human foot. Sheep-sage, which grew low upon the ground, and unostentatious and dun, was found here, where no flocks came to graze; this was the one life-giving thing which sprang from that blasted spot. 210

The lowest elevation on the doctor's claim was several hundred feet above the river, from which he hauled the water which he drank and used for culinary purposes. If there was wealth in the land and rocks, nature had masked it very well indeed. The pick and the hammer revealed nothing; long hours of prying and exploring yielded no gleam of metal to confirm his fast-shrinking belief that he had pitched on something good.

His only comfort in those first days was the thought of the money which he had taken from Shanklin, with the aid of the gambler's own honest little die. That cash was now safe in the bank at Meander. There was enough of it, everything else failing, to take him—and somebody—back to his own place when she was ready to go; enough to do that and get the automobile, take the world on its vain side, and pull success away from it. He was able for it now; no doubt of his ability to climb over any obstacle whatever remained after his wrestling match with the river in the Buckhorn Cañon. There was no job ahead of him that he could even imagine, as big as that.

Nobody had come forward to make him an offer for his place. Jerry Boyle had not appeared, nothing had been seen of the man who accosted him at the window the morning he filed. Although he had remained in Meander two days after that event, nobody had approached him in regard to the land which so many had seemed anxious to get before it came into his

ownership. Boyle he had not seen since the evening Dr. Slavens and Agnes met him in the gorge riding in such anxious haste.

Perhaps the value of the claim, if value lay in it, was the secret of a few, and those few had joined forces to starve out his courage and hope. If nobody came forward with a voluntary offer for the land, it never would be worth proving up on and paying the government the price asked for it. All over that country there was better land to be had without cost.

As the days slipped past and nobody appeared with ten thousand dollars bulging his pockets, Slavens began to talk to himself among the solitudes of his desert. He called himself a foremost example of stupidity and thick-headedness for not giving ear to the man who wanted to talk business the day he filed on that outcast corner of the earth. Then, growing stubborn, he would determine to pay the government the purchase price, clean up on it at once, and take title to it. Then, if it *had* the stuff in it, they might come around with some sort of offer in time.

No matter; he would stick to it himself until winter. That always was his final conclusion, influenced, perhaps, by a hope that the roughness of winter would speedily convince "somebody" that roses and dreams of roses belonged to the summer. He would have nothing more to pay on the homestead for a year. And much could happen in a year, in a day; even an hour.

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Slavens had a good tent in a sheltered place, which he believed he could make comfortable for winter, and he meant to send for some books. Meantime, he had tobacco to smoke and a rifle to practice with, and prospects ahead, no matter which way the cat might jump.

The doctor's target practice was a strong contributing force to the general belief among his neighbors that he was deranged. They said he imagined that he was repelling invaders from his claim, which would be valuable, maybe, to a man who wanted to start a rattlesnake farm. But Slavens had a motive, more weighty than the pastime that this seemingly idle pursuit afforded. There was a time of settlement ahead between him and Jerry Boyle for the part the Governor's son had borne in his assault. When the day for that adjustment came, Slavens intended to seek it.

Concerning Shanklin, he was in a degree satisfied with what he had done. The loss of that much money, he believed, was a greater drain on the old crook than a gallon of blood. Slavens felt that it hurt Shanklin in the gambler's one sensitive spot. There was a great deal owing to him yet from

that man, in spite of what he had forced Shanklin to pay, and he meant to collect the balance before he left that state.

So the rifle practice went ahead, day by day, supplemented by a turn now and then with Hun Shanklin's old black pistol, which Mackenzie had turned over to Slavens as part of his lawful spoil.

While Dr. Slavens banged away among his rocks, not knowing whether he was a victim of his own impetuosity or the peculiarly favored son of fortune, Agnes Horton, in her tent beside the river, was undergoing an adjustment of vision which was assisting her to see startlingly things exactly as they were. The enchantment of distance had fallen away. When she came to grips with the land, then its wild unfriendliness was revealed, and the magnitude of the task ahead of her was made discouragingly plain.

All over her cultivable strip of land which lay between the river and the hills, the gray sage grew in clumps, each cluster anchoring the soil around it in a little mound. Through many years the earth had blown and sifted around the sapless shrubs until they seemed buried to the ears, and hopeless of ever getting out again, but living on their gray life in a gray world, waiting for the best.

All of this ground must be leveled before it could receive the benefits of irrigation, and the surprising thing to her was how much wood the land yielded during this operation. Each little sagebrush had at least twenty times as much timber under the earth as it had above, and each thick, tough root was a retarding and vexatious obstacle in the way of scraper and plow. Smith said it was sometimes necessary in that country to move three acres of land in order to make one.

But Smith was enthusiastically for it. He kept asserting that it paid, and pointed to the small bit of agricultural land that there was in the whole expanse of that reservation, for an example, to prove his point. There was room for other industries, such as mining and grazing, but the man who could grow food and forage for the others was the one who would take down the money from the hook. That was Smith's contention.

He told Agnes that she could lift enough water with a wheel in the river to irrigate a garden and more, but there was no need of putting in the wheel until spring. The rains of that season would bring up the seed, and while it was making the most of the moisture in the ground she could be setting her wheel.

“A person’s got to plan ahead in this country,” said Smith. “You must know to a skinned knuckle just what you’ll need a year, or five years, ahead here, if you ever make it go worth havin’. It ain’t like it is back where you come from. There you can go it more or less hit-or-miss, and hit about as often as you miss. Here you’ve got to know.”

Smith was moving to organize the settlers along the river into a company to put in a canal which would water all their land, the chief capital to be elbow-grease; the work to be done that fall and winter. Smith was indeed the head and inspiration of all enterprise in that new place. People to whom that country was strange, and that included nearly all of them, looked to him for advice, and regarded with admiration and wonder his aptness in answering everything.

Agnes was doubtful of the future, in spite of her big, brave talk to Dr. Slavens in the days before the drawing. Now that she had the land, and a better piece of it than she had hoped for, considering her high number, she felt weakly unfit to take it in hand and break it to the condition of docility in which it would tolerate fruit-trees, vines, and roses.

It cheered her considerably, and renewed her faith in her sex, to see some of the women out with their teams, preparing their land for the seeding next spring. More than one of them had no man to lean on, and no money to hire one to take the rough edge off for her. In that respect Agnes contrasted her easier situation with theirs. She had the means, slender as they might be, indeed, to employ somebody to do the work in the field. But the roses she reserved for her own hands, putting them aside as one conceals a poem which one has written, or a hope of which he is afraid.

In the first few days of her residence on her land, Agnes experienced all the changes of mercurial rising and falling of spirits, plans, dreams. Some days she saddled her horse, which she had bought under the doctor’s guidance at Meander, and rode, singing, over the hills, exalted by the wild beauty of nature entirely unadorned. There was not yet a house in the whole of what had been the Indian Reservation, and there never had been one which could be properly called such.

Here was a country, bigger than any one of several of the far eastern states, as yet unchanged by the art of man. The vastness of it, and the liberty, would lay hold of her at such times with rude power, making her feel herself a part of it, as old a part of it as its level-topped buttes and ramparts of riven stone.

Then again it frightened her, giving her a feeling such as she remembered once when she found herself alone in a boat upon a great lake, with the shore left far behind and none in sight beyond the misty horizon. She seemed small then, and inadequate for the rough struggle that lay ahead.

Smith noted this, and read the symptoms like a doctor.

“You’ve got to keep your nerve,” he advised, bluntly kind, “and not let the lonesomeness git a hold on you, Miss Horton.”

“The lonesomeness?” she echoed. It seemed a strange-sounding phrase.

“It’s a disease,” Smith proceeded, “and I suppose you git it anywhere; but you git it harder here. I’ve seen men take it, and turn gray and lose their minds, runnin’ sheep. After you once git over it you’re broke. You wouldn’t leave this country for a purty on a chain.”

“I hope I’ll not get it,” she laughed. “How do people act when they take the lonesomeness?”

“Well, some acts one way and some acts another,” said Smith. “Some mopes and run holler-eyed, and some kicks and complains and talk about ‘God’s country’ till it makes you sick. Just like this wasn’t as much God’s country as any place you can name! It’s all His’n when you come down to the p’int, I reckon. But how a woman acts when she takes it I can’t so much say for I never knew but one that had it. She up and killed a man.”

“Oh, that was terrible! Did she lose her mind?”

“Well, I don’t know but you could say she did. You see she married a sheepman. He brought her out here from Omaha, and left her up there on the side of the mountain in a little log cabin above Meander while he went off foolin’ around with them sheep, the way them fellers does. I tell you when you git sheep on the brain you don’t eat at home more than once in three months. You live around in a sheep-wagon, cuttin’ tails off of lambs, and all such fool things as that.”

“Why, do they cut the poor things’ tails off?” she asked, getting the notion that Smith was having a little fun at her expense.

“They all do it,” he informed her, “to keep the sand and burrs out of ’em. If they let ’em grow long they git so heavy with sand it makes ’em poor to pack ’em. they say, I don’t know myself; I’m not a sheepman.”

“But why did she shoot a man? Because he cut off lambs’ tails?”

“No, she didn’t,” said Smith. “She went out of her head. The feller she shot was a storekeeper’s son down in Meander, and he got to ridin’ up there

to talk to her and cheer her up. The lonesomeness it had such a hold on her, thinkin' about Omaha and houses, and pie-annos playin' in every one of 'em, that she up and run off with that feller when he promised to take her back there. They started to cut across to the U.P. in a wagon—more than a hundred miles. That night she come to her head when he got too fresh, and she had to shoot him to make him behave.”

“Her husband should have been shot, it seems to me, for leaving her that way,” Agnes said.

“A man orto stick to his wife in this country, specially if she’s new to it and not broke,” said Smith; “and if I had one, ma’am, I’d *stick* to her.”

Smith looked at her as he said this, with conviction and deep earnestness in his eyes.

“I’m sure you would,” she agreed.

“And I’d be kind to her,” he declared.

“There’s no need to tell me that,” she assured him. “You’re kind to everybody.”

“And if she didn’t like the name,” Smith went on significantly, “I’d have it changed!”

“I’m sure she’d like it—she’d be very ungrateful if she didn’t,” Agnes replied, somewhat amused by his earnestness, but afraid to show it. “I’m going to order lumber for my house in a day or two.”

Smith switched from sentiment to business in a flash.

“Let me sell you the nails,” he requested. “I can give ’em to you as cheap as you can git ’em in Meander.”

CHAPTER XIV

“LIKE A WOLF”

Agnes had been on her homestead almost a week. She was making a brave “stagger,” as Smith described all amateurish efforts, toward cutting up some dry cottonwood limbs into stove-lengths before her tent on the afternoon that Jerry Boyle rode across the ford.

While she had not forgotten him, she had begun to hope that he had gone back to Comanche, and his sudden appearance there gave her an unpleasant shock. He drew up near her with a friendly word, and dismounted with a cowboy swing to his long body and legs.

“Well, Agnes, you dodged me in Meander,” said he. “You’ve located quite a piece up the river and off the stage-road, haven’t you?”

“But not far enough, it seems,” she answered, a little weariness in her voice, as of one who turns unwillingly to face at last something which has been put away for an evil day.

“No need for us to take up old quarrels, Agnes,” he chided with a show of gentleness.

“I don’t want to quarrel with you, Jerry; I never did quarrel with you,” she disclaimed.

“‘Misunderstandings’ would be a better word then, I suppose,” he corrected. “But you could have knocked me over with a feather when you repudiated me over there at Comanche that day. I suppose I should have known that you were under an alias before I made that break, but I didn’t know it, Agnes, believe *me*.”

“How could you?” she said, irritably. “That was nothing; let it rest. But you understand that it was for the sake of others that the alias was—and is—used; not for my own.”

“Of course, Agnes. But what do you want to be wasting yourself on this rough country for? There are more suitable places in Wyoming for you than this lonesome spot. What’s the object, anyhow?”

“I am building here the City of Refuge,” said she, “and its solitude will be its walls.”

“Ready for the time when *he* comes back, I suppose?”

She nodded assent slowly, as if grudging him that share of the knowledge of her inner life.

“Poor old kid, you’ve got a job ahead of you!” he commiserated.

A resentful flush crept into her face, but she turned aside, gathering her sticks as if to hide her displeasure. Boyle laughed.

“Pardon the familiarity—‘vulgar familiarity’ you used to call it—Agnes. But ‘what’s bred in the bone,’ you know.”

“It doesn’t matter so much when there’s no one else around, but it’s awkward before people.” 221

“You wouldn’t marry me on account of my tongue!” said he with sour reminiscence.

“It wasn’t so much that, Jerry,” she chided, “and you know it perfectly well.”

“Oh, well, if a man does take a drink now and then—” he discounted.

“But many drinks, and frequently, are quite different,” she reproved.

“We’ll not fuss about it.”

“Far from it,” she agreed.

“I didn’t come down to open old matters, although I suppose you thought that was my intention when you dodged me and stuck so close to that tin-horn doctor up at Meander.”

“It’s comforting to know you haven’t come for—*that*,” said she, ignoring his coarse reference to Slavens.

“No; things change a good deal in four years’ time, even sentiment—and names.”

“But it wouldn’t be asking too much to expect you to respect some of the changes?”

“I don’t suppose,” he mused, “that many people around here care whether a man’s name is the one he goes by, or whether it’s the one he gets his mail under at the post-office at Comanche. That’s generally believed to be a man’s own business. Of course, he might carry it too far, but that’s his own lookout.”

“Are you on your way to Comanche?” she asked.

Boyle motioned her to the trunk of the cottonwood whose branches she had been chopping into fuel, with graceful and unspoken invitation to sit down and hear the tale of his projected adventures. 222

"I've been wearing a pair of these high-heeled boots the past few days for the first time since I rode the range," he explained, "and they make my ankles tired when I stand around."

He seated himself beside her on the fallen log.

"No, I'm not going to Comanche," said he. "I came down here to see you. They gave me the worst horse in the stable at Meander, and he'll never be able to carry me back there without a long rest. I'll have to make camp by the river."

She glanced at his horse, on the saddle of which hung, cowboy fashion, a bag of grub which also contained a frying-pan and coffeepot, she knew, from having seen many outfits like it in the stores at Comanche. A blanket was rolled behind the high cantle. As for the horse, it seemed as fresh and likely as if it had come three miles instead of thirty. She believed from that evidence that Jerry's talk about being forced to make camp was all contrived. He had come prepared for a stay.

"I got into the habit of carrying those traps around with me when I was a kid," he explained, following her eyes, "and you couldn't drive me two miles away from a hotel without them. They come in handy, too, in a pinch like this, I'm here to tell you."

"It's something like a wise man taking his coat, I suppose."

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"Now you've got it," commended Boyle.

"But Smith, who used to drive the stage, could have fixed you up all right," she told him. "He's got a tent to lodge travelers in down by his new store. You must have seen it as you passed?"

"Yes; and there's another crook!" said Boyle with plain feeling on the matter. "But I didn't come down here to see Smith or anybody else but you. It's business."

He looked at her with severity in his dark face, as if to show her that all thoughts of tenderness and sentiment had gone out of his mind.

"I'm listening," said she.

"There's a man down here a few miles spreadin' himself around on a piece of property that belongs to me," declared Boyle, "and I want you to help me get him off."

She looked at him in amazement.

"I don't understand what you mean," said she.

"Slavens."

“Dr. Slavens? Why, he’s on his own homestead, which he filed upon regularly. I can’t see what you mean by saying it belongs to you.”

“I mean that he stole the description of that land at the point of a gun, that’s what I mean. It belongs to me; I paid money for it; and I’m here to take possession.”

“You’ve got your information wrong,” she denied indignantly. “Dr. Slavens didn’t steal the description. More than that, he could make it pretty uncomfortable for certain people if he should bring charges of assault and intended murder against them, Mr. Jerry Boyle!”

“Oh, cut out that high-handshake stuff, Miss Agnes Horton-Gates, or Gates-Horton, and come down to brass tacks! The time was when you could walk up and down over me like a piece of hall carpet, and I’d lie there and smile. That day’s gone by. I’ve got wool on me now like a bellwether, and I’m shaggy at the flanks like a wolf. I can be as mean as a wolf, too, when the time comes. You can’t walk up and down over me any more!”

“Nobody wants to walk up and down over you!” she protested. “But if you want to put Dr. Slavens off that homestead, go and do it. You’ll not draw me into any of your schemes and murderous plots, and you’ll find Dr. Slavens very well able to take care of himself, too!”

“Oh, sure he can!” scoffed Boyle. “You didn’t seem to think so the time you turned Comanche inside out hunting him, when he was layin’ drunk under a tent. I don’t know what kind of a yarn he put up when he came back to you, but I’ve got the goods on that quack, I’ll give you to understand!”

Boyle was dropping his polish, which was only a superficial coating at the best. In the bone he was a cowboy, belonging to the type of those who, during the rustlers’ war, hired themselves out at five dollars a day, and five dollars a head for every man they could kill. Boyle himself had been a stripling in those days, and the roughness of his training among a tribe of as desperate and unwashed villains as ever disgraced the earth underlay his fair exterior, like collar-welts on a horse which has been long at pasture.

“I’m not under obligations to keep anybody’s secrets in this country when it comes to that,” Boyle reminded her.

“It couldn’t be expected of you,” she sighed.

“You’re close to that feller,” he pursued, “and he’s as soft as cheese on you. All right; pool your troubles and go on off together for all I care, but

before you turn another wheel you'll put the crowbar under that man that'll lift him off of that land; savvy? Well, that's what you'll do!"

"You can spread it all up and down the river that I'm living here under an assumed name, and you may tell them anything else—all that is true—that you think you ought to tell, just as soon as you want to begin," she said, rising and moving away from him in scorn. "I'll not help you; I couldn't help you if I would."

Boyle got up, his face in a scowl, and as she retreated toward her tent, followed her in his peggy, forward-tilting cowboy walk.

"Say," he hailed, unveiling at once all the rudeness of his character, "come back here a minute and take your medicine!"

She paused while he came up.

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"Jerry," said Agnes gently, turning upon him eyes full of sadness and lost hope, "get on your horse and go away. Don't force me to think worse of you than I have thought. Go away, Jerry; go away!"

Boyle's face was flushed, and his naturally pop-eyed expression was greatly aggravated by his anger. It seemed that his eyes were straining to leap out, and had forced themselves forward until the whites showed beyond the lids.

"Yes, that Slavens is one of these men that'd eat hot rocks for the woman he loves," he sneered. "Well, it's up to him to show how far he'll go for you."

"It's unworthy of even you, Jerry, to talk like that," she reproved. "As far as I know, I am nothing more to Dr. Slavens than any other friend. If you want his claim, why don't you go down there and buy it, as you were ready to buy it from Peterson if you could have filed him on it?"

"Because I can get it cheaper," said Boyle. "I'll not give him ten cents for it. It's your job to go and tell him that I want him to go over to Meander and pay up on that land, and I'll furnish the money for it, but before he pays he must sign a relinquishment to me."

"I'll not do it!" she declared.

"If you won't lead, I'll have to try spurs, and I don't like to do that, Agnes, for the sake of old days."

"Forget the old days."

"I'll go you," said he.

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“There’s nothing that you can tell these people about me that will lower me much in their estimation. None of them, except Smith, knows me very well, anyhow. I don’t care so much for their opinion, for I’m not here to please them.”

Boyle placed his hand on her shoulder and looked gravely into her face.

“But if I was to show proof to the land commissioner that you’d got possession of a homestead here through fraud and perjury, then where would you land?” he asked.

“It isn’t true!” she cried, fear rising within her and driving away the color of courage which to that moment had flown in her face.

“It is true, Agnes,” he protested. “You registered under the name of Agnes Horton and made affidavit that it was your lawful name; you entered this land under the same name, and took title to it in the preliminaries, and that’s fraud and perjury, if I know anything about the definition of either term.”

“Do you mean to tell me, Jerry,” she faltered, “that I’d have to go to prison if Dr. Slavens wouldn’t consent to save me by giving up his claim to you?”

“Well, the disgrace of it would amount to about the same, even if a jury refused to send you up,” said he brutally, grinning a little over the sight of her consternation. “You’d be indicted, you see, by the Federal grand jury, and arrested by the United States marshal, and locked up. Then you’d be tried, and your picture would be put in the papers, and the devil would be to pay all around. You’d lose your homestead anyhow, and your right to ever take another. Then where would the City of Refuge be?”

“But you wouldn’t do it,” she appealed, placing her hand on his arm, looking into his face beseechingly, the sudden weight of her trouble making her look old. “You wouldn’t do it, Jerry, would you?”

“Wouldn’t I?” he mocked disdainfully. “Well, you watch me!”

“It’s a cowardly way to use an advantage over a woman!”

“Never mind,” grinned Boyle. “I’ll take care of that. If that tin-horn doctor wants to toe the line and do what I say to keep you out of a Federal pen, then let him step lively. If he does it, then you can stay here in peace as long as you live, for anything I’ll ever say or do. You’ll be Agnes Horton to me as long as my tongue’s in workin’ order, and I’ll never know any more

about where you came from or what passed before in your history than Smith down there.”

Agnes stood with her head drooping, as if the blackmailer’s words had taken away the last shoring prop of her ambition and hope. After a while she raised her white, pained face.

“And if I refuse to draw the doctor into this to save myself?” she asked.

“Then I guess you’ll have to suffer, old kid!” said he.

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Boyle saw the little tremor which ran over her shoulders like a chill, and smiled when he read it as the outward signal of inward terror. He had no doubt in the world that she would lay hold of his alternative to save herself and her plans for others, as quickly as he, coward at heart, would sacrifice a friend for his own comfort or gain.

Yet Agnes had no thought in that moment of sacrificing Dr. Slavens and his prospects, which the unmasking of Boyle’s hand now proved to be valuable, to save herself. There must be some other way, she thought, and a few hours to turn it in her mind, and reflect and plan, might show her the road to her deliverance. She did not doubt that the penalty for what she had done would be as heavy as Boyle threatened.

“So it’s up to you, handle first,” exulted Boyle, breaking her reflections. “I’ll ride off down the river a little piece and go into camp, and tomorrow evening I’ll come up for your answer from Slavens. It’s about twenty miles from here to his claim, and you can make it there and back easy if you’ll start early in the morning. So it’s all up to you, and the quicker the sooner, as the man said.”

With that, Boyle rode away. According to her newly formed habit, Agnes gathered her wood and made a fire in the little stove outside her tent, for the day was wasting and the shadow of the western hills was reaching across the valley.

Life had lost its buoyancy for her in that past unprofitable hour. It lay around her now like a thing collapsed, which she lacked the warm breath to restore. Still, the evening was as serene as past evenings; the caress of the wind was as soft as any of the south’s slow breathings of other days. For it is in the heart that men make and dismantle their paradises, and from the heart that the fountain springs which lends its color to every prospect that lies beyond.

Boyle's dust had not settled before Smith came by, jangling a road-scraper behind his team. He was coming from his labor of leveling a claim, skip one, up the river. He drew up, his big red face as refulgent as the setting sun, a smile on it which dust seemed only to soften and sweat to illumine. He had a hearty word for her, noting the depression of her spirit.

After passing the commonplaces, a ceremony which must be done with Smith whether one met him twice or twenty times a day, he waved his hand down the river in the direction that Boyle had gone.

"Feller come past here a little while ago?" he asked, knowing very well that Boyle had left but a few minutes before.

"He has just gone," she told him.

"Jerry Boyle," nodded Smith; "the Governor's son. He ain't got no use for me, and I tell you, if I had a woman around the place—"

Smith hung up his voice there as if something had crossed his mind. He stood looking down the valley in a speculative way.

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"Yes?" she inquired, respectfully recalling him.

"Yes," repeated Smith. "If I had a woman around the house I'd take a shot at that feller as quick as I would at a lobo-wolf!"

Smith jangled on, his scraper making toadish hops and tortoise-like tips and amblings over the inequalities in the way. She looked after him, a new light shining from her eyes, a new passion stirring her bosom, where his words had fallen like a spark upon tinder.

So that was the estimation in which men held Jerry Boyle—men like Smith, who moved along the lower levels of life and smoothed over the rough places for others to pass by and by! It must be but the reflection of thought in higher planes—"If I had a woman around the place!" Such then was the predatory reputation of Jerry Boyle, who was capable of dishonorable acts in more directions than one, whose very presence was a taint.

And he would ride back there tomorrow evening, perhaps after the sun had set, perhaps after darkness had fallen, to receive the answer to his dishonorable proposal that she sacrifice her friend to save herself from his spite, and the consequences of her own misguided act.

"If I had a woman around the place!"

The spark in the tinder was spreading, warming, warming, glowing into a fierce, hot flame. Like a wolf—like a wolf—Smith would take a shot at him—

like a wolf! Smith had compared him to a wolf; had said he could be ²³²as mean as a wolf—and if there was a woman around the place!

She went into the tent, the blood rising hot to her temples, beating, singing in her ears. The revolver which she had brought with her on the doctor's advice hung at the head of her cot. With it strapped around her she went back to her stove, which she fed with a wild vigor, exulting in seeing the flames pour out of the pipe and the thin sides grow red.

“Like a wolf—like a wolf!”

The words pounded in her mind, leaped through her circulation like quickening fire.

“Like a wolf—if there was a woman around the house—”

And a man like that was coming back, perhaps when the darkness had let down over that still valley, expecting her to say that she had killed the hope of her dearest friend to shield herself from his smirched and guilty hand!

CHAPTER XV

AN ARGUMENT ENDS

Morning found Agnes only the more firmly determined to bear her troubles alone. Smith came by early. He looked curiously at the revolver, which she still carried at her waist, but there was approval in his eyes. The sight of the weapon seemed to cheer Smith, and make him easier in his mind about something that had given him unrest. She heard him singing as he passed on to his work. Across the river the bride was singing also, and there seemed to be a song in even the sound of the merry axes among the cottonwoods, where her neighboring settler and his two lank sons were chopping and hewing the logs for their cabin. But there was no song in her own heart, where it was needed most.

She knew that Jerry Boyle had camped somewhere near the stage-road, where he could watch her coming and going to carry the demand on Dr. Slavens which he had left with her. He would be watching the road even now, and he would watch all day, or perhaps ride up there to learn the reason when he failed to see her pass. She tied back the flaps of her tent to let the wind blow through, and to show any caller that she was not at home, then saddled her horse and rode away into the hills. It needed a day of solitude, she thought, to come to a conclusion on the question how she was to face it out with Jerry Boyle. Whether to stay and fight the best that she was able, or to turn and fly, leaving all her hopes behind, was a matter which must be determined before night.

In pensive mood she rode on, giving her horse its head, but following a general course into the east. As her wise animal picked its way over the broken ground, she turned the situation in her mind.

There was no doubt that she had been indiscreet in the manner of taking up her homestead, but she could not drive herself to the belief that she had committed a moral crime. And the doctor. He would drop all his prospects in the land that he held if she should call on him, she well believed. He was big enough for a sacrifice like that, with never a question in his honest eyes to cloud the generosity of the act. If she had him by to advise her in this

hour, and to benefit by his wisdom and courage, she sighed, how comfortable it would be.

Perhaps she should have gone, mused she, pursuing this thought, to his place, and put the thing before him in all its ugliness, with no reservations, no attempts to conceal or defend. He could have told her how far her act was punishable. Perhaps, at the most, it would mean no more than giving up the claim, which was enough, considering all that she had founded on it. Yes, she should have ridden straight to Dr. Slavens; that would have been the wiser course. 235

Considering whether she would have time to go and return that day, wasted as the morning was, she pulled up her horse and looked around to see if she could estimate by her location the distance from her camp. That she had penetrated the country east of the river farther than ever before, was plain at a glance. The surroundings were new to her. There was more vegetation, and marks of recent grazing everywhere.

She mounted the hill-crest for a wider survey, and there in a little valley below her she saw a flock of sheep grazing, while farther along the ridge stood a sheep-wagon, a strange and rather disconcerting figure striding up and down beside it.

Doubtless it was the shepherd, she understood. But a queer figure he made in that place; and his actions were unusual, to say the least, in one of his sedate and melancholy calling. He was a young man, garbed in a long, black coat, tattered more or less about the skirts and open in front, displaying his red shirt. His hair was long upon his collar, and his head was bare.

As he walked up and down a short beat near his wagon, the shepherd held in his hand a book, which he placed before his eyes with a flourish now, and then with a flourish withdrew it, meantime gesticulating with his empty hand in the most extravagant fashion. His dog, sharper of perception than its master, lay aside from him a little way, its ears pricked up, its sharp nose lifted, sniffing the scent of the stranger. But it gave no alarm. 236

Agnes felt that the man must be harmless, whatever his peculiarities. She rode forward, bent on asking him how far she had strayed from the river. As she drew near, she heard him muttering and declaiming, illustrating his arguments of protestation with clenched fist and tossing head, his long hair lifting from his temples in the wind.

He greeted her respectfully, without sign of perturbation or surprise, as one well accustomed to the society of people above the rank of shepherd.

“My apparent eccentric behavior at the moment when you first saw me, madam, or miss, perhaps, most likely I should say, indeed—”

Agnes nodded, smiling, to confirm his penetration.

“So, as I was saying, my behavior may have led you into doubt of my balance, and the consequent question of your safety in my vicinity,” he continued.

“Nothing of the kind, I assure you,” said she. “I thought you might be a—divinity student by your dress, or maybe a candidate for the legal profession.”

“Neither,” he disclaimed. “I am a philosopher, and at the moment you first beheld me I was engaged in a heated controversy with Epictetus, whose *Discourses* I hold in my hand. We are unable to agree on many points, especially upon the point which he assumes that he has made in the discussion of grief. He contends that when one is not blamable for some calamity which bereaves him or strips him of his possessions, grief is unmanly, regret inexcusable.”

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“‘How?’ say I, meeting him foot to foot on the controversy, ‘in case I lose my son, my daughter, my wife—the wife of my soul and heart—shall I not grieve? shall I not be permitted the solace of a tear?’

“And Epictetus: ‘Were you to blame for the disease which cut them off? Did you light the fire which consumed them, or sink the ship which carried them down?’

“‘No,’ I answer; ‘but because I’m blameless shall I become inhuman, and close my heart to all display of tenderness and pain?’

“And there we have it, miss, over and over again. Ah, I am afraid we shall never agree!”

“It is lamentable,” Agnes agreed, believing that the young man’s life in the solitudes had unsettled his mind. “I never agree with him on that myself.”

The philosopher’s hollow, weathered face glowed as she gave this testimony. He drew a little nearer to her, shaking the long, dark, loose hair back from his forehead.

“I am glad that you don’t think me demented,” said he. “Many, who do not understand the deeper feelings of the soul, do believe it. The hollow-

minded and the unstable commonly lose their small balance of reason in these hills, miss, with no companionship, month in and month out, but a dog and the poor, foolish creatures which you see in the valley yonder. But to one who is a philosopher, and a student of the higher things, this situation offers room for the expansion of the soul. Mine has gone forth and enlarged here; it has filled the universe.”

“But a man of your education and capabilities,” she suggested, thinking to humor him, “ought to be more congenially situated, it seems to me. There must be more remunerative pursuits which you could follow?”

“Remuneration for one may not be reward for another,” he told her. “I shall remain here until my mission is accomplished.”

He turned to his flock, and, with a motion of the arm, sped his dog to fetch in some stragglers which seemed straying off waywardly over the crest of the opposite hill. As he stood so she marked his ascetic gauntness, and noted that the hand which swung at his side twitched and clenched, and that the muscles of his cleanly shaved jaws swelled as he locked his teeth in determination.

“Your mission?” she asked, curious regarding what it might be, there in the solitude of those barren hills.

“I see that you are armed,” he observed irrelevantly, as if the subject of his mission had been put aside. “I have a very modern weapon of that pattern in the wagon, but there is little call for the use of it here. Perhaps you live in the midst of greater dangers than I?”

“I’m one of the new settlers over in the river bottom,” she explained. “I rode up to ask you how far I’d strayed from home.”

“It’s about seven miles across to the river, I should estimate,” he told her. “I graze up to the boundary of the reservation, and it’s called five miles from there.”

“Thank you; I think I’ll be going back then.”

“Will you do me the favor to look at this before you go?” he asked, drawing a folded paper from the inner pocket of his coat and handing it to her.

It was a page from one of those so-called *Directories* which small grafters go about devising in small cities and out-on-the-edge communities, in which the pictures of the leading citizens are printed for a consideration. The page had been folded across the center; it was broken and worn.

“You may see the person whose portrait is presented there,” said he, “and if you should see him, you would confer a favor by letting me know.”

“Why, I saw him yesterday!” she exclaimed in surprise. “It’s Jerry Boyle!”

The sheep-herder’s eyes brightened. A glow came into his brown face.

“You do well to go armed where that wolf ranges!” said he. “You know him—you saw him yesterday. Is he still there?”

“Why, I think he’s camped somewhere along the river,” she told him, unable to read what lay behind the excitement in the man’s manner.

He folded the paper and returned it to his pocket, his breath quick upon his lips. Suddenly he laid hold of her bridle with one hand, and with the other snatched the revolver from her low-swinging holster.

“Don’t be alarmed,” said he; “but I want to know. Tell me true—lean over and whisper in my ear. Is he your friend?”

“No, no! Far from it!” she whispered, complying with his strange order out of fear that his insanity, flaming as it was under the spur of some half-broken memory, might lead him to take her life.

He gave her back the revolver and released the horse.

“Go,” said he. “But don’t warn him, as you value your own life! My mission here is to kill that man!”

Perhaps it was a surge of unworthiness which swept her, lifting her heart like hope. The best of us is unworthy at times; the best of us is base. Selfishness is the festering root of more evil than gold. In that flash it seemed to her that Providence had raised up an arm to save her. She leaned over, her face bright with eagerness.

“Has he wronged you, too?” she asked.

He lifted his hand to his forehead slowly, as if in a gesture of pain. The blood had drained from his face; his cheek-bones were marked white through his wind-hardened skin.

“It’s not a subject to be discussed with a woman, sir,” said he absently. “There was a wife—somewhere there was a wife! This man came between us. I was not then what I am today—a shepherd on the hills.... But I must keep you here; you will betray me and warn him if I let you go!” he cried, rousing suddenly, catching her bridle again.

“No, I’ll not warn him,” Agnes assured him.

“If I thought you would”—he hesitated, searching her face with his fevered eyes, in which red veins showed as in the eyes of an angry dog—“I’d have to sacrifice you!”

Agnes felt that she never could draw her weapon in time, in case the eccentric tried to take it away again, and her heart quailed as she measured the distance she would have to ride before the fall of the ground would protect her, even if she should manage to break his hold on the bridle, and gallop off while he was fetching his pistol from the wagon.

“I’ll not warn him,” said she, placing her hand on his arm. “I give you my sincere word that I’ll do nothing to save him from what I feel to be your just vengeance.”

“Go, before I doubt you again!” he cried, slapping her horse with his palm as he let go the bridle.

From the tip of the hill she looked back. He had disappeared—into the wagon, she supposed; and she made haste to swerve from the straight course to put another hill between them, in case he might run after her, his mad mind again aflame with the belief that she would cheat him of his revenge.

Agnes arrived in camp full of tremors and contradictory emotions. One minute she felt that she should ride and warn Boyle, guilty as he might be, and deserving of whatever punishment the hand of the wronged man might be able to inflict; the next she relieved herself of this impulse by arguing that the insane sheep-herder was plainly the instrument of fate—she lacked the temerity, after the first flush, to credit it to Providence—lifted up to throw his troubles between her and her own.

She sat in the sun before her tent thinking it over, for and against, cooling considerably and coming to a saner judgment of the situation. Every little while she looked toward the hills, to see if the shepherd had followed her. She had seen no horse in the man’s camp; he could not possibly make it on foot, under two hours, even if he came at all, she told herself.

Perhaps it was an imaginary grievance, based upon the reputation which Boyle had earned for himself; maybe the poor, declaiming philosopher had forgotten all about it by now, and had returned to his discourses and his argument. She brewed a pot of tea, for the shadows were marking noonday, and began to consider riding down the river to find Boyle and tell him of

the man's threat, leaving him to follow his own judgment in the matter. His conscience would tell him whether to stand or fly.

Strong as her resentment was against the man who had come into her plans so unexpectedly and thrown them in a tangle, she felt that it would be wrong to her own honesty to conceal from him the knowledge of his danger. Perhaps there remained manliness enough in him to cause him to withdraw his avaricious scheme to oust Dr. Slavens in return for a service like that. She determined at last to seek Boyle in his camp. 243

She brought up her horse and saddled it, took a look around camp to see that everything was in shape—for she liked to leave things tidy, in case some of the neighbors should stop in—and was about to mount, when a man's head and shoulders appeared from behind her own cottonwood log. A glance showed her that it was the sheep-herder. His head was bare, his wild hair in his eyes.

He got to his feet, his pistol in his hand.

"I watched you," said he, sheathing the weapon, as if he had changed his mind about the use of it. "I knew you'd go!"

"But I didn't intend to when I parted from you up there on the hill," she declared, greatly confused over being caught in this breach of faith with even a crazy man.

"I considered that, too," said the philosopher. "But I watched you. I'll never be fool enough to entirely trust a woman again. You all lie!"

She wondered how he had arrived there so quickly and silently, for he gave no evidence of fatigue or heat. She did not know the dry endurance which a life like his builds up in a man. Sheep-herders in that country are noted for their fleetness. It is a common saying of them that their heels are as light as their heads.

But there he was, at any rate, and her good intentions toward Boyle must be surrendered. Conscience had a palliative in the fact that she had meant to go. 244

"Heaven knows I have as little reason to wish him well as you!" said she, speaking in low voice, as if to herself, as she began to undo the saddle girth.

"Stay here, then," said the sheep-herder, watching her with glistening eyes. "I'll kill him for both of us! Where is his camp?"

"I don't know," she replied, shuddering.

The demented shepherd's way of speaking of taking a human life, even though a worthless one, or a vicious one, was eager and hungry. He licked his lips like a dog.

"You said he was camped on the river. Where?"

"I don't know," she returned again.

"I'll tell you," said he, staying her hand as she tugged on a strap. "Both of us will go! You shall ride, and I'll run beside you. But"—he bent over, grinding his teeth and growling between them—"you sha'n't help kill him! That's for me, alone!"

She drew back from his proposal with a sudden realization of what a desperately brutal thing this unstrung creature was about to do, with a terrible arraignment of self-reproach because she had made no effort to dissuade him or place an obstacle in the way of accomplishing his design. It was not strange, thought she, with a revulsion of self-loathing, that he accepted her as a willing accomplice and proposed that she bear a hand. Even her effort to ride and find Boyle had been half-hearted. She might have gone, she told herself, before the herder arrived. 245

"No, no! I couldn't go! I couldn't!" she cried, forgetting that she was facing an unbalanced man, all the force of pleading in her voice.

"No, you want to kill him yourself!" he charged savagely. "Give me that horse—give it to me, I tell you! I'll go alone!"

He sprang into the saddle, not waiting to adjust the stirrups to his long legs. With his knees pushed up like a jockey's, he rode off, the pointer of chance, or the cunning of his own inscrutable brain, directing him the way Boyle had gone the evening before.

His going left her nerveless and weak. She sat and watched him out of sight beyond the cottonwoods and willows, thinking what a terrible thing it was to ride out with the cold intention of killing a man. This man was irresponsible; the strength of his desire for revenge had overwhelmed his reason. The law would excuse him of murder, for in the dimness of his own mind there was no conception of crime.

But what excuse could there be for one who sat down in deliberation—

Base Jerry Boyle might be, ready to sacrifice unfeelingly the innocent for his own pleasure and gain, ready to strike at their dearest hopes, ready to trample under his feet the green gardens of their hearts' desire; yet, who should sit in judgment on him, or seek a justification in his deeds to—to—

Even then she could not bring her thoughts to express it, although her wild heart had sung over it less than twenty-four hours before. 246

A shiver of sickness turned her cold. With quick, nervous fingers she unbuckled the belt which held her revolver and cartridges; she carried the weapon into the tent and flung it to the ground.

At dusk the sheep-herder returned, with the horse much blown.

“He had been there, but he’s gone,” he announced. “I followed him eastward along the stage-road, but lost his trail.”

He dismounted and dropped the reins to the ground. Agnes set about to relieve the tired animal of the burden of the saddle, the sheep-herder offering no assistance. He stood with his head bent, an air of dejection and melancholy over him, a cloud upon his face. Presently he walked away, saying no more. She watched him as he went, moodily and unheeding of his way, until he passed out of view around a thicket of tangled shrubs which grew upon the river-bank.

While her horse was relieving his weariness in contented sighs over his oats, Agnes made a fire and started her evening coffee. She had a feeling of cleanness in her conscience, and a lightness of heart which she knew never could have been her own to enjoy again if the crazed herder had come back with blood upon his hands.

There was no question about the feeling of loneliness that settled down upon her with aching intensity when she sat down to her meal, spread on a box, the lantern a yellow speck in the boundless night. A rod away its poor, futile glimmer against such mighty odds was understood, standing there with no encompassing walls to mark the boundary of its field. It was like the struggle of a man who stands alone in the vastness of life with no definite aim to circumscribe his endeavor, wasting his feeble illumination upon a little rod of earth. 247

We must have walls around us, both lanterns and men, rightly to fill the sphere of our designed usefulness; walls to restrain our wastrel forces; walls to bind our lustful desires, our foolish ambitions, our outwinging flights. Yet, in its way, the lantern served nobly, as many a man serves in the circle which binds his small adventures, and beyond which his fame can never pass.

From the door of her tent Agnes looked out upon the lantern, comparing herself with it, put down there as she was in that blank land, which was still

in the night of its development. Over that place, which she had chosen to make a home and a refuge, her own weak flame would fall dimly, perhaps never able to light it all. Would it be worth the struggle, the heart-hunger for other places and things, the years of waiting, the toil and loneliness?

She went back to her supper, the cup which she had gone to fetch in her hand. The strength of night made her heart timid; the touch of food was dry and tasteless upon her lips. For the first time since coming to that country she felt the pain of discouragement. What could she do against such a great, rough thing? Would it ever be worth the labor it would cost?

Feeble as her light was against the night, it was enough to discover tears upon her cheeks as she sat there upon the ground. Her fair hair lay dark in the shadows, and light with that contrast which painters love, where it lifted in airy rise above her brow. And there were the pensive softness of her chin, the sweep of her round throat, the profile as sharp as a shadow against the mellow glow. Perhaps the lantern was content in its circumscribed endeavor against the night, when it could light to such good advantage so much loveliness.

“If I’d have put my hands over your eyes, who would you have named?” asked a voice near her ear, a voice familiar, and fitted in that moment with old associations.

“I’d have had no trouble in guessing, Jerry, for I was expecting you,” she answered, scarcely turning her head, although his silent manner of approach had startled her.

“Agnes, I don’t believe you’ve got any more nerves than an Indian,” he said, dropping down beside her.

“If one wanted to make a facetious rejoinder, the opening is excellent,” she said, fighting back her nervousness with a smile. “Will you have some supper?”

“I’d like it, if you don’t mind.”

249

She busied herself with the stove, but he peremptorily took away from her the office of feeding the fire, and watched her as she put bacon on to fry.

“Agnes, you ought to have been frying bacon for me these four years past—figuratively, I mean,” he remarked, musingly.

“If you don’t mind, we’ll not go back to that,” she said.

Boyle made no mention of the purpose of his visit. He made his supper with ambassadorial avoidance of the subject which lay so uneasily on her mind. When he had finished, he drew out his tobacco-sack and rolled a cigarette, and, as it dangled from his lip by a shred of its wrapping, he turned to her.

“Well?” he asked.

She was standing near the lantern, removing the few utensils—the bacon had been served to him in the pan—from her outdoor table. When she answered him she turned away until her face was hidden in the shadow.

“I didn’t carry your message to Dr. Slavens as you ordered, Jerry.”

“I know it,” said he. “What next?”

“I guess it’s ‘up to you,’ as you put it. I’m not going to try to save myself at the expense of any of my friends.”

Boyle got up. He took a little turn away from the box whereon the lantern stood, as if struggling to maintain the fair front he had worn when he appeared. After a little he turned and faced her, walking back slowly until only the length of the little stove was between them.

“Have you considered your own danger?” he asked.

“It wouldn’t help you a great deal here, among these rough, fair-minded people, to take an advantage like that of a woman, especially when her transgression is merely technical and not intentional,” she rejoined.

“I wouldn’t have to appear in it,” he assured her.

“Well, set the United States marshal after me as soon as you want to; I’ll be here,” she said, speaking with the even tone of resignation which one commands when the mind has arrived at a determined stand to face the last and worst.

“Agnes, I told you yesterday that I was all over the old feeling that I had for you.”

Boyle leaned forward as he spoke, his voice earnest and low.

“But that was a bluff. I’m just as big a fool as I ever was about it. If you want to walk over me, go ahead; if you want to—oh, rats! But I’ll tell you; if you’ll come away with me I’ll drop all of this. I’ll leave that tin-horn doctor where he is, and let him make what he can out of his claim.”

“I couldn’t marry you, Jerry; it’s impossible to think of that,” she told him gently.

“Oh, well, that’s a formality,” he returned, far more in his voice than his words. “I’ll say to you—”

“You’ve said too much!” she stopped him, feeling her cheeks burn under the outrage which he had offered to her chaste heart. “There’s no room for any more words between you and me—never! Go now—say no more!”

She walked across the bright ring of light toward the tent, making a little detour around him, as if afraid that his violent words might be followed by violent deeds.

Boyle turned where he stood, following her with his eyes. The light of the lantern struck him strongly up to the waist, leaving his head and shoulders in the gloom above its glare. His hands were in the pockets of his trousers, his shoulders drooping forward in that horseback stoop which years in the saddle had fastened on him.

Agnes had reached the tent, where she stood with her hand on the flap, turning a hasty look behind her, when a shot out of the dark from the direction of the river-bank struck her ears with a suddenness and a portent which seemed to carry the pain of death. She was facing that way; she saw the flash of it; she saw Jerry Boyle leap with lithe agility, as if springing from the scourge of flames, and sling his pistol from the hostler under his coat.

In his movement there was an admirable quickness, rising almost to the dignity of beauty in the rapidity with which he adjusted himself to meet this sudden exigency. In half the beat of a heart, it seemed, he had fired. Out of the dark came another leap of flame, another report. Boyle walked directly toward the point from which it came, firing as he went. No answer came after his second shot.

Agnes pressed her hand over her eyes to shut out the sight, fearing to see him fall, her heart rising up to accuse her. She had forgotten to warn him! She had forgotten!

Boyle’s voice roused her. There was a dry harshness in it, a hoarseness as of one who has gone long without water on the lips.

“Bring that lantern here!” he commanded.

She did not stand to debate it, but took up the light and hurried to the place where he stood. A man lay at his feet, his long hair tossed in disorder, his long coat spread out like a black blotch upon the ground. Boyle took the lantern and bent over the victim of his steady arm, growled in his throat,

and bent lower. The man's face was partly hidden by the rank grass in which he lay. Boyle turned it up to the light with his foot and straightened his back with a grunt of disdain.

"Huh! *That* rabbit!" said he, giving her back the light.

It did not require that gleam upon the white face to tell Agnes that the victim was the polemical sheep-herder, whose intention had been steadier than his aim.

Boyle hesitated a moment as if to speak to her, but said nothing before he turned and walked away.

"You've killed him!" she called after him sharply. "Don't go away and leave him here like this!"

"He's not dead," said Boyle. "Don't you hear him snort?"

The man's breathing was indeed audible, and growing louder with each labored inspiration.

"Turn him over on his face," directed Boyle. "There's blood in his throat."

"Will you go for Smith?" she asked, kneeling beside the wounded man.

"He's coming; I can hear the sauerkraut jolt in him while he's half a mile away. If anybody comes looking for me on account of this—coroner or—oh, anybody—I'll be down the river about a quarter below the stage-ford. I'll wait there a day longer to hear from you, and this is my last word."

With that Boyle left her. Smith came very shortly, having heard the shots; and the people from up the river came, and the young man from the bridal nest across on the other side. They made a wondering, awed ring around the wounded man, who was pronounced by Smith to be in deep waters. There was a bullet through his neck.

Smith believed there was life enough left in the sheep-herder to last until he could fetch a doctor from Meander.

"But that's thirty miles," said Agnes, "and Dr. Slavens is not more than twenty. You know where he's located—down by Comanche?"

Smith knew, but he had forgotten for the minute, so accustomed to turning as he was to the center of civilization in that section for all the gentle ministrants of woe, such as doctors, preachers, and undertakers.

"I'll have him here before morning," said Smith, posting off to get his horse.

The poor sheep-herder was too sorely hurt to last the night out. Before Smith had been two hours on his way the shepherd was in the land of shades, having it out face to face with Epictetus—if he carried the memory of his contention across with him, to be sure.

The neighbors arranged him respectably upon a board, and covered him over with a blanket, keeping watch beside him in the open, with the clear stars shining undisturbed by this thing which made such a turmoil in their breasts. There he lay, waiting the doctor and the coroner, and all who might come, his earthly troubles locked up forever in his cold heart, his earthly argument forever at an end.

CHAPTER XVI

A PROMISE

Dr. Slavens rode in before dawn, more concerned about Agnes than about the person in whose behalf he had been summoned. On the way he asked Smith repeatedly how the tragedy affected her; whether she was frightened or greatly disturbed.

“She’s as steady as a compass,” said Smith; and so he found her.

Somewhat too steady, in fact. It was the steadiness of a deep and settled melancholy, through which his best efforts could do no more than strike a feeble, weary smile.

Immediately upon the death of the herder, one of the men had ridden to Meander and carried word to the coroner. That official arrived in the middle of the forenoon, bringing with him the undertaker and a wagon. After some perfunctory inquiries, the coroner concluded that an inquest was not necessary. He did not go to the trouble to find Boyle and question him, but he looked with a familiar understanding in his piggish eyes at Agnes when she related the circumstances of the tragedy.

Coroners, and others who knew the Governor’s son, had but one measure for a woman who entertained Jerry Boyle alone in her tent, or even outside it, at night. Boyle’s associations had set the standard of his own morality, as well as that of his consorts. The woman from up the river, and the little bride from across the ford, drew off together, whispering, after Agnes had told her story. Presently they slipped away without a word.

Even Dr. Slavens, cool and just-minded as he was, felt the hot stirring of jealous suspicion. It brought to his mind unpleasantly the ruminations of his solitary days in camp among the rocks, when he had turned over in his mind the belief that there was something of the past between Agnes and Boyle.

He had not convicted her in his own judgment of any wrong, for the sincerity of her eyes had stood between him and the possibility of any such conclusion. Now the thought that, after all his trust, she might be unworthy, smote painfully upon his heart.

When the others had gone away, after a little standing around, hitch-legged and wise, in close discussion of the event, the doctor sitting,

meantime, with Agnes in front of the tent, he spoke of the necessity of getting back to his claim. She was pale after the night's strain, although apparently unconscious of the obloquy of her neighbors. Nevertheless, she pressed him to remain for the midday meal.

"I've not been very hospitable, I'm afraid," said she; "but this thing has stunned me. It seems like it has taken something away from the prospect of life here." 257

"Yes, it has taken something away," he responded, gravely thoughtful, his look bent upon the ground.

She sprang up quickly, a sharp little cry upon her lips as if from the shock of a blow from a hand beloved.

"I saw it in their eyes!" she cried. "But you—but you! Oh—oh—I *trusted* you to know!"

"Forgive me," he begged. "I did not mean to hurt you. Perhaps I was thinking of the romance and the glamour which this had stripped away from things here. I think my mind was running on that."

"No," she denied. "You were thinking like that little woman across the river with the fright and horror in her big eyes. You were thinking that I am guilty, and that there can be but one answer to the presence of that man in my camp last night. His notorious name goes before him like a blight."

"You'll have to move your camp now," as if seeking delicately to avoid the ghost that seemed to have risen between them; "this place will have unpleasant associations."

"Yes; it cannot be reconsecrated and purified."

He stood as if prepared to leave. Agnes placed her hand upon his shoulder, looking with grieved eyes into his face.

"Will you stay a little while," she asked, "and hear me? I want to part from you with your friendship and respect, for I am entitled to both, I am worthy of both—if ever." 258

"Let me move your stool out into the sun," he suggested. "There's a chill in the wind today. Of course I'll stay, and we'll have some more of that excellent coffee before I go. You must teach me how you make it; mine always turns out as muddy as a bucket of Missouri River water."

His cheerfulness was like that which a healthy man displays at the bedside of a dying friend—assumed, but helpful in its way. He placed her

folding canvas stool in the sun beyond the shadow of the tent and found a box for himself. Thus arranged, he waited for her to speak.

“Still, I am not sure of what I protested in regard to your friendship and respect,” said she after a little brooding silence. “I am a fraud, taken at the best, and perhaps a criminal.”

Dr. Slavens studied her face as she paused there and looked away, as if her thoughts concentrated beyond the blue hills in the west.

“My name is not Horton,” she resumed, facing him suddenly. “It is Gates, and my father is in the Federal penitentiary at Leavenworth.”

“But there was no call for you to tell me this,” he protested softly.

“Yes, every reason for it,” she averred. “The fabric of all my troubles rests on that. He was president of a bank—you remember the scandal, don’t you? It was nation-wide.”

He nodded.

259

“I spoke to you once of the ghosts of money. They have worried me for four years and more, for nothing but the ghosts are left when one loses place and consequence before the world. It was a national bank, and the charge was misapplication of funds. He had money enough for all the sane uses of any man, but the pernicious ambition to be greater assailed him, even old as he was.

“He never said, and I never have held it so, that his punishment was unjust. Only it seemed to us unfair when so many greater evildoers escape or receive pardons. You will remember, perhaps, that none of the depositors lost anything. Wild as his schemes appeared, they turned out sound enough after a while, and everything was liquidated.

“We gave up everything of our own; mother and I have felt the rub of hardship before today. The hardest of all was the falling away of those whom we believed to be friends. We learned that the favors of society are as fickle as those of fortune, and that they walk hand in hand.

“No matter. Father’s term will expire in less than one month. He is an old, broken, disgraced man; he never will be able to lift up his face before the world again. That is why I am here. Mother and I concluded that we might make a refuge for him here, where he would be unknown. We planned for him to leave his name, and as much of his past as he could shake off, behind him at the prison door.

260

“It was no sacrifice for me. All that I had known in the old life was gone. Sneers followed me; the ghosts of money rose up to accuse. I was a felon’s daughter; but, worse than that—I was poor! This country held out its arms to me, clean and undefiled. When I got my first sight of it, and the taste of its free air in my nostrils, my heart began to unfold again, and the cramped wrinkles fell out of my tired soul.”

The sunshine was around them, and the peace of the open places. They sat for the world to see them, and there was nothing to hide in the sympathy that moved Dr. Slavens to reach out and take the girl’s hand. He caressed it with comforting touch, as if to mitigate the suffering of her heart, in tearing from it for his eyes to see, her hoarded sorrow and unearned shame.

“There is that freedom about it,” said he, “when one sees it by day and sunlight.”

“But it has its nights, too,” she shuddered, the shadow of last night in her eyes.

“Yet they all pass—the longest of them and the most painful,” he comforted her.

“And leave their scars sometimes. How I came here, registered, drew a claim, and filed on it, you know. I did all that under the name of Horton, which is a family name on mother’s side, not thinking what the consequence might be. Now, in payment for this first breach of the law, I must at least give up all my schemes here and retreat. I may be prosecuted; I may even go to prison, like my father did.”

261

“Surely not!” he protested. “Who is there to know it, to lay a charge against you?”

“Such person is not wanting in the miserable plot of my life,” she answered. “I will reach him soon in my sorry tale.”

“Boyle!” Slavens said, as if thinking aloud. “He’s the man!”

“You take the name from my mouth,” she told him. “He has threatened me with prosecution. Perjury, he says it would be called, and prison would be the penalty.”

“It might be so here,” he admitted.

“I met Jerry Boyle about five years ago, when father was in Congress. His father was at that time Senator from this state. We lived in Washington, and Jerry Boyle was then considered a very original and delightful young man. He was fresh in from the range, but he had the polish of a university

education over his roughness, and what I know now to be inborn coarseness was then accepted for ingenuousness. He passed current in the best society of the capital, where he was coddled as a butterfly of new species. We met; he made love to me, and I—I am afraid that I encouraged him to do it at first.

“But he drank and gambled, and got into brawls. He stabbed an attaché of the Mexican Legation over a woman, and the engagement to marry him which I had entered into was broken. I was foolish in the first instance, but I plead the mitigation of frivolity and youth. My heart was not in it. I beg you to believe, Dr. Slavens, that my heart was not in it at all.”

She looked at him with pleading sincerity, and from her eyes his heart gathered its recesses full of joy.

“I need no further assurance of that,” he smiled.

“You are generous. It was on the afternoon of the day that followed your disappearance from Comanche that Boyle came into camp there. I had not forgotten him, of course, nor his influential position in this state; but I never thought of meeting him there. It was a sickening shock to me. I denied his protestations of acquaintanceship, but it passed off poorly with all of them who were present, except William Bentley, generous gentleman that he is.”

“He is so,” testified Slavens.

“I left Comanche because I was afraid of him, but he rode post the night that I engaged passage and beat me to Meander; but he wasn’t hurrying on my account, as you know. He tried to see me there in Meander, but I refused to meet him. The day before yesterday he came here and solicited my help in carrying out a scheme. I refused. He threatened me with exposure and arrest on account of false entry and affidavit.”

Agnes told then of her ride into the hills, the meeting with the herder, and subsequent events up to the shooting. But she said nothing of Boyle’s base proposal to her, although her face burned at the recollection, giving Slavens more than half a guess what was behind that virtuous flame. 263

“And so, you poor little soul, all your plans for your City of Refuge are shattered because you refuse to sacrifice somebody to keep them whole,” said he.

“No matter,” she returned in that voice of abnegation which only a long marching line of misfortunes can give a woman or a man command over. “I have decided, anyway, to give it up. It’s too big and rough and lonesome for me.”

“And that person whom you put up your heart and soul to shield,” he went on, looking steadily into her face and pursuing his former thought, “has something in his possession which this man Boyle covets and thinks he must have? And the cheapest and easiest way to get it is to make you pay for it in the violation of your honest principles, if he can drive you to it in his skulking way?”

She bowed assent, her lips tightly set.

“Yes,” said he. “Just so. Well, why didn’t Boyle come to me with his threats, the coward!”

“No, no!” she cried in quick fright. “Not that; it is something—something else.”

“You poor dissembler!” he laughed. “You couldn’t be dishonest if you wanted to the worst way in the world. Well, don’t you worry; I’ll take it up with him today.”

“You’ll *not* give it up!” she exclaimed vehemently. “All your hopes are there, and it’s yours, and *you’ll not* give it up!”

“Never mind,” he soothed, again taking her hand, which she had withdrawn to aid in emphasizing her protest. “I don’t believe he’d carry out his threats about the United States marshal and all that.”

“You’ll not give it up to him unless he pays you for it,” she reiterated, ignoring her own prospect of trouble. “It’s valuable, or he wouldn’t be so anxious to get it.”

“Perhaps,” Slavens assented.

“I’m going to leave here,” she hurriedly pursued. “It was foolish of me to come, in the first place. The vastness of it bewildered me, and ‘the lonesomeness,’ as Smith calls it, is settling in my heart.”

“Well, where will you go?” he asked bewilderedly.

“Somewhere—to some village or little farm, where we can raise poultry, mother and I.”

“But I haven’t planned it that way,” Slavens smiled. “If you leave, what am I going to do?”

“I don’t know,” she acknowledged, “unless—unless you come some time.”

“Look here, Agnes,” said he, taking the matter entirely in hand. “When we leave this place, we’ll leave together. I’ve arranged that all in my mind and intention. It’s all disposed of and settled. Here comes Boyle now, I think.”

Boyle left his horse standing a few rods distant and came over to where they sat.

“You look comfortable,” he commented, as serene and unperturbed as if the load of one more human life on his soul were a matter too light to be felt with inconvenience. 265

“Very comfortable,” answered Slavens, rising stiffly. “We have nothing on our hands that common water will not wash off.”

“Oh, that nut!” depreciated Boyle. “He’d talked around for a year or two about getting me. I only beat him to it when he tried; that’s all.”

“But there was another occasion—another attempt that didn’t turn out quite like you intended,” said Slavens. “Do you remember me?”

“Yes; you’re the tin-horn doctor that held a man up in Comanche and stole the coat off of his back,” Boyle retorted with easy insolence.

Agnes looked at the doctor imploringly, plainly begging him not to provoke Boyle to another outbreak of violence. She was standing beside him, the fear and loathing which Boyle’s presence aroused undisguised in her frank face.

“It was an outrage against one of the honest men who tried to murder me,” said the doctor. “But, vicious as it was, neither Shanklin nor you, his side-partner, has ever made a squeal. If it was a holdup, why haven’t you sent one of your little sheriffs out after me?”

“I’m no partner of Hun Shanklin’s!” denied Boyle.

“Maybe you’ve parted company since the night you slugged me and nailed me up in that box for the river to hide your work.”

“I’ll make you prove that charge!” threatened Boyle hotly. 266

“I can’t prove it,” admitted the doctor. “If I could, I’d have you in court tomorrow. But you were one of them, and I want you to understand fully that I know it, and will treat you accordingly in any private dealings that may come up between you and me.”

“If you keep spoutin’ it around that I ever slugged you, I’ll pull you into court and make you prove it! It’ll either be put up or shut up with you, mister!”

“Whenever you’re ready,” invited Slavens.

With somewhat more of ostentation than the simple act seemed to warrant, Boyle unbuttoned his coat, displaying his revolver as he made an exploration of his vest-pockets for a match to light his cigarette.

“Well, I guess you know what I’m here for?” Boyle suggested, passing his glance significantly from one to the other of them.

“Dr. Slavens is acquainted with your proposal,” said Agnes; “and it ought to be needless for me to say that I’ll not permit him to make any concession to shield myself.”

“Fine! fine!” said Boyle in mock applause, throwing his head back and snorting smoke.

“In the first place,” said Slavens, “your bluff don’t go. Miss Gates has not broken any law in registering and entering this land under an *alias*. There’s no crime in assuming a name, and no felony in acquiring property under it, unless fraud is used. She has defrauded nobody, and you could not make a case against her in a thousand years!” 267

“I can get an indictment—that’s a cinch!” declared Boyle.

“Go ahead,” said the doctor. “We’ve got some new blood in this country now, and we can find a jury that you don’t own and control when it comes to trial.”

“And after the indictment comes arrest and jail,” Boyle continued, overlooking the doctor’s argument in the lofty security of his position. “It would make a lot of noisy talk, considering the family reputation and all that.”

“And the outcome of it might be—and I doubt even that—that Miss Gates would lose her homestead,” Slavens supplied.

“You don’t know the Federal judge in this district,” Boyle grinned. “Jail’s what it means, and plenty of it, for the judge has to approve a bond, if you know what that means.”

“Why don’t you pay Dr. Slavens for his homestead, as you were ready to pay that man Peterson if you could have filed him on it?” Agnes asked.

“Because it’s mine already,” said Boyle. “This man stole the description of that land, as I have told you before, at the point of a gun.”

“Then you lied!” Slavens calmly charged.

Boyle hitched his hip, throwing the handle of his pistol into sight.

“You can say that,” said he, “because I’ve got to have your name on a paper.”

“I’ll never permit Dr. Slavens to sign away his valuable claim to you,” declared Agnes. “I’ll not allow—” 268

Slavens lifted his hand for silence.

"I'll do the talking for this family from now on," said he, smiling reassuringly as he held her eyes a moment with his own.

He turned abruptly to Boyle.

"And the fighting, too, when necessary. You keep that little gun in its place when you're around me, young man, or you'll get hurt! One more break like that to show me that you've got it, and you and I will mix. Just put that down in your book."

"Oh, all right, pardner!" returned Boyle with that jerky insolence which men of his kind assume when they realize that they have been called, and called hard. He buttoned his coat.

"And as far as Miss Gates is concerned, consider her out of this case," said Slavens. "But I want to have some private talk with you."

They walked over to the place where Boyle's horse stood, and there, out of the hearing of Agnes, Slavens sounded Jerry sharply on his intentions. It was plain that there was no bluff in Boyle; he meant what he threatened, and he was small enough to carry it through.

As an illustration of his far-reaching influence, Boyle pointed out to Slavens that nobody had approached the physician with an offer to buy him out, although one had appeared anxious enough to open negotiations the day he filed.

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"When we tell a man to lay down in this part of the country, he lays down," said Boyle; "and when we order him to walk on his hind legs, he walks. Nobody will offer you any money for that place; it isn't worth anything to a soul on earth but me. You couldn't sell out in a century. You'll get that through your nut if you hang around here long enough."

For a little while Slavens thought it over, walking away a few paces and appraising the situation studiously. Suddenly he wheeled and confronted Boyle, leveling his finger at his face.

"Your bluff don't go, Boyle!" said he. "You'd just as well get on your horse and light out; and if you want to bring it to a fight, then let it be a fight. We'll meet you on any ground you pick."

"You're a fool!" snarled Boyle.

"Then I'll be a bigger one—big enough to call you to account before another day has passed over your head for your part in that dirty work in Comanche that night. And I want to lay it off to you right now that all the

influence you can command in this state isn't going to save you when I go after you!"

Boyle picked up his bridle-reins and threaded his arm through them, standing so, legs wide apart, while he rolled a cigarette. As it dangled between his lips and the smoke of it rose up, veiling his eyes, he peered narrowly through it at the doctor.

"There's a man in the graveyard up at Cheyenne that made a talk like that one time," he said. 270

"I'll have to take your word for that," returned Slavens, quite unmoved. "I'll meet you at the hotel in Meander tomorrow morning at nine o'clock for a settlement, one way or the other."

"One way or the other," repeated Boyle.

He mounted his horse and rode away toward Meander, trailing a thin line of smoke behind him.

Agnes hurried forward to meet Slavens as he turned toward her. Her face was bloodless, her bosom agitated.

"I heard part of what you said," she told him. "Surely you don't mean to go over there and fight him on his own ground, among his friends?"

"I'm going over there to see the county attorney," said he. "He's from Kansas, and a pretty straight sort of chap, it seemed to me from what I saw of him. I'm going to put this situation of ours before him, citing a hypothetical case, and get his advice. I don't believe that there's a shred of a case against you, and I doubt whether Boyle can bluff the government officials into making a move in it, even with all his influence."

"And you'll come back here and tell me what he says, no matter what his opinion may be, before you act one way or another?"

"If you wish it, although—Well, yes—if you wish it."

"I do, most earnestly," she assured him.

"You need a good sleep," he counseled. "Turn in as soon as I'm gone, and don't worry about this. There's a good deal of bluff in Boyle." 271

"He's treacherous, and he shoots wonderfully. He killed that poor fellow last night without ever seeing him at all."

"But I'm not going to take a shot at him out of the dark," said he.

"I know. But I'll be uneasy until you return."

"There's too much trouble in your face today for one of your years," he said, lifting her chin with rather a professional rebuke in his eyes. "You'll

have to put it down, or it will make you old. Go right on dreaming and planning; things will come out exactly as you have designed.”

“Perhaps,” she agreed, but with little hope in her voice.

Slavens saddled his horse after they had refreshed themselves with coffee. Agnes stood by, racked with an anxiety which seemed to grind her heart. The physician thought of the pioneer women of his youth, of those who lived far out on the thin edge of prairie reaches, and in the gloom of forests which groaned around them in the lone winds of winter nights. There was the same melancholy of isolation in Agnes’ eyes today as he had seen in theirs; the same sad hopelessness; the same hunger, and the longing to fly from the wilderness and its hardships, heart-weariness, and pain.

Her hand lay appealingly upon his shoulder for a moment before he mounted, and her face was turned up to him, unspoken yearning on her lips.

“Promise me again before you go that you will come back here before you relinquish your homestead to Boyle,” she demanded. “Promise me that, no matter what the lawyer’s opinion may be, you’ll return here before you do anything else at all.”

“I promise you,” said he.

When he had ridden a little way he halted his horse and turned in his saddle to look back. She was sitting there in the sun, her head bowed, her hands clasped over her face, as if she wept or prayed. A little while he waited there, as if meditating a return, as if he had forgotten something—some solace, perhaps, for which her lips had appealed to his heart dumbly.

Yet a sincere man seldom knows these things, which a trifler is so quick to see. He did not know, perhaps; or perhaps he was not certain enough to turn his horse and ride back to repair his omission. Presently he rode on slowly, his head bent, the bridle-reins loose in his hand.

CHAPTER XVII

A PLAN

The man who had supplied the horse-blanket for covering the dead sheep-herder had taken it away, but the board upon which they had stretched him still lay under the tree where they had left it. There was blood on it where the wound had drained, a disturbing sight which persisted in meeting Agnes' eye every time she came out of the tent. She was debating in her mind whether to throw the board in the river or split it up and burn it in the stove, when Smith came along and claimed it.

"Scarce as wood's goin' to be in this valley six months from now," Smith remarked, rubbing dust over the stain which did not appear to give him any qualms, "a man's got to take care of it. That's a shelf out of my store."

"I don't suppose you'll ever put goods on it again."

"Sure. Why not?"

"Well, not groceries, at any rate," she ventured.

"It won't hurt canned goods," Smith told her, turning it stain downward. "Doctor gone back?"

"He's gone on to Meander on some business."

"Smart feller," commended Smith. "If I had to have my leg took off I'd just as lief have that man do it as any doctor I ever saw."

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"I'm sure he would appreciate your confidence," she smiled.

"Been acquainted with him a good while?" he wanted to know.

"Only since I've been in this country. We met on the train coming to Comanche."

Smith sighed as if oppressed by a secret trouble, and cast his wise eye about the camp.

"I wouldn't leave them things around out here at night," he advised, indicating some boxes of supplies with which she was rather liberally provided. "Animals might git at 'em."

"You don't mean bears?" she asked with lively concern.

"No; not likely bears," said he. "Badgers, more like. They're awful thieves."

“Thank you for the advice. I meant to put them in today, but I’ve been so distracted by last night’s awful events—”

“Yes, I know,” Smith nodded. “I’ll put ’em in for you.”

Smith stored the boxes within the tent. The exertion brought out the sweat on his red face. He stood wiping it, his hat in his hand, turning his eyes to see how she regarded his strength.

“I tell you, a woman needs a man to do the heavy work for her in a place like this,” he hinted.

“I’m finding that out,” she laughed.

Smith sat down comfortably on the box lately occupied by Dr. Slavens.³⁷⁵ He buckled his hands over a knee and sat with that foot raised from the ground in a most ungainly, but perhaps refreshing, attitude.

“Thinkin’ about marryin’?” he asked.

The frankness of the question relieved her of embarrassment. She smiled.

“I suppose every woman thinks of that, more or less,” she admitted.

Smith nodded, and slowly lowered his foot, looking up at her with sly confidence, as if discovering to her a mighty secret which he had just become convinced she was worthy to share.

“Well, so am I,” said he.

It began to look like dangerous ground, but she didn’t know how to turn him. Thinking to try a show of abstract interest, she told him she was glad to hear it.

“There’s money to be made in this country,” he continued, warming up to his argument, “and I know how to make it. Inside of five years I’ll be able to put up a house with a cupola on it, and a picket fence in front, and grass in the yard, for the woman that marries me.”

“I believe you will,” she agreed. “What kind of a noise does a bear make?”

“Dang bears!” said Smith, disconcerted by having his plans thrown out of joint in such an abrupt way.

“I thought I heard one the night before last,” she went on. “I was afraid.”

“No need to be,” he assured her. “Bears don’t come down here any more.³⁷⁶ What could a bear live on down here, I’d like to know? Snakes? Well, bears don’t eat snakes.”

“Oh!” said she, enlightened.

“There’s not a bear in a hundred miles of here,” he told her.

"That's comforting knowledge," she said. "You've never told me about the big grizzly that you killed. Was it long ago?"

"Not so very long," Smith replied, sighing as he saw himself led so far away from the subject nearest his heart, and despairing of working his courage up to it again that day.

"It was a big one, wasn't it?"

"Well, I got fifty dollars off of a feller for the hide."

"Tell me about it," she requested.

Inwardly she wished that Smith would go, so she might take a sleep, but she feared lest he might get back to the subject of houses and wives if she allowed him to depart from bears, and the historic grizzly in particular.

"Well, I'll tell you. I didn't kill that bear on purpose," he began. "I didn't go out huntin' him, and I didn't run after him. If he'd minded his own business like I minded mine, he'd be alive today for all I'm concerned."

"Oh, it was an accident?" she asked.

"Part accident," Smith replied. "I was a deputy game-warden in them days, and a cowboy on the side, up in the Big Horn Valley. A gang of fellers in knee-pants and yeller leggings come into that country, shootin' everything that hopped up. Millionaires, I reckon they must 'a' been, countin' their guns and the way they left game to rot on the ground. They killed just to kill, and I tracked 'em by the smell of the carcasses behind 'em. They made a sneak and got into Yellowstone Park, and there's where I collared 'em. They was all settin' around a fire one night when I come up to 'em their guns standin' around. I throwed down on 'em and one fool feller he made a grab for a gun. I always was sorry for that man."

"What did you do to him?" she asked.

"Busted a diamond he had in a ring," said Smith. "Well, they got fines, them fellers did, when I marched 'em out of there, I'm here to tell you! If it'd been me that was judge I'd 'a' sent 'em all to jail for life."

"When I was comin' back to the ranch from that trip I met that bear you've heard so much talk and mostly lies, about. That bear he's the most slandered bear that ever lived."

"Slandered?"

"That's it. He wasn't wallered to death, choked to death, pounded to death, nor run down. He was just plain shot in the top of the head."

"What a queer place to shoot a bear! How did you manage it?"

“He managed it. He come under the tree where I was at.”

“Oh, I see.”

“And that’s all there is to *that* yarn, ma’am. I got a man today that I can put on that work of levelin’ off for you in the morning, if you want me to.”

“I think we’ll let it stand a day or two,” she told him. “I’ll let you know when to take it up again. I’ve got so much to think about right now that I just stand turning round and round.”

“Yes, you do feel that way in a new place, sometimes,” Smith allowed. “Well, I guess I’ll have to be goin’ on down to the store. Business is pickin’ up so fast I’ll have to keep open all the time, not only evenin’s like I have been doin’.”

“I’m glad to hear it,” said she.

“Yes; I’ll have to hire a clerk, because I’ve got to ’tend to my outside work. I’ve been paintin’ a sign to go over the front, and I tell you that name don’t look so bad when it’s in print, neither.”

“It isn’t a name to be ashamed of, I’m sure,” she cheered. “It’s just as good as any other name, as far as I can see.”

“Phogenphole has got a good many shanks to it when you come to write it, though,” reflected Smith. “It looks a lot better printed out. I think I’ll git me one of these here typewritin’-machines. But say! Stop in and take a look at that sign the first time you’re passin’; will you?”

Agnes assured him that she would. Smith upended his board as if to go.²⁷⁹

“That feller, Boyle, he’s gone,” said he, nodding as if to confirm his own statement. “I saw him ride off up the river an hour or so ago.”

“Yes; I believe he went to Meander also.”

“He’s a bad egg,” Smith continued, “and he comes out of a basket of bad eggs. His old man, he’s doin’ more to keep this state down than anything you can name. He’s got millions—and when I say millions, ma’am, I *mean* millions—of acres of government land fenced and set off to his own use, and school lands, and other lands belongin’ to you and me and the high-minded citizens of this country, and he don’t pay a cent for the use of ’em, neither. Taxes? That man don’t know what taxes is.”

“Why do the people permit him to do it?”

“People! Huh! He’s got rings in their noses, that’s why. What he don’t own he’s got cowed. I tell you, I know of a town with three or four thousand people in it, and a schoolhouse as big as one of them old-country

castles up on a hill, that ranchers has to go forty miles around to git to. Can't put a road through Boyle's land—government land, every inch of it. What do you think of that?"

"I think a stop ought to be put to it, somehow."

"Sure it had! All of it's subject to homestead entry, but it's got a five-wire fence around it, and thousands of sheep and cattle that the people of this country feed and bring up and fatten for nothing, for the Hon. Mr. Boyle. More than one man's been shot by Boyle's fence-riders for tryin' to homestead a piece of land he claims he's got a lease on. He ain't got no lease, but that don't matter.

"There's men settled here in this reservation that's run up and down this state till they turned gray tryin' to locate on a piece of land. They've been hustled and humped along till they've lost heart, most of 'em, and I reckon they doubt now whether they're goin' to be let stay here from one day to another.

"Cattlemen's kicked 'em out of one place, sheepmen out of another, till this state ain't got no farms—the only thing that it needs. Yes, I tell you, when a man sets up ag'in' a Boyle or any of that crowd in this state, he's due to lose. Well, say, don't forgit to stop in and see that sign; will you?"

Agnes promised again to do so, and Smith departed, the sheep-herder's cooling-board under his arm.

With Smith's going, the temperature of her spirits, which had risen a little to help her through with him, suffered a recession. She looked about with the thought of finding another location for her camp, feeling that the disturbing associations of the previous night never would allow her to spend a comfortable hour there again.

Her homestead did not offer another spot with the advantages which she enjoyed right where she was. There the river-bank was low, coming down as the stream did to a gravelly, fordable place, and there the trees offered shelter against the summer sun, the thick-matted willows a break for the winter winds. There was a home look about it, too, such as nature sometimes contrives in uninhabited places, upon which the traveler lights with satisfaction and restful delight.

She spent the remainder of the afternoon up and down her half-mile of river-bank, trying to choose between the next likeliest spots, but she hadn't much heart in the hunt. Perhaps it would be unwise to allow any affection to

grow for the place, one location or another, or for any hope to take deeper root than the sickly sprigs which she had planted at the beginning.

Drooping and weary, she returned to her tent when the sun was low, for the thought of sleep had left her with Smith's discussion of the blight of the Boyles upon that land. There appeared little use in trying to stand out against the son of this great obstructionist who, with a few friends and servitors, had kept the state for years as another man might keep his field. Others might look into the enclosure and see the opportunities which were being wasted, but none might touch.

If the gang were deprived of their chief weapon of menace, namely, the hold which the Federal laws had upon her, Dr. Slavens might be able to withstand their covetous attempt to dispossess him of his valuable holdings. She knew that Slavens would not stand by and see her indicted by the creatures of the Boyles, nor any more nearly threatened with the disgrace of prison than she was at that hour. He would put down everything to save her, even now when the fruition of his hard-lived years was at hand. 282

She sat in the failing sun, scooping a little furrow with the heel of her boot as she reflected. She still wore the divided riding-skirt which she had worn the day before on her excursion into the hills, and with her leather-weighted hat she looked quite like any other long-striding lady of the sagebrush. Sun and wind, and more than a week of bareheaded disregard of complexion had put a tinge of brown on her neck and face, not much to her advantage, although she was well enough with it.

How was it, she wrangled in her mind, that the lines of their lives had crossed in that place, this physician's and hers? Perhaps it was only the trick of chance, or perhaps it was the fulfilment of the plan drawn for them to live by from the first. But it seemed unfair to Dr. Slavens, who had made a discouraging beginning, that he must be called upon to surrender the means of realizing on his ambition when he held them in his hand, and for no other purpose than to save her, a stranger.

It was unfair of fate to lay their lines so, and it would be doubly ignoble and selfish of her to permit him to make the sacrifice. Dr. Slavens cared enough for her to ask her to marry him, and to expect her to marry him, although she had given him no word to confirm such expectation. He had taken hold of that matter to shape it for himself, and he intended to marry her, that was plain. 283

Her heart had jumped and turned warm with a softness toward him when he spoke of “this family” so naturally and frankly to Jerry Boyle. It seemed to her that those words gave her a dignity and a standing before the world which all the shadows of her troubled life could not dim.

But there were the shadows, there were the ghosts. She felt that it would be exceedingly burdensome to him to assume the future of two aged people, besides that of her own. Marrying her would be marrying a family, indeed, for she had wasted on that desert hope much of the small bit of money which the scraping and cleaning of their once great properties had yielded. And there lay the scheme prostrate, winded, a poor runner in a rugged race.

Of course, she might come clear of the tangle by permitting Dr. Slavens to surrender his homestead to Boyle; she might do that, and impoverish him, and accept that sacrifice as the price of herself. For after the doctor had given up his claim she could marry him and ride off complacently by his side, as heartless and soulless as anything which is bought and sold.

That’s all it would amount to—a downright sale, even though she did not marry the doctor. She would be accepting immunity at the shameful price of a man’s biggest chance in all his days. It was too much. She couldn’t do it; she never intended to do it; she couldn’t bring it around so that it would present an honorable aspect from any angle.

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Evening came over the hills with a chill, which it gave to the cottonwoods as it passed them on the river-bank. Their leaves trembled and sighed, and some were so frightened by the foreboding of winter in that touch that they lost their hold upon the boughs and came circling down. In the tall grass which thrived rankly in that sub-irrigated spot the insects of summer were out of voice. The choristers of the brushwood seemed to be in difficulties over the beginning, also. They set out in shivering starts, and left off with jerky suddenness, as if they had no heart for singing against this unmistakable warning that their summer concert season had come to its end.

Agnes fired up her stove and sat by it, watching the eager sparks make their brave plunge into the vast night which so soon extinguished them, as the world engulfs and silences streams and clouds of little men who rush into it with a roar. So many of them there are who go forth so day by day, who avail, with all their fuss and noise, no more against it than the breath of an infant against a stone.

Sitting there with the night drawing in around her, she felt the cold truth in her heart about that place, and the acknowledgment of it, which she had kept away from her up to that hour. It wasn't worth while; she did not care for it. Then and there she was ready to give it up and leave it to whoever might come after her and shape its roughness into a home.

There was a heaviness upon her, and a weight of sadness such as comes out of the silent places of the night. It was such a wide and empty land for a young heart, and its prospect was such a waste of years! The thought of refuge and peace was sweet, but there is refuge to be found and peace to be won among men and the works of men; among books, and the softer ways of life.

At that hour she was ready to give it up, mount her horse, and ride away. If giving it up would save Dr. Slavens his hard-won claim, she would not hesitate, she told herself, to ride to Comanche that night and take the first train for the East. But flight would not put her out of the reach of the Federal officials, and if she should fly, that would only bring the spite of Boyle down upon her more swiftly and sharply than remaining there, facing him, and defying him to do his worst.

No; flight would be useless, because Jerry Boyle knew exactly where she would go. There was but one place; they would follow her to it and find her, and that would be carrying trouble to a home that had enough of it as it stood. There must be some other way. Was there no bond of tenderness in that dark man's life which she could touch? no soft influence which she might bring to bear upon him and cause him to release his rapacious hold?

None. So far as she could fit the pieces of the past together she could fashion no design which offered relief.

Agnes brought up her horse and gave it a measure of oats near the tent for the sake of the companionship of its noise, and large presence in the lantern light. She thought that even after she had gone to sleep there would be comfort in the sense of the animal's nearness.

And so, beside her stove, the lonely night around her, the dread ache of "the lonesomeness" in her heart, she sat watching the sparks run out of the stovepipe like grains of sand running in a glass. Distance and hope alike have their enchantments, she owned, which all the powers of reason cannot dispel. Hand to hand this land was not for her. It was empty of all that she yearned for; it was as crude as the beginning.

And out of the turmoil of this thought and heartache there came tears which welled copiously and without a sob, as one weeps for things which have not been and cannot be; as one weeps for hopelessness. And the whisperings of memory stirred in her heart, and the soft light of recollection kindled like a flame. Out of the past there rose a face—and flash!

A plan!

There was something to be done now; there was hot blood in the heart again. In one moment the way had straightened before her, and resolution had taken firm captaincy. With a pang of hunger she remembered that for a day she had subsisted principally on coffee.

After a hasty supper, sleep was necessary, and rest. The horse had finished its oats, and was now watching her sudden activity with forward-thrown ears, its bright eyes catching the lantern-gleam as it turned its head. Satisfied, apparently, that the bustle included no immediate plans for itself, the animal lounged easily on three legs and went to sleep.

Agnes stopped to give it a caressing pat as she went in. Sleep was the important thing now, for her plan called for endurance and toil. But there was one little thing to be done tonight for which the early light of morning, in which she must be stirring, might not suffice—just a little writing. It was quickly done, her suitcase held across her knees serving for a desk.

CHAPTER XVIII

THE STRANGE TENT

“Do nothing until I return,” ran her letter, which Dr. Slavens read by the last muddy light of day. “I will hold you to a strict account of your promise to me that you would not act in this matter without first returning here.”

There was no word of where she had gone, no time fixed for her to return. He had found the envelope pinned to the tent-cloth when he rode up, weary and grim, from his journey to Meander.

Inside the tent all was in order. There stood her boxes of canned goods and groceries against the wall. There was her cot, its blanket folded over the pillow and tucked in neatly to keep out the dust. She had not left hastily, it appeared, although the nervous brevity of her note seemed to indicate the contrary. She had contrived herself a broom of greasewood branches, with which she swept the space between stove and tent, keeping it clean down to hard earth. It stood there as she had left it, handle down, as carefully placed as if it were a most expensive and important utensil.

Slavens smiled as he lifted it. Even in the wilderness a true woman could not live without her broom, a greater civilizing influence, he thought, than the sword.

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He did not go inside the tent, but stood holding up the flap, looking around the dim interior. Her lantern stood on a box, matches beside it, as if it had been left there ready to his hand in the expectation that he would come in and make himself at home.

It was not likely, he thought, that any of the neighbors could tell him where she had gone when she had not felt like giving him that much of her confidence. But he went down to Smith's, making casual inquiry, saying nothing about the note which she had left, not taking that to be any of Smith's concern.

As always, Smith had been astir at an early hour. He had seen her pass, going in the direction of Comanche. She was riding briskly, he said, as if she had only a short journey ahead of her, and was out of hail before he could push the pan of biscuits he was working over into the oven and open

the door. It was Smith's opinion, given with his usual volubility and without solicitation, that she had gone out on one of her excursions.

"More than likely," said the doctor. "I think I'll go back up there and kind of keep an eye on her stuff. Somebody might carry some of it off."

This unmalicious reflection on the integrity of the community hurt Smith. There was evidence of deep sorrow in his heart as he began to argue refutation of the ingenuous charge. It was humiliating, he declared, that a man should come among them and hold them in such low esteem. 290

"In this country nobody don't go around stealin' stuff out of houses and tents," he protested. "You can put your stuff down on the side of the road and leave it there, and go back in a month and find it. Sheepmen leave supplies for their herders that way, and I've known 'em to leave their pay along with 'em. Maybe it'd be a week or two before them fellers got around to it, but it'd be there when they got there. There's no such a thing as a tramp in this country. What'd a tramp live on here?"

"I don't question your defense of conditions as they were," the doctor rejoined; "but I'm looking at things as they are. There are a lot of new people in here, the country is becoming civilized; and the more civilized men grow the more police and battle-ships and regiments of soldiers they need to keep things happy and peaceful between them, and to prevent their equally civilized and cultured neighbors from stepping in from across the seas and booting them out of their comfortable homes. You've got to keep your eyes on your suitcase and your hand on your wallet when you sit down among civilized people, Smith."

"Say, I guess you're right about that," admitted Smith after some reflection. "I read in the paper the other day that they're goin' to build three new battle-ships. Yes, I reckon things'll change here in this part of Wyoming now. It'll be so in a year or two that a man can't leave his pants hangin' out on the line overnight." 291

"Yes, you'll come to that," the doctor agreed.

"Pants?" pursued Smith reminiscently. "Pants? Well, I tell you. There was a time in this country, when I drove stage from Casper to Meander, that I knew every pair of pants between the Chugwater and the Wind River. If one man ever had come out wearin' another feller's pants, I'd 'a' spotted 'em quick as I would a brand on a stray horse. Pants wasn't as thick in them

days as they are now, and crooks wasn't as plentiful neither. I knew one old sheepman back on the Sweetwater that wore one pair of pants 'leven years."

"That's another of the inconveniences of civilization."

"Pants and pie-annos," said Smith. "But I don't care; I'll put in a stock of both of 'em just as soon as folks get their houses built and their alfalfa in."

"That's the proper spirit," commended Slavens.

"And insurance and undertakin'," added Smith. "I'll ketch 'em comin' and goin'."

"If you had a doctor to hitch in with you on the deal," suggested Slavens.

"What's the matter with you?" grinned Smith.

"I'll be cutting a streak out of here before long, I think."

"Soon as you sell that claim?"

Slavens nodded.

"Don't let 'em bluff you on the price," advised Smith. "They're long on that game here."

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Slavens answered as Smith doubtless expected, and with a show of the deepest confidence in his own sagacity, no matter what feeling lay in the well of his conscience at that hour. He left Smith and went back to Agnes' camp, hoping to see a light as he drew near. There was none. As he carried no food with him, he was forced to draw on her stores for supper.

For a long time he lay upon his saddle, smoking beside the stove, turning over in his mind a thousand conjectures to account for her sudden and unexplained absence. He was not worried for her safety, for he believed that she had gone to Comanche, and that was a ride too long for her to attempt in a day. Doubtless she would set out on the return early in the morning, and reach home about noon.

It was well in the turn of the following afternoon when Slavens decided that he would wait in camp for her no longer. Fears were beginning to rise in him, and doubt that all was with her as it should be. If she went toward Comanche, she must return from Comanche; he might meet her on the way to his own camp. If not, in the morning he would go on to Comanche in search of her.

His horse, fresh and eager, knowing that it was heading for home, carried him over the road at a handsome gait. At the first stage-station out of Comanche, a matter of twenty-five miles, and of fifteen beyond his camp, he made inquiry about Agnes.

She had passed there the morning before, the man in charge said, measuring Slavens curiously with his little hair-hedged eyes as he stood in the door of his shanty, half a cabbage-head in one hand, a butcher-knife in the other. Slavens thanked him and drew on the reins.

“I’m breaking in on your preparations for supper.”

“No; it’s dinner,” the man corrected.

“I didn’t know that you’d come to six-o’clock dinners in this part of the country,” the doctor laughed.

“Not as I know of,” the cook-horse-wrangler said. “This dinner that I’m gittin’ ready, stranger, is for tomorrow noon, when the stage comes by from Comanche. I always cook it the day before to be sure it’ll be ready on time.”

With that the forehanded cook turned and went back to his pot. As Slavens rode away he heard the cabbage crunching under the cook’s knife as he sliced it for the passengers of the Meander stage, to have it hot and steaming, and well soaked with the grease of corned beef, when they should arrive at noon on the morrow.

Dusk was settling when the doctor reached his tent. Before he dismounted he rode to a little clear place among the bewilderment of stones which gave him a view of half a mile, and he sat there looking a while down the stage-trail toward Comanche. Beyond him a few hundred yards another tent had been planted. In front of it a man sat cooking his supper over a little blaze.

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“Boyle lost no time in getting here,” muttered the doctor, turning to his own shelter and kindling a fire on the ashes of other days.

Ashes were graying again over the embers long after he had boiled his pot of coffee and put away his can of warmed-over beans. Night was charged with a threat of frost, as is not uncommon in those altitudes at the beginning of September. It was so chilly that Slavens had drawn a blanket over his back as he sat before his dying fire, Indian fashion, on the ground, drawing what solace he could from his pipe.

A sound of scrambling hoofs laboring up the sharp hill from the direction of Meander came to him suddenly, startling him out of his reflections. His thought leaped to the instant conclusion that it was Agnes; he laid light fuel to the coals, blowing it to quicken a blaze that would guide and welcome her.

When the rider appeared an eager flame was laving the rocks in the yellow light, and Slavens was standing, peering beyond its radius. A glance told him that it was not she for whom he had lighted his guiding fire. It was a man. In a moment he drew up on the other side of the blaze and leaned over, looking sharply into Slavens' face.

"Hello!" he hailed loudly, as if shouting across a river.

Slavens returned his bellowed hail with moderation, recognizing in the dusty traveler Comanche's distinguished chief of police, Ten-Gallon, of the diamond rings. Slavens never had been able to feel anything but the most lively contempt for the fellow; now, since learning of Ten-Gallon's treatment of Agnes, and his undoubted hand in the plot of Hun Shanklin and Boyle against himself, the doctor held him to be nothing short of an open enemy.

"I'm lookin' for a man by the name of Boyle," announced Ten-Gallon. "Are you holdin' down camp for him?"

"He's on down the road a little way."

"Oh, yes," said Ten-Gallon, "I know you now. You're the feller that beat him to it. Well, I had a complaint ag'in' you for stealin' a man's coat over in Comanche."

"I'm out of your jurisdiction right now, I guess; but I'll go down to Comanche and give you a chance at me if you want to take it," the doctor told him, considerably out of humor, what with his own disappointment and the fellow's natural insolence.

The police chief of Comanche laughed.

"I'd be about the last man to lay hands on you for anything you done to that feller, even if you'd 'a' took his hide along with his coat," said he.

"Then the crime trust of Comanche must be dissolved?" sneered Slavens.

"I don't git you, pardner," returned Ten-Gallon with cold severity.

"Oh, never mind."

"You're the feller that beat Boyle to it, too," added the chief; "and I want to tell you, pardner, I take off my katy to you. You're one smart guy!"

"You'll find your man on down the road about a quarter," directed Slavens, on whose ear the encomiums of Ten-Gallon fell without savor.

"I heard in Meander today that you'd sold out to Boyle," said Ten-Gallon.

"Well, you got it straight," the doctor told him.

Ten-Gallon slued in his saddle, slouching over confidentially.

“Say, it ain’t any of my business, maybe, but how much did you git out of this pile of rocks?”

“It isn’t any of your business, but I’ll tell you. I got more out of it than this whole blasted country’s worth!” Slavens replied.

Ten-Gallon chuckled—a deep, fat, well-contented little laugh.

“Pardner,” said he admiringly, “you certainly are one smart guy!”

Ten-Gallon rode on in his quest of Boyle, while Slavens sat again beside his fire, which he allowed to burn down to coals.

Slavens could not share the fellow’s jubilation over the transfer of the homestead to Boyle, for he had surrendered it on Boyle’s own terms—the terms proposed to Agnes at the beginning. As he filled his big, comforting pipe and smoked, Slavens wondered what she would say concerning his failure to return to her before signing the relinquishment. There would be some scolding, perhaps some tears, but he felt that he was steering the boat, and the return merely to keep his word inviolate would have been useless.

He reviewed the crowded events of the past two days; his arrival at Meander, his talk with the county attorney. While that official appeared to be outwardly honest, he was inwardly a coward, trembling for his office. He was candid in his expression that Boyle would make a case against Agnes if he wanted it made, for there was enough to base an action upon and make a public showing.

When it came to guarding that part of the people’s heritage grandiloquently described as “the public domain,” the Boyles were not always at the front, to be sure. They had entered hundreds of men on the public lands, paid them a few dollars for their relinquishment, and in that way come into illegal ownership of hundreds of thousands of acres of grazing land. But all the big fish of the Northwest did it, said the county attorney; you couldn’t draw a Federal grand jury that would find a true bill in such a case against a big landowner, for the men in shadow always were drawn on the juries.

Of course, when one of them turned against somebody else that would be different. In the case of the person whose entry of lands was covered by the doctor’s hypothetical statement, and whose name was not mentioned between them, the crime had been no greater than their own—not so great from a moral interpretation of the law. Cupidity prompted them; the desire

for a home the other. Still, that would have no weight. If Boyle wanted to make trouble, said the county attorney, he could make it, and plenty of it.

Seeing how far the shadow of the Boyles fell over that land, Slavens at once dismissed the notion that he had carried to Meander with him of bringing some legal procedure against Boyle and Boyle's accomplices on account of the assault and attempted murder which they had practiced upon him. There could be no hope of an indictment if brought before the grand jury; no chance of obtaining a warrant for the arrest of Shanklin and Boyle by lodging complaint with the county attorney.

Yet he took up that matter with the little lawyer, whose blond hair stood out in seven directions when Slavens told him of the felonious attack and the brutal disposition of what they had doubtless believed to be his lifeless body. The county attorney shook his head and showed an immediate disposition to get rid of Slavens when the story was done. It was plain that he believed the doctor was either insane or the tallest liar that ever struck that corner of the globe.

"You couldn't make a case stick on that," said he, shifting his feet and his eyes, busying his hands with some papers on his desk, which he took up in assumed desire to be about the duties of his office without further loss of time. "All I can say to you on that is, when you get ready to leave the country, take a shot at them. That's about the only thing that's left open for you to do if you want to even it up. This office can't help you any."

And that was his advice, lightly offered doubtless, with no thought that it would be accepted and carried out; but strange advice, thought Slavens, for the protector of the people's peace and dignity to give. In case he should take it, he would have to be ready to leave, that was certain.

At his meeting with Boyle in the hotel at Meander on the appointed hour, Slavens found the Governor's son more arrogant and insistent than before. Boyle set a limit of noon for Slavens to meet his demand.

"I've got everything greased," he boasted, "and I'll cut the string if you don't come up to the lick-log then."

He offered to take Slavens to interview the official in charge of the land-office if the doctor doubted that things had not been set in motion to cause trouble for Agnes in the event of Slavens' refusal to yield. While Slavens believed this to be pure bluff, knowing that whatever influence Boyle might have with the person in question, the official would be too wise to show his

subserviency in any such manner, at the same time the doctor was well enough convinced of Boyle's great and pernicious influence without a further demonstration. He saw nothing to be gained by holding out until he could return to Agnes and place the situation before her, if Boyle had been willing to forego moving against her that long. 300

They went to the land-office together, Boyle advancing the money to Slavens for the outright purchase of the land under the provision of the act of Congress under which the reservation had been opened. Slavens immediately transferred title to Boyle, drew the money which he had on deposit in the bank at Meander, and rode away with the intention of quitting the state as soon as might be. How soon, depended upon the readiness of someone to go with him.

Boyle had told him that he might take his own time about removing his possessions from the land; but it was his intention, as he gloomed there by his low fire, to get them off the next day. In the morning, he intended to go to Comanche, which was only ten miles distant, and try to find out what had become of Agnes. From there he would send out a wagon to bring in his tent and baggage.

He turned again in his mind every reason, tenable and untenable, that he could frame to account for Agnes' sudden and unexplained trip. He thought she probably had gone for her mail, or to send a telegram and receive a reply, or for money, or something which she needed in camp. More than once he took up the probability that she had gone off on some forlorn scheme to adjust their mutual affairs; but there was not a hook of probability to sustain the weight of this conjecture, so with little handling it had to be put down as profitless.

At the best she was gone, and had been gone now two days—a long time for a trip to Comanche. He wondered if anything had happened to her on the way; whether she had fled the state in precipitation, so that his homestead might be saved from Boyle. She was generous enough to do it, but not so thoughtless, he believed, knowing as she must know the concern and worry to which he would be subject until he could have word from her. 301

But for Agnes' return to round it out, Slavens' adventure in that country had come to a close. Without Agnes it would be incomplete, as without her there would be missing a most important part in the future pattern of his life. He could not go without Agnes, although he had nothing yet of success to offer her.

But that was on the way. The knocks which he had taken there in those few weeks had cracked the insulation of hopelessness which the frost of his profitless years had thickened upon him. Now it had fallen away, leaving him light and fresh for the battle.

Agnes had said little about the money which Dr. Slavens had taken from Shanklin at the gambler's own crooked game. Whether she countenanced it or not, Slavens did not know. Perhaps it was not honest money, in every application of the term, but it was entirely current, and there was a most comfortable sense in the feel of it there bulked in the inner pocket of his coat. He had no qualms nor scruples about it at all. Fate had put it in his hands for the carrying out of his long-deferred desires. If it hadn't worked honestly for Shanklin, it was about to set in for a mighty reformation. 302

But there was the trouble of Agnes' absence, which persisted between him and sleep when he arranged himself in his blankets. He turned with it, and sighed and worked himself into a fever of anxiety. Many times he got up and listened for the sound of hoofs, to go back to his tent and tell himself that it was unreasonable to think that she would ride by night over that lonely road.

When morning began to creep in it brought with it a certain assurance that all was well with her, as daylight often brings its deceptive consolation to a heart that suffers the tortures of despair in the dark. Sleep caught him then, and held him past the hour that he had set for its bound. When he awoke the sun was shining over the cold ashes of his last night's fire.

Slavens got up with a deeper feeling of resentment against Boyle than he ever had felt for any man. It seemed to come over him unaccountably, like a disagreeable sound, or a chill from a contrary wind. It was not a pettish humor, but a deep, grave feeling of hatred, as if the germ of it had grown in the blood and spread to every tissue of his body. The thought of Boyle's being so near him was discordant. It pressed on him with a sense of being near some unfit thing which should be removed.

Dr. Slavens never had carried arms in his life, and he had no means of buckling Hun Shanklin's old revolver about him, but he felt that he must take it with him when he left the tent. Big and clumsy as it was, he thrust it under the belt which sustained his trousers, where it promised to carry very well, although it was not in a free-moving state in case an emergency should demand its speedy use. 303

There would be no time for breakfast. Even then he should have been in Comanche, he told himself with upbraidings for having slept so long. His horse had strayed, too. Slavens went after it in resentful mood. The creature had followed the scant grazing to the second bench, an elevation considerably above its present site.

Slavens followed the horse's trail, wondering how the animal had been able to scramble up those slopes, hobbled as it was. Presently he found the beast and started with it back to camp. Rounding the base of a great stone which stood perched on the hillside as if meditating a tumble, Slavens paused a moment to look over the troubled slope of land which had been his two days before.

There was Boyle's tent, with a fire before it, but no one in sight; and there, on the land which adjoined his former claim on the south, was another tent, so placed among the rocks that it could not be seen from his own.

"It wasn't there when I left," Slavens reflected. "I wonder what he's after?"

CHAPTER XIX

CROOK MEETS CROOK

Slavens was saddling his horse before his tent, his mind still running on the newcomer who had pitched to the south of him, evidently while he was away. He was certain that he would have seen the tent if it had been there before he left, for it was within plain view of the road.

Well, thought the doctor, whoever the stranger was, whatever he hoped or expected of that place, he was welcome to, for all that Slavens envied him. As for Slavens himself, he had run his race and won it by a nose; and now that he was putting down the proceeds to appease what he held as blackmail, he had no very keen regrets for what he was losing. He had passed through that. There would be the compensation—

But of that no matter; that must come in its time and place, and if never, no matter. He would have the ease of conscience in knowing that he had served her, and served her well.

His horse was restive and frisky in the cool of the morning, making a stir among the stones with its feet. Slavens spoke sharply to the animal, bending to draw up the girth, the stirrup thrown across the saddle.

“Now, you old scamp, I’ll take this friskiness out of you in a minute,” said he, giving the horse a slap under the belly as he reached to pull the stirrup down.

He drew back with a start as his eyes lifted above the saddle, and his hand dropped to the butt of the revolver which he carried so clumsily in his belt. Hun Shanklin was standing there facing him, not above a dozen feet away, grinning dubiously, but with what he doubtless meant for an expression of friendliness.

The old gambler threw out his hands with a sidewise motion eloquent of emptiness, lifting his shoulders in a quick little jerk, as if to say, “Oh, what’s the use?”

“Kind of surprised you; didn’t I, Doc?” he asked, coming nearer.

“What do you want here?” demanded Slavens harshly.

“Well, not trouble,” replied Shanklin lightly. “If I’d come over for that, I guess I could ’a’ started it before now.”

“Yes, I suppose you could,” admitted Slavens, watching him distrustfully and feeling thankful, somehow, that the horse was between them.

“I saw you up on the hill after your horse, so I thought I’d come over and let you know I was around,” said Shanklin. “Thought I’d tell you that I ain’t holdin’ any grudges if you ain’t.”

“I don’t see where you’ve got any call to. I never took a crack at you with a blackjack in the dark!”

“No, you didn’t, friend,” Shanklin agreed in his old easy, persuasive way. “And I never done it to you. You owe the honorable Mr. Jerry Boyle for the red mark you’ve got on your forrid there. I’ll own up that I helped him nail you up and dump you in the river; but I done it because I thought you was finished, and I didn’t want the muss around.”

“Well, it will all come out on the day of reckoning, I suppose,” said Slavens, not believing a word the old scamp said.

He knew that minute, as he had known all the time, that no other hand than Shanklin’s had laid him low that night. Of this he was as certain in his own mind as if he had seen the gambler lift hand for the blow. Boyle had no motive for it up to that time, although he had been quick to turn the circumstance to his advantage.

“I thought Boyle’d dickered you out of this claim before now,” said Shanklin, looking around warily.

“He’s down the road here a little piece,” replied Slavens testily, “in company of another friend of yours. You could have seen his tent as you came over if you’d looked.”

“I just put up my tent last night,” Shanklin explained.

Slavens took hold of his saddle-horn as if to mount, indicating by his action that the visit should come to an end. Shanklin, who was not in the least sensitive on the matter of social rebuffs, did not appear to be inclined to accept the hint. He shifted his legs, thrusting one of them forward in a lounging attitude, and dug in his trousers pockets with his long, skinny hands.

“Well, spit it out and have it over with!” snapped Slavens, feeling that there was something behind the man’s actions to which he had not given words.

“That was a purty good coat I left with you that night,” suggested Shanklin, looking up without the slightest stirring of humor in his dry face.

“You’re welcome to it, if that’s all,” said Slavens.

“That’s all. I was kind of attached to that coat.”

Slavens left him standing there and entered the tent, feeling that Shanklin was as irresponsible morally as a savage. Evidently the inconsequential matter of an attempt at murder should not be allowed to stand between friends, according to the flat-game man’s way of viewing life. It appeared that morning as if Shanklin had no trace of malice in him on account of the past, and no desire to pursue further his underhanded revenge. Conscience was so little trouble to him that he could sit at meat with a man one hour and stick a knife in his back the next.

The coat was under a sack of oats, somewhat the worse for wrinkles and dust. Slavens gave it a shake, smoothed the heaviest of the creases with his hand, and went out to deliver it to its owner.

Shanklin was facing the other way, in the direction of his own camp. His attitude was in sharp contrast with the easy, lounging posture of a few moments before. He was tense and alert, straining forward a little, his lean body poised as if he balanced for a jump. There was a clattering on the small stones which strewed the ground thickly there, as of somebody approaching, but the bulk of the horse was between Slavens and the view, as the doctor stopped momentarily in the door of the low tent.

Clearing the tent and standing upright, Slavens saw Boyle and Ten-Gallon coming on hurriedly. They had been to Shanklin’s camp evidently, looking for him. From the appearance of both parties, there was something in the wind.

Boyle was approaching rapidly, Ten-Gallon trailing a bit, on account of his shorter legs perhaps, or maybe because his valor was even briefer than his wind. Boyle seemed to be grinning, although there was no mirth in his face. His teeth showed between his parted lips; he carried his right arm in front, crooked at the elbow, his fingers curved.

Slavens saw that all thought of the coat had gone but of Shanklin’s mind. The old gambler did not so much as turn his head. Slavens threw the coat across his saddle as Boyle came up.

“Well, what have you got to say to it, you dirty old thief?” demanded Boyle, plunging into the matter as if preliminaries were not needed between him and Shanklin.

“You seem to be doin’ the talkin’,” returned Shanklin with a show of cold indifference, although Slavens saw that he watched every movement Boyle made, and more than once in those few seconds the doctor marked Hun’s sinewy right arm twitch as if on the point of making some swift stroke. 309

Boyle stopped while there was yet a rod between them, so hot with anger that his hands were trembling.

“That don’t answer me!” he growled, his voice thick in his constricted throat. “What have you got to say to the way you double-crossed me, you old one-eyed hellion?”

“Talk don’t hurt, Jerry, unless a man talks too much,” Shanklin answered mildly. “Now, if I wanted to talk, I could mighty near talk a rope around your little white neck. I know when to talk and when to keep still.”

“And I know how to jar you loose!” threatened Boyle.

Shanklin leaned toward the Governor’s son never so little, his left hand lifted to point his utterance, and opened upon Boyle the most withering stream of blasphemous profanity that Slavens had ever heard. If there ever was a man who cursed by note, as they used to say, Hun Shanklin was that one. He laid it to Boyle in a blue streak.

“What do I owe you?” he began.

Then he swung off into the most derogatory comparisons, applications, insulting flagellations, that man ever stood up and listened to. His evident motive was to provoke Boyle to some hostile act, so that twitching right arm might have the excuse for dealing out the death which lay at its finger-ends. Every little while the torrent of abuse broke upon the demand, “What do I owe you?” like a rock in the channel, and then rushed on again without laying hold of the same epithet twice. If a man were looking for a master in that branch of frontier learning, a great opportunity was at hand.

Boyle leaned against the torrent of abuse and swallowed it, his face losing its fiery hue, blanching and fading as if every word fell on his senses like the blow of a whip to the back. The Governor’s son watched every muscle of Shanklin’s face as if to read the gambler’s intention in his eye, while his hand, stiff-set and clawlike, hovered within three inches of his pistol-butt.

Presently Shanklin stopped, panting like a lizard. Both men stooped a little lower, leaning forward in their eager watchfulness. Neither of them

seemed to be conscious that the world held any other object than his enemy, crouching, waiting, drawing breath in nostril-dilating gasps.

Boyle moved one foot slightly, as if to steady himself for a supreme effort. A little stone which he dislodged tumbled down the side of a four-inch gully with a noise that seemed the sound of an avalanche. With that alarm Shanklin's arm moved swiftly. Like a reflection in a glass, Boyle's arm moved with it.

Two shots; such a bare margin between them that the ear scarcely could mark the line. Then one.

Shanklin, his hands half lifted, his arms crooked at the elbow and extended from his sides, dropped his pistol, his mouth open, as if to utter the surprise which was pictured in his features. He doubled limply at the knees, collapsed forward, fell upon his face. 311

Boyle put his hand to his breast above his heart, pressing it hard; took it away, turned about in his tracks as if bewildered; swayed sickly, sank to his knees, and fell over to his side with the silent, hopeless, huddling movement of a wild creature that has been shot in the woods.

Ten-Gallon came from behind the tent, where he had been compressing himself into a crevice between two boulders. His face was white, and down it sweat was pouring, drawn from the agony of his base soul. He went to the place where Dr. Slavens knelt beside Boyle.

"Cra-zy Christmas!" gasped he, his mouth falling open. Then again:

"Cra-zy Christmas!"

Slavens had gone to Boyle first, because there was something in the utter collapse of Shanklin which told him the man was dead. As he stripped Boyle's clothing off to bare the wound, Slavens ordered Ten-Gallon to go and see whether the old gambler had paid his last loss.

"I won't touch him! I won't lay a hand on him!" Ten-Gallon refused, drawing back in alarm.

Boyle was not dead, though Shanklin's bullet had struck him perilously near the heart and had passed through his body. With each feeble intake of breath blood bubbled from the blue mark, which looked like a little bruise, on his chest.

"Well, see if you can make a fire, then, and hurry about it! Get some water on to boil as fast as you can!" Slavens directed the nerveless chief of police. 312

Ten-Gallon set about his employment with alacrity while Slavens went over to Shanklin, turning his face up to the sky. For a little while he stooped over Hun; then he took the gambler's coat from the saddle and spread it over his face. Hun Shanklin was in need of no greater service that man could render him.

Dr. Slavens took off his coat and brought out his instrument-case. He gave Boyle such emergency treatment as was possible where the gun-fighter lay, and then called Ten-Gallon to help take him into the tent.

"Lord, he's breathin' through his back!" said Ten-Gallon. "He'll never live till we git him to the tent—never in this world, Doc! I knew a feller that was knifed in the back one time till he breathed through his ribs that way, and he—"

"Never mind," said Slavens. "Take hold of him."

Ten-Gallon's fire burned briskly, and the water boiled. Dr. Slavens sterilized his instruments in a pan of it, and set about to establish the drainage for the wound upon which the slender chance of Boyle's life depended. Boyle was unconscious, as he had been from the moment he fell. They stretched him on the doctor's cot. With the blankets spread underfoot to keep down the dust, the early sun shining in through the lifted flap, Slavens put aside whatever animosity he held against the man and went to work earnestly in an endeavor to save his life. 313

Ten-Gallon showed a nervous anxiety to get away. He wanted to go after his horse; he wanted to go to Boyle's tent and get breakfast for himself; and then he pressed the necessity of his presence in Comanche to keep and preserve the peace. But Slavens would not permit him to quit the tent until he could no longer be of assistance.

It was not the wounded body of Jerry Boyle that the pot-bellied peace officer feared, but the stiffening frame of Hun Shanklin, lying out there in the bright sun. Every time he looked that way he drew up on himself, like a snail. At length Slavens gave him permission to leave, charging him to telephone to Meander for the coroner the moment that he arrived in Comanche, and to get word to Boyle's people at the earliest possible hour.

There seemed to be nothing for Slavens to do but to forego his trip in quest of Agnes, and sit there in the hope that she would come. Boyle could not be left alone, and Shanklin's body must be brought up out of the gully and covered.

This ran through his mind in erratic starts and blanks as he bent over the wounded man, listening to his respiration with more of a humane than professional fear that the next breath might tell him of the hemorrhage which would make a sudden end of Boyle's wavering and uncertain life.

Ten-Gallon had been gone but a little while when Slavens heard him clattering back in his heel-dragging walk over the rocks. He appeared before the doctor with a lively relief in his face.

"Some people headin' in here," he announced. "Maybe they'll be of some help to you. I hated to go and leave you here alone with that feller"—jerking his head toward Shanklin's body—"for I wouldn't trust him dead no more than I would alive!"

"All right," said Slavens, scarcely looking up.

Ten-Gallon appeared to be over his anxiety to leave. He waited in front of the tent as the sound of horses came nearer.

"Stop them off there a little way," ordered the doctor. "We don't want any more dust around here than we can help."

He looked around for his hat, put it on, and went out, sleeves up, to see that his order was enforced. Agnes was alighting from a horse as he stepped out. A tall, slight man with a gray beard was demanding of Ten-Gallon what had happened there.

Relief warmed the terror out of her eyes as Agnes ran forward and caught Dr. Slavens' hand.

"You're safe!" she cried. "I feared—oh, I feared!"

A shudder told him what words faltered to name.

"It wasn't my fight," he told her.

"This is Governor Boyle," said Agnes, presenting the stranger, who had stood looking at them with ill-contained impatience, seeing himself quite forgotten by both of them in that moment of meeting.

"I am sorry to tell you, sir, that your son is gravely wounded," said Dr. Slavens, driving at once to the point.

"Where is he?" asked the Governor, his face pale, his throat working as if he struggled with anguish which fought to relieve itself in a cry.

Dr. Slavens motioned to the tent. The old man went forward, stopping when he saw his unconscious son and the bloody clothing beside the cot. He put his hand to his forehead and stood a moment, his eyes closed. Then he went in and bent over the wounded man.

A sob of pity rose in Agnes' throat as she watched him and saw the pain and affection upon his face. Presently Governor Boyle turned and walked to the spot where Hun Shanklin's body lay. Without a word, he lifted the coat from the gambler's face, covered it again, and turned away.

"Bad company! Bad company!" said he, sadly shaking his head. "How did it happen, Doctor? You were here? First"—he held up his hand, as if to check the doctor's speech—"will he live?"

"Men have recovered from worse wounds," responded the doctor. "There's a chance for him, at least."

He related, then, the circumstance of the meeting, the brief quarrel, and the fight, Ten-Gallon putting in a word here and there, although his testimony was neither asked nor welcomed. 316

"I don't know what the cause of the quarrel was," concluded the doctor. "Two days ago I relinquished this claim to your son. He came here immediately and took possession."

"You—you relinquished!" exclaimed Agnes, disappointment in her voice, reproach in her eyes.

"I am sorry that you relinquished it," said the Governor. "This brave young woman rode all the way to my ranch—almost a hundred miles—to save it to you. I was absent when she arrived, but I set out with her at the earliest possible moment upon my return. We rode all night last night, sir, changing horses in Comanche this morning."

"I am grateful to you, both of you, for the trouble and fatigue you have undergone in my behalf. But the case, as your son urged it, sir, was beyond temporizing. Perhaps Miss Gates has told you?"

The Governor nodded curtly, a look of displeasure on his face.

"I can't believe that Jerry meant it," he protested. "It must have been one of his jokes."

"I am sorry, then, that my idea of humor is so widely divergent from his!" said Dr. Slavens with deep feeling.

"Well, he's paid for it. The poor boy has paid for his indiscretion," said the old man sadly.

He turned away and went a little space, where he stood as if in meditation.

"You promised me that you'd do nothing until you returned and saw me," Agnes charged. "And I had saved it for you! I had saved it!" 317

“You would have been too late,” returned the doctor sharply. “The machinery for your humiliation was already in motion. I doubt whether even the Governor could have stopped it in another day without a great deal of unpleasant publicity for you. Boyle meant to have this piece of land, and he got it. That’s all.”

Ten-Gallon was fooling around the fire. He drew over toward the group as the Governor came back.

“Can my son be removed from here?” the old man asked.

The doctor said that he could not, without practically throwing away his slender chance for life.

“Do for him what you can; you seem to be a capable man, sir; you inspire confidence in me,” said the Governor, laying his hand appealingly on the doctor’s shoulder; “and if you can save him, I’ll pay you twice what this infernal claim was worth to you!”

“I’ve done all that can be done for him, without hope or expectation of reward,” said the doctor; “and I’ll stick by him to the end, one way or another. We can care for him here as long as this weather holds, just as well as they could in a hospital.”

“Well, as far as what this claim’s worth goes,” put in Ten-Gallon, edging into the conversation, “you don’t need to lose any sleep over that.”

“What do you mean?” demanded Slavens, turning upon him sharply. 318

Ten-Gallon stirred the dust with his toe, stooped and picked up an empty revolver-cartridge.

“It ain’t worth that!” said he, presenting it in the palm of his hand.

“I don’t know what you’re driving at,” said the doctor, inclined to walk away and leave him.

“I mean that Hun Shanklin queered all of you,” said Ten-Gallon. “You had the wrong figgers, and you filed on the wrong claim!”

Pressed for an explanation of how he knew, Ten-Gallon told them that he had been Shanklin’s partner at the beginning, and that Shanklin had deceived and cheated both him and Boyle.

“Ah, then he did double-cross my son!” cried the Governor triumphantly, seizing this vindication for the young man’s deed with avid eagerness.

“He sure did,” Ten-Gallon agreed; “and he done it right! I know all about you”—nodding to the doctor—“and what happened to you back of that tent in Comanche that night. Shanklin had it in for you ever since you showed up

his game the night that sucker feller was goin' to put down that wad of money. He'd been layin' for you, one way and another, for a couple of days or so. You walked right into his hand that night."

"I seemed to," admitted Slavens with bitter recollection.

"Shanklin knew about copper in these rocks over here—"

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"So it's copper?" said Slavens, unable to restrain his words.

"Copper; that's what it is," nodded Ten-Gallon. "But it ain't on this claim, and I'll show that in a minute, too. Hun had been writin' to Jerry about it, tryin' to git up a company to pay him for what he knew, so they could locate the man that drewed Number One there, see? Well, Hun, he'd known about that copper a long time; he could go to it with his eyes shut. So he got the description of the land as soon as the survey maps was out, and he offered to sell the location for five thousand dollars. He had samples of the ore, and it run rich, and it *is* rich, richest in this state, I'm here to tell you, gentlemen.

"But Jerry wouldn't give him no five thousand for what he knew. So Hun he got some other fellers on the string, and him and me was partners on the deal and was goin' to split even on account of some things I knew and was to keep under my katy.

"Well, Hun sold the figgers of that land to Jerry for five hundred dollars in the end, and he sold it to them other fellers for the same. When it come out that you was Number One, Doc—and us fellers knew that in the morning of the day of the drawin', for we had it fixed with Mong—Hun he tells Jerry that you'll never sell out for no reasonable price.

"'We'll have to soak that feller,' he says, 'and git him out of the way.' Jerry he agreed to it, and they had men out after you all that day and night, but they didn't git a chance at you. Then you walked right into old Hun's hand. Funny!" commented Ten-Gallon stopping there to breathe.

"Very!" said the doctor, putting his hand to the tender scar on his forehead.

He pushed back his hat and turned to the Governor.

"Very funny!" said he.

"Of course, Jerry, he was winded some when you put in your bill there ahead of him and Peterson that morning and filed on the claim he had it all framed up to locate the Swede feller on. Jerry telephoned over to Comanche

and found out from Shanklin how you got the numbers, and then he laid out to start a fire under you and git you off. Well, he done it, didn't he?"

Ten-Gallon leered up at Slavens with some of his old malevolence and official hauteur in his puffy face.

"Go on with your story, and be careful what charges you lay against my son!" commanded the Governor sharply.

Ten-Gallon was not particularly squelched or abashed by the rebuke. He winked at Agnes as if to express a feeling of secret fellowship which he held for her on account of things which both of them might reveal if they saw fit.

"Shanklin, he closed up his game in Comanche three or four days ago and went over to Meander," Ten-Gallon resumed. "He never had split with me on that money he got for the numbers of this claim out of Jerry and that other crowd. So I follered him. Yesterday morning, you know, the land left over from locatin' them that had drawed claims was throwed open to anybody that wanted to file on it.

"Well, the first man in the line was that old houn' that's layin' over there with his toes turnin' cold. He filed on something, and when I collared him about the money, he throwed me down. He said he sold the numbers of land that didn't have no more copper on it than the palm of his hand, and he said he'd just filed on the land that had the mines. He showed me the papers; then he hopped his horse and come on down here."

"Incredible!" exclaimed the Governor.

"It was like him," Slavens corroborated. "He was a fox."

"I was goin' to take a shot at him," bragged Ten-Gallon, "but he was too fur ahead of me. He had a faster horse than mine; and when I got here last night he was already located on that claim. The copper mine's over there where the old feller's tent stands, I tell you. They ain't enough of it on this place to make a yard of wire."

"And you carried the story of Shanklin's deception and fraud to my son," nodded the Governor, fixing a severe eye on Ten-Gallon, "and he sought the gambler for an explanation?"

"Well, he was goin' to haul the old crook over the fire," admitted Ten-Gallon, somewhat uneasy under the old man's eye.

The Governor walked away from them again in his abstracted, self-centered way, and stood looking off across the troubled landscape. Dr.

Slavens stepped to the tent to see how the patient rested, and Ten-Gallon gave Agnes another wink.

“Comanche’s dwindlin’ down like a fire of shavin’s,” said he. “Nobody couldn’t git hurt there now, not even a crawlin’ baby.”

Indignation flushed her face at the man’s familiarity. But she reasoned that he was only doing the best he knew to be friendly.

“Are you still chief of police there?” she asked.

“I’m marshal now,” he replied. “The police force has been done away with by the mayor and council.”

“Well then, I still have doubt about the safety of Comanche,” she observed, turning from him.

Governor Boyle approached Ten-Gallon and pointed to Hun Shanklin’s body.

“You must do something to get that carcass out of camp right away,” he said. “Isn’t there a deputy coroner at Comanche?”

“The undertaker is,” said Ten-Gallon, drawing back at the prospect of having to lay hands on the body of the man whom he feared in death as he had feared him in life.

“Send him over here,” Governor Boyle directed.

Ten-Gallon departed on his mission, and the Governor took one of the trodden blankets from in front of the tent and spread it over Shanklin’s body, shrouding it completely. Dr. Slavens had lowered the flap of the tent to keep the sun from the wounded man’s face. When he came out, Agnes met him with an inquiring look.

“He’s conscious,” said the doctor. “The blow of that heavy bullet knocked the wind out of him for a while.”

“Will he—lapse again?” asked the Governor, balancing between hope and fear.

“It isn’t likely. You may go in and speak to him now if you want to. But he must keep still. A little exertion might start a hemorrhage.”

Jerry Boyle lay upon his back, his bloodless face toward them, as they gathered noiselessly in the door of the tent. His eyes were standing open, great and questioning, out of his pallor, nothing but the animal quality of bewilderment and fear in their wide stare.

Governor Boyle went in and dropped to his knees beside the cot. Dr. Slavens followed hastily, and placed his hand on the wounded man’s breast.

“You may listen,” said he; “but keep still.”

“Don’t even try to whisper,” admonished the Governor, taking his son’s hand between his own.

“That’s all right, Governor,” replied the young man, his face quickening with that overrunning little crinkling, like wind over water, which was his peculiar gift for making his way into the hearts of women and men, unworthy as he was.

“Be still!” commanded the old man. “I know what happened. There’s nothing to say now.”

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“Did I get him?” whispered Jerry, turning his head a little and looking eagerly into his father’s face.

The Governor placed his hand over his son’s mouth, silencing the young man with a little hissing sound, like a mother quieting her babe.

Agnes turned away, the disgust which she felt for this savage spirit of the man undisguised in her face. Dr Slavens cautioned the Governor again.

“If he says another word, you’ll have to leave him,” said he. “This is one case where talk will turn out anything but cheap.”

He joined Agnes, and together they walked away from the scene of violence and death.

“You’re tired to death,” said he. “I’m going to take possession of Boyle’s tent down there for you, and you’ve got to take a long sleep. After that we’ll think about the future.”

She walked on beside him, silent and submissive, interposing no objection to his plan. They found the tent very well equipped; he started to leave her there to her repose. She stood in the door with her hat in her hand, her hair in disorder, dust over her dress and shoes.

“Could you send word to Smith by the stage this morning and ask him to bring my things—tent and everything—down here?” she asked.

“Then you’re not planning to go back there?” he asked, his heart jumping with hope.

She shook her head, smiling wanly.

“I can’t bear the thought of it,” said she.

CHAPTER XX

A SUDDEN CLOUD

Dr. Slavens went back to his camp, concluding on the way that it would be wise to have a complete understanding with Governor Boyle in regard to taking further charge of his son's case. If, after three days allowed for infection to manifest itself, the wound remained healthy and clean, there would be little need of a doctor in constant attendance. Young Boyle would be able to express his preference in the matter then, and Slavens did not want to act as physician to him against his will.

Governor Boyle was walking up and down like a sentry before the tent when Dr. Slavens came up.

"He's asleep," said the father. "He seems to be pitifully weak for a man suffering from a fresh wound; he dropped off as if he had fainted."

"When you consider that a bullet of that caliber, with the powder back of it that this one had, strikes somewhere around a ton," said the doctor, "it ceases to be a wonder that he is weak."

"It's Heaven's mercy that spared him!" declared the Governor, his voice troubled with emotion.

Slavens wondered at the deep affection which this man of so hard a repute could show for his son, and at the tie of tenderness which plainly bound them. But precedent is not wanting, as the doctor reflected, ³²⁶to establish the contention that some of the world's greatest oppressors have been good fathers, kind husbands, and tender guardians of the home.

"Yes; Shanklin shot twice," said Slavens. "It was his second one that hit, after he had been mortally hurt himself."

"It was the hand of Providence that turned his aim!" said the Governor. "The old one-eyed villain had the reputation of being the best shot in the Northwest. He provoked my son to draw on him, or tried to at least—for I can't believe that Jerry drew first—with the intention of putting him out of the way."

"What do you propose to do about bringing another surgeon here?" asked Dr. Slavens.

"Why, I hadn't given it any serious thought," answered Governor Boyle, looking at him quickly.

"It would please me better to have you do so."

"But I have entire confidence in your ability to handle the case, sir. Your conduct in the matter has been admirable, and I see no reason why you should not continue to attend my son until—the end, one way or the other."

"You understand, Governor," said Dr. Slavens gravely, searching the old man's face with steady eyes, "that there is no ground for good feeling or friendship between your son and me?"

The Governor nodded, averting his face, as if the acknowledgment gave him pain or shame. 327

"And in case that everything should not turn out to the happiest conclusion for him, I should not want to stand the chance of blame."

"Quite sensible, but unnecessarily cautious, I tell you," the Governor replied.

"I have done all that a better surgeon could have done," pursued the doctor, "and I am quite willing to go ahead and do all that can be done until you can bring another physician here, to relieve me, or at least satisfy you that I have not allowed any feeling of man to man to stand between physician and patient."

"Very well; I will telegraph to Cheyenne for a physician," agreed the Governor, "since it is your wish. But I am entirely satisfied with, and trustful of you, sir. That I desire you to understand plainly."

Dr. Slavens thanked him.

"I shall send for the other physician to act merely in an advisory capacity, and in no manner to relieve you of the case unless you desire to be relieved. But I think it will be to your interest to stand by me. I feel that I am under a certain obligation to you, more especially to Miss Gates, for my son's—"

"We will not discuss that, if you please," Dr. Slavens interrupted.

"At least I will stand by what I said to you a little while back," the Governor said; "that is, in the matter of remuneration, if you pull him through."

"All of that in its proper place," said the doctor. "I am going back to Comanche now to send for the boy's mother," the Governor announced, 328
"and telegraph to Cheyenne for the doctor of whom I spoke. I have known him for many years. I'll have some more tents and camp-supplies sent out,

and anything that you stand in need of which can be procured in Comanche.”

Dr. Slavens gave him a list of articles needed in the patient’s case, and the Governor rode away. The undertaker from Comanche arrived a little later, and took Hun Shanklin’s body up from the ground. When his wagon, on its return to Comanche, had passed the tent where Agnes was trying to sleep, she got up and joined Dr. Slavens.

“I couldn’t sleep,” she explained. “Every time I shut my eyes I could see that poor old gambler’s body lying there with the coat over his face!”

“I don’t feel either pity or pain in his case,” said the doctor; “or, when it comes to that, for the other one, either.”

“Well, you couldn’t have prevented it, anyway,” she sighed.

“And wouldn’t have if I could,” he declared. “I looked on them as one poison fighting another, as we set them to do in the human system. When one overcomes the other, and the body throws them both out, health follows.”

“Do you think Jerry will recover?”

“There’s a chance for him,” he replied.

“For his mother’s sake I hope he will,” she said. “I went to see her, remembering in the midst of my distress her kind face and gentle heart. I’m glad that I went, although my mission failed.”

“No, nothing fails,” he corrected gently. “What looks to us like failure from our side of it is only the working out of the plan laid down a long time ahead. We may never see the other side of the puzzle, but if we could see it we’d find that our apparent failure had been somebody else’s gain. It’s the balance of compensation. Your thought of Boyle’s mother, and your ride to appeal to her in my behalf, worked out in bringing his father here at a time when Jerry needed him as he never may need him in his life again.”

“It was a strange coincidence,” she reflected.

“We call such happenings that for want of a better name, or for the short-sightedness which keeps us from applying the proper one,” said he. “It’s better that you have concluded to give up the City of Refuge. You’ll not need it now.”

“It was a foolish undertaking, romantic and impossible, from the very beginning,” she owned. “I never could have put it through.”

"It would have carried many a heartache with it, and many a hard and lonely day," said he. "And so we are both back where we were, so far as landed possessions go in this country, at the beginning."

"I've lost considerable by my foolish dream," she confessed with regret.

"And I have gained everything," he smiled, taking her hand in his. 330

The world around them seemed to be too grave to look kindly on any love-passages of tenderness or kisses, or triflings such as is the common way of a man with a maid. In that moment when hand touched hand she looked up into his eyes with warm softness glowing in her own, and on her lips stood an invitation which his heart sprang to seize, like an eager guest leaping through the portal of welcome.

At that moment, when eye drew eye, heart warmed to heart, and lips trembled to meet, Jerry Boyle coughed as if blood were mounting to his throat and cutting off his life.

Dr. Slavens was at his side in a moment. It must have been the strangulation of an uneasy dream, for there was no symptom of hemorrhage. The wounded man still slept, groaning and drawing the lips back from the teeth, as he had drawn them in his passion when he came on that morning to meet his enemy with the intention in his heart to slay.

But love shuddered and grew pale in the cold nearness of death. The kiss so long deferred was not given, and the fluttering pulse which had warmed to welcome it fell slow, as one who strikes a long stride in a journey that has miles yet to measure before its end.

Governor Boyle was back in camp in the middle of the afternoon, and before night the tents and furnishings for lodging the party comfortably arrived from Comanche. The Governor pressed Agnes, who was considering riding to Comanche to find lodging, to remain there to assist and comfort his wife when she should arrive. 331

"We need the touch of a woman's hand here," said he.

They brought Jerry's tent and set it up for her. She was asleep at dusk.

Mrs. Boyle arrived next morning, having started as soon as the messenger bearing news of the tragedy reached the ranch. She was a slight, white-haired woman, who had gone through hardships before coming to prosperity on that frontier, so the fifty-mile ride in a wagon was no unusual or trying experience for her.

Whatever tears she had for her son's sad plight she had spent on the rough journey over. As she sat beside him stroking his heavy hair back from his pallid brow, there was in her face a shadow of haunting anxiety, as if the recollection of some old time of terror added its pangs to those of the present.

Her presence in camp, and her constant ministrations at her son's side, relieved Dr. Slavens of considerable professional anxiety, as well as labor. It gave him time to walk about among the gigantic stones which cast their curse of barrenness over that broken stretch, Agnes with him, and make a further investigation of the land's mineral possibilities.

"Ten-Gallon was telling the truth, in my opinion," said he. "I have explored these rocks from line to line of this claim, and I reached the conclusion a good many days ago that somebody had been misled³³³ in supposing it was worth money. It was nothing but Boyle's persistent determination to get hold of it that gave it a color of value in my mind."

"Still, it may be the means, after all, of yielding you as much as you expected to get out of it at the first," she suggested.

He looked at her questioningly.

"I mean the Governor's declaration yesterday morning that he would pay you twice what you expected to get out of it if you would save Jerry's life."

"Oh, *that!*" said he, as if he attached little importance to it.

"He's a millionaire many times over," she reminded him. "He can afford to do it, and he should."

"I may be out of the case entirely before night," he told her, explaining that another physician would arrive on the first train from Cheyenne.

"You know best," said she, resigning hope for his big fee with a sigh.

"Smith will come over with your tent and goods today, very likely," said he, "and then we can leave. I had planned it all along, from the time we used to take those moonlight walks to the river, that we should leave this country together when it came our time to go."

"It would be wrong for you to waste your life here, even if you could make more money than elsewhere, when the world with more people and more pain in it needs you so badly," she encouraged him. ³³³

"Just so," he agreed. "It's very well for Smith to stay here, and men of his kind, who have no broader world. They are doing humanity a great service in smoothing the desert and bringing the water into it."

“We will leave it to them,” she said.

They tramped across the claim until they came in sight of Hun Shanklin’s tent. Its flap was blowing in the wind.

“The old rascal came over to make friends with me,” said Slavens. “He claimed that he never lifted his hand against me. There’s his horse, trying to make it down the slope to the river. I’ll have to catch the beast and take that rope off.

“There’s a man over there!” Agnes exclaimed. “Look! There among the rocks to the right of the tent! I wonder who it is?”

Slavens looked where she pointed, just as the man disappeared among the rocks.

“It’s the Governor!” she whispered.

“Looked like his coat,” he agreed.

“Do you suppose he’s—”

“Trying to locate old Shanklin’s mine,” he said. “That’s what he’s after. If there’s copper on that piece the Governor will get it, even if his son doesn’t live to share with him. The difference of a figure or two in the description of a piece of land might be revised on the books, if one had the influence.”

The doctor for whom Governor Boyle had sent arrived on the afternoon train from Cheyenne and reached the camp before sunset. He spoke in the highest terms of the manner in which Dr. Slavens had proceeded, and declared that it would be presumptuous meddling for him, or anyone else, to attempt to advise in the case.

Agnes heard his commendation with triumph in her eyes, and Mrs. Boyle gave Dr. Slavens her blessing in a tearful look. The doctor from Cheyenne took up his instrument-case and held out his hand with a great deal more respect in his bearing toward the unknown practitioner than he had shown upon his arrival.

“On vacation here?” he asked, puzzled to find any other excuse for so much ability running wild among the rocks in that bleak place.

“Something like that,” answered Slavens noncommittally.

“When you’re passing through Cheyenne, stop off and see me,” giving Slavens a respectful farewell.

Dr. Slavens advanced several points in the appraisal of Governor Boyle, although, to do the Governor justice, he had seen from the beginning that the wandering physician was a master. Boyle had been weighing men

for what they were worth, buying them and selling them, for too many years to place a wrong bet. He told Slavens that unlimited capital was back of him in his fight for Jerry's life, and that he had but to demand it if anything was wanted, no matter what the cost.

Dr. Slavens told him bluntly that his son was in a fix where one man's money would go as far as another's to get him clear, and that it had very little weight in the other end of the scales against the thing they were standing in front of, face to face.

"Save him to me, Doctor! For God's sake save him!" begged the old man, his face bloodless, the weight of his unshored years collapsing upon him and bowing him pitifully.

Again Slavens felt the wonder of this man's softness for his son, but pity was tintured with the thought that if it had been applied in season to shaping the young man's life, and his conscience, and his sense of justice, it might have commanded more respect. But he knew that this was the opportunity to make the one big chance which the years had been keeping from him. At the start Slavens had told the old man that his son had a chance for life; he had not said how precariously it lay balanced upon the lip of the dark cañon, nor how an adverse breath might send it beyond the brink. The weight of the responsibility now lay on him alone. Failure would bring upon him an avalanche of blame; success a glorious impetus to his new career.

He took a walk down to the river to think about it, and breathe over it, and get himself steadied. When he came back he found Smith there, unloading Agnes' things, soaking up the details of the tragedy with as much satisfaction as a toad refreshing itself in a rain.

Smith was no respecter of office or social elevation. If a man deserved shooting, then he ought to be shot, according to Smith's logic. As he made an excuse to stay around longer by assisting the doctor to raise Agnes' tent, he expressed his satisfaction that Jerry Boyle had received part payment, at least, of what was due him.

"But I tell you," said he to the doctor in confidence, turning a wary eye to see that Agnes was out of hearing just then. "I'm glad he got it the way he did. I was afraid one time that girl over there was goin' to let him have it. I could see it in her eye."

“You can see almost anything in a woman’s eye if your imagination is working right,” the doctor told him, rather crabbedly.

“You don’t need to believe it if you don’t want to,” returned Smith, somewhat offended, “but I tell you that girl’d shoot a man in a minute if he got too fresh!”

“I believe you’re right about that, Smith,” agreed the doctor, “so let’s you and I be careful that we don’t get too fresh.”

Smith said no more, but he kept turning his eye upon the doctor as he got his wagon ready to set off on his return, with a good deal of unfriendliness in it. Evidently it had come into his mind only then that Dr. Slavens was assuming a sort of proprietary air around Agnes.

With his foot on the brake and his lines drawn up, Smith looked down and addressed her.

“Well, I don’t suppose you’ll be back on the river for some time?”

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“I expect it will be a long time,” she replied, evading exposition of her plans.

“I’ll keep my eye on the place for you, and see that them fellers don’t cut down your timber,” he offered.

She thanked him.

“When you come over that way, take a look at that sign on the front of my store,” said Smith, giving her a significant, intimate glance. “The more you see that name in print the better you like it.”

With that Smith threw off his brake so suddenly and violently that it knocked a little cloud of dust out of his wagon, laid the whip to his team, and drove off with almost as grand a flourish as he used to execute when setting out from Comanche on the stage.

Mrs. Boyle left her son’s side, her husband relieving her, to see that Agnes was supplied with everything necessary. She had pressed Agnes to remain with her—which was well enough in accord with the girl’s own inclination—and help her care for her “little boy,” as she called him with fond tenderness.

“Isn’t she sweet?” whispered Agnes, as Mrs. Boyle went to her own tent to fetch something which she insisted Agnes must have. “She is so gentle and good to be the mother of such a wolf!”

“But what did she think about her precious son going to turn the whole United States out after you because you wouldn’t help him pull the plank

out from under an unworthy friend?"

"I didn't tell her that," said Agnes, shaking her head. "I told the Governor ³³⁸ as we came over, and she isn't to know that part of it."

Their tents made quite a little village, and the scene presented considerable quiet activity, for the Governor had brought a man over from Comanche to serve the camp with fuel and water and turn a hand at preparing the food. Agnes was cook-in-extraordinary to the patient and the doctor. She and Slavens took their supper together that night, sitting beside the fire.

There they talked of the case, and the prospect of the fee, and of the future which they were going to fix up together between them, as confidently as young things half their age. With the promised fee, life would be one way; without it another. But everything was white enamel and brass knobs at the poorest, for there was confidence to give hope; strength and love to lend it color.

Striking the fire with a stick until the sparks rose like quail out of the grass, Dr. Slavens vowed solemnly that he would win that fee or take in his shingle—which, of course, was a figurative shingle only at that time—and Agnes pledged herself to stand by and help him do it as faithfully as if they were already in the future and bound to sustain each other's hands in the bitter and the sweet of life.

"It would mean a better automobile," said he.

"And a better surgery, and a nicer chair for the consulting-room," she added, dreaming with wide-open eyes upon the fire. ³³⁹

"And a better home, with more comfort in it for you."

"Oh, as for that!" said she.

"I've got my eye on a place with old elms in front of it, and moss on the shingles, and a well where you pull the bucket up with a rope over a pulley," said he. "I've got it all laid out and blooming in my heart for that precious mother of yours. It is where mine used to live," he explained; "but strangers are in it now. We'll buy them out."

"It will be such a burden on you. And just at the beginning," she sighed. "I'm afraid, after all, that I'll never be coward enough to consent to it at the last."

"It's out of your hands now, Agnes," said he; "entirely out of your hands."

"It is strange how it has shaped out," she reflected after a little silence; "better, perhaps, than we could have arranged it if we had been allowed our own way. The one unfortunate thing about it seems to be that this case is isolated out here in the desert, where it never will do you a bit of good."

"Except the fee," he reminded her with a gentle smile.

"Oh, the fee—of course."

"But there is a big hurdle to get over before we come to even that."

"You mean—"

She looked at him with a start, the firelight catching her shining eyes. 340

"The crisis."

"Day after tomorrow," said she, studying the fire as if to anticipate in its necromancy what that day offered to their hopes.

The shadow of that grave contingency fell upon them coldly, and the plans they had been making with childlike freedom of fancy drew away and grew dim, as if such plans never had been. So much depended on the crisis in Jerry Boyle's condition, as so much devolves upon the big *if* in the life of every man and woman at some straining period of hopes and schemes.

Words fell away from them; they let the fire grow pale from neglect, and gray ashes came over the dwindling coals, like hoarfrost upon the bright salvia against a garden wall. Silence was over the camp; night was deep around them. In Jerry Boyle's tent, where his mother watched, a dim light shone through the canvas. It was so still there on that barren hillside that they could hear the river fretting over the stones of the rapids below the ford, more than half a mile away.

After a while her hand sought his, and rested warm upon it as she spoke.

"It was pleasant to dream that, anyway," said she, giving up a great sigh.

"That's one advantage of dreams; they are plastic material, one can shape them after the heart's desire," he answered.

"But it was foolish of me to mingle mine with yours so," she objected. "And it was wrong and selfish. I can't fasten this dead weight of 341 my troubles on you and drag you back. I can't do that, dear friend."

He started at the word, laying hold of her hand with eager grip.

"Have you forgotten the other word—is that all there is to it?" he asked, bending toward her, a gentle rebuke in his trembling voice.

"There is so much more! so much more!" she whispered. "Because of that, I cannot be so selfish as to dream those splendid dreams again—wait,"

she requested, as she felt that he was about to speak.

“If I thought only of myself, of a refuge for others and myself, then I would not count the penalty which would attach to you to provide it. But unless we win the Governor’s fee, my dear, dear soul, don’t you see how impossible it will be for us to carry out even the most modest of our fond schemes?”

“Not at all,” he protested.

“It would drag you back to where you were before, only leaving you with a greater burden of worry and expense,” she continued, unheeding. “I was rapt, I was deadened to selfish forgetfulness by the sweet music of those dreams. I am awake now, and I tell you that you must not do it, that I shall never permit you to ruin your life by assuming a load which will crush you.”

“Agnes, the chill of the night is in your heart,” said he. “I will not listen to such folly! Tomorrow, when the sun shines, it will be the same as yesterday. I have it all arranged; you can’t change it now.” 342

“Yes. You took charge of me in your impetuous generosity, and I was thoughtless enough to interpose no word. But I didn’t mean to be selfish. Please remember above it all that I didn’t mean to be selfish.”

“I have it all arranged,” he persisted stubbornly, “and there will be no turning back. Tomorrow it will not look so gloomy to you. Now, you’d better go to bed.”

He rose as he spoke, gave her his hand, and helped her to her feet. As they stood face to face Agnes placed her hand upon his shoulder gravely.

“I am in sober earnest about this, Doctor,” said she. “We must not go on with any more planning and dreaming. It may look as if I feared the future with you for my own sake, putting the case as I do, all dependent on the winning of that fee. But you would not be able to swim with the load without that. It would sink you, and that, too, after you have fought the big battle and won new courage and hope, and a new vision to help you meet the world. Unless we weather the crisis, I must ride away alone.”

“I’d be afraid of the future without you; it would be so bleak and lonesome,” said he simply. He gave her good night before her tent.

“And for that reason,” said he, carrying on his thought of a minute before, “we must weather the crisis like good sailormen.”

CHAPTER XXI

THE CRISIS

Brave words are one thing, and inflammation in a gunshot wound is another. Infection set up in Jerry Boyle's hurt on the day after that which the doctor had marked as the critical point in his battle for life.

Dr. Slavens was of the opinion that the bullet had carried a piece of clothing into the wound, which it was not able to discharge of itself. An operation for its removal was the one hope of saving the patient, and that measure for relief was attended by so many perils as to make it very desperate indeed.

The doctor viewed this alarming turn in his patient with deep concern, not so much out of sympathy for the sufferer and his parents, perhaps, as on his personal account. The welfare of Jerry Boyle had become the most important thing in life to him, for his own future hinged on that as its most vital bearing.

Agnes was firm in her adherence to the plan of procedure which she had announced. She declared that, as matters stood, she would not become a burden, with all her encumbrances, upon his slender resources. If mischance wrested the promised fee out of his hands, then they must go their ways separately. She repeated her determination to abide by that on the morning when Dr. Slavens announced the necessity of the operation.

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Slavens was hurt and disappointed. It seemed that his faith in her suffered a blighting frost.

"In plain words," he charged, "you will refuse to marry me because I am poor."

"There's no other way to put it," she admitted. "But I refuse only out of my boundless esteem and tenderness for you and your success. I am putting down happiness when I do this, and taking up an additional load of pain. But what peace or self-respect would ever be mine again if I should consent to add the burden of two helpless old people to what you will have to carry on your own account?"

"My back is broad enough to be Atlas to your little world," he declared.

“But there’s no use strangling success,” she argued. “It can’t be many years, at the longest, until time and nature relieve my tottering charges of their dependence on me. If you would care to wait, and if I might not be too old—”

“If there’s nothing better for it, then we’ll wait,” he cut in almost sharply. “Do you remember how I showed you to hold that cone?”

She had consented to assist him in the operation to the extent of keeping the patient under the ether after he had administered it.

“This way,” said she, placing the cotton-filled paper cone over the nostrils.

From the physician’s standpoint, the operation was entirely successful. A successful operation, as the doctor defines it, means that the doctor gets what he starts after. Frequently the patient expires during the operation, but that does not subtract anything from the sum of its success.

In the case of Jerry Boyle the matter wore a brighter aspect all around. The doctor found the bit of coat-lining which the bullet had carried in with it, and removed it. The seat of inflammation was centered around it, as he had foreseen, and the patient was still alive, even though the greater part of the day had passed since the tormenting piece of cloth was removed.

The camp was hushed in the depression of despair. Until that day they had heard Mrs. Boyle’s hopeful voice cheering her husband, upon whom the foreboding of disaster seemed to weigh prophetically. Sometimes she had sung in a low voice as she watched beside her son. But now her courage seemed to have left her, and she sat in the tent with the Governor, huddled like two old tempest-beaten birds hiding under a frail shelter which could not shield them from the last bitter blow. They had given the care of their son over to the doctor and Agnes entirely, watching their coming and going with tearful eyes, waiting for the word that would cut the slender stay of hope.

On the afternoon of the second day after the operation, Agnes entered the tent and looked across the patient’s cot into Dr. Slavens’ tired eyes. He shook his head, holding the sufferer’s wrist, his finger on the fluttering pulse. It seemed to Agnes that Boyle had sunk as deep into the shadow of the borderland as human ever penetrated and drew breath. From all appearances he was dead even that moment, and the solemn shake of the head with which the doctor greeted her seemed to tell her it was the end.

She went to her own tent and sat in the sun, which still fell hot and bright. The Governor and his wife had let down the flap of their tent, as if they could no longer bear the pain of watching. Tears came into Agnes' eyes as she waited there in the wreckage of so many human hopes; tears for the mother who had borne that unworthy son, but whose heart was tender for him as if his soul had been without a stain; tears for the old man whose spirit was broken, and tears for herself and her own dreams, and all the tender things which she had allowed to spring within her breast.

After a long time Dr. Slavens came out of the hospital-tent and let the flap down after him. The sun was striking long, slanting shadows across the barrens; the fire was dying out of its touch. Agnes' heart sank as she saw the doctor draw away a little distance, and then turn and walk a little beat, back and forth, back and forth, his head bowed, his hands clasped behind him in an attitude of thorough disappointment and deep gloom. She got up and went to him, a feeling that all was over.

"Never mind," she consoled, lifting her tear-streaked face to meet his haggard look. "You've lost, but I have come to tell you that it makes no difference between us. We will go on with our life together as we planned it; we will take up our dreams."

"Agnes, you have come in good time," said he, lifting his hand to his forehead wearily.

"I am not noble enough to sacrifice my happiness for your good," she continued. "I am too weak and common, and womanly frail for that. I cannot carry out my brave resolution, now that you've lost. We will go away together, according to your plan, and I will live by your plan, always and forever."

"You have come in good time—in good time," said he again, as one speaking in a daze.

Then he drew her to his breast, where her head lay fair and bright, her straying hair, spread like a shattered sunbeam, lifting in the young wind that came from the hills beyond the river.

There she rested against the rock of his strength, his hand caressing her wild tresses, the quiver of her sobbing breast stirring him like a warm and quickening draught.

"You did well to come and tell me this," said he, "for, as I love you, my dear, dear woman, I would not have had you on the other terms. But I have

not lost. Jerry Boyle has emerged from the shadow. He will live.”

After that day when his adventuring soul strayed so near the portal which opens in but one direction, Boyle’s recovery was rapid. Ten days later they loaded him into a wagon to take him to Comanche, thence to his father’s home by rail.

Young Boyle was full of the interest of life again, and his stock of audacity did not appear to be in the least diminished by his melancholy experience. He treated Dr. Slavens on the footing of an old friend, and if there was any shame in his heart at his past behavior toward Agnes, his colorless cheeks did not betray it.

With the exception of one flying visit to the capital city of the state, Governor Boyle had remained in camp faithfully since the day of the tragedy. But the slow days in those solitudes were galling to his busy mind once the safety of his boy’s life was assured. He became in a measure dictatorial and high-handed in his dealings with the doctor, and altogether patronizing.

Dr. Slavens considered his duty toward the patient at an end on the morning when they loaded him into the spring wagon to take him to Comanche. He told the Governor as much.

“He’ll be able to get up in a few days more,” said the doctor, “and inside of a month he’ll be riding his horse as if daylight never had been let through him.”

Governor Boyle took this announcement as the signal for him to produce his checkbook, which he did with considerable ostentation and flourish.

“How much did you expect to get out of this pile of rocks?” he asked the doctor, poising his fountain-pen over the page. 349

Dr. Slavens colored under the question, which came so sharply and indelicately, although he had rehearsed in his mind for that moment an uncounted number of times. He said nothing, fumbling as he was for a reply.

Jerry, lying back on his cot in the wagon, his head propped up, laughed shortly and answered for him.

“It was about twenty thousand, wasn’t it, Doctor?”

“Somewhere around there,” admitted Slavens, as if confessing some wild folly.

“Well, I said I’d give you half as much as you expected to get out of it if you pulled Jerry through, and I’m here to keep my word,” said the Governor, beginning to write.

Agnes looked at the doctor, indignant amazement in her face. Then she turned to the Governor sharply.

“I beg your pardon, Governor Boyle, but I was present when you made that promise; you said you’d pay him *twice* as much as he hoped to get out of the claim if he saved Jerry’s life,” said she.

Governor Boyle raised his eyes with a cold, severe look on his bearded face.

“I beg your pardon!” said he with withering rebuke, which carried with it denial and challenge of proof. That said, he bent to his writing again.

Jerry Boyle laughed.

“Oh, jar loose a little, Governor—be a sport!” he urged.

“Here is my check for ten thousand dollars, Doctor,” said the Governor, handing the slip to Slavens; “I consider that pretty good pay for two weeks’ work.”

The Governor mounted his horse, and gave the driver the word to proceed slowly to the station.

“And if I croak on the road over the Governor’ll stop payment on the check,” said Jerry facetiously.

“Well, unless you get busy with that little gun of yours and somebody puts another hole through you on the way,” the doctor assured him, “I’ll make it to the bank door with a perfectly good check in my hand.”

Young Boyle held out his hand in farewell, his face suddenly sober and serious.

“The gun has been cached,” said he. “I promised mother I’d never sling it on a man again, and I’m going to stick to it. I’m going to get a bill put through the Legislature making it a felony to pack one, if it can be done. I’m cured, Doctor, in more ways than one.”

The cavalcade moved off down the winding road. Agnes was ablaze with indignation.

“The idea of that man going back on his solemn word, given in the very presence of death!”

“Never mind; that’s the way he made his money, I suppose,” said the doctor. “I’ve got more out of it than I ever expected to get without a row,

and I'm going to make a line for that bank in Cheyenne and get the money on his check before he changes his mind. He may get to thinking before he gets home that Jerry isn't worth ten thousand dollars."

As they rode up to the rise of the hill, Agnes reined in and stopped. 351

"Here is where we changed places on the coach that day when Smith thought there was going to be a fight," she recalled.

"Yes, this is the place," he said, looking around with a smile. "Old Hun Shanklin was up here spying out the land."

"Smith called you to the box to help him, he told me later, because he picked you out as a man who would put up a fight," said she.

"Well, let us hope that he made a good guess," Slavens said, "for here's where we take up the racket with the world again."

"We changed places on the coach that day; you took the post of danger," she reflected, her eyes roaming the browning hills and coming back to his face with a caress in their placid depths.

"Yes," he said, slowly, gravely; "where a man belongs."

Dr. Slavens gathered up his reins to go, yet lingered a little, looking out over the gray leagues of that vast land unfolded with its new adventures at his feet. Agnes drew near, turned in her saddle to view again the place of desolation strewn over with its monumental stones.

"This is my Gethsemane," she said.

"It was cursed and unholy when I came to it; I leave it sanctified by my most precious memory," said he. 352

He rode on; Agnes, pressing after, came yet a little way behind, content to have it so, his breast between her and the world. And that was the manner of their going from the place of stones.

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